

Criminal Procedure Bill 2008

Introduction Print

EXPLANATORY MEMORANDUM

- Clause 1 sets out the purposes of the Bill which are—
- to clarify, simplify and consolidate the laws relating to criminal procedure in the Magistrates' Court, the County Court and the Supreme Court;
 - to introduce a new procedure permitting the service of a notice to appear in the Magistrates' Court;
 - to provide new pre-trial disclosure requirements for the prosecution;
 - to provide for a 6-month time limit for the filing of charges for summary offences in the Children's Court;
 - to provide for the transfer to the County Court or Supreme Court of summary offences related to an offence to be tried on indictment by that court;
 - to abolish the procedure of indictment by grand jury;
 - to provide for interlocutory appeals in criminal proceedings in the County Court and the Supreme Court;
 - to clarify the tests relating to determination by the Court of Appeal of appeals;
 - to provide for the stay of sentences on appeal;
 - to amend the **Sentencing Act 1991** to provide for a maximum fine that may be imposed for an indictable offence that is heard and determined summarily;

- to amend the **Crimes Act 1958**, the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**, the **Magistrates' Court Act 1989**, the **Children, Youth and Families Act 2005** and the **Appeal Costs Act 1998**;
- to repeal the **Crimes (Criminal Trials) Act 1999**;
- to make consequential and other amendments.

Clause 2 provides for the commencement of the Bill. Chapter 1 comes into operation on the day after the day on which this Bill receives the Royal Assent.

Clause 384 comes into operation on 1 July 2010. This clause provides for the repeal of sentence indication procedures in the County Court and Supreme Court.

The other provisions are to commence on a day or days to be proclaimed, or if not proclaimed, on 1 January 2011.

It is intended that this Bill (with the possible exception of several clauses, such as clauses 145 and 242) will be proclaimed to commence on the same day as the **Evidence Act 2008** is proclaimed to commence. As a result, the Bill includes reference to sections in the **Evidence Act 2008**.

Clause 3 defines various words and expressions used in the Bill. A number of definitions refer to the clause in the Bill in which the definition is explained. Significant changes are explained below.

accused—

The Bill uses the word "accused" to describe a person charged with an offence or who is directed to be tried for perjury. It will apply in proceedings in the Magistrates' Court as well as in the Supreme and County Courts.

This definition is consistent with the approach taken in human rights instruments such as Article 10 of the International Covenant on Civil and Political Rights, which refers to accused persons in relation to criminal proceedings. Sections 22 and 23 of the **Charter of Human Rights and Responsibilities** also refer to the accused person and the accused child respectively.

appeal period—

The Bill uses the phrase appeal period to mean the period permitted by this Bill or any other Act for commencing an appeal under Part 6.3, or, if a notice of appeal or notice of application for leave to appeal under that Part is filed within that period, the determination of the appeal.

commencement of trial—

The Bill provides in clause 210 that a trial commences when the accused pleads not guilty on arraignment in the presence of the jury panel or, if a jury panel is split into 2 or more parts under section 30(5) of the **Juries Act 2000**, when the accused pleads not guilty on arraignment in the presence of the first part of the jury panel.

direct indictment—

A direct indictment is an indictment filed against an accused who has not been committed for trial in respect of the offence charged or a related offence. A definition of related offences appears in this clause.

full brief—

The full brief replaces the brief of evidence and the Schedule 2 request process under the **Magistrates' Court Act 1989**. It contains all material genuinely relevant to the charge, regardless of whether the prosecution intends to rely upon it. Accordingly, the contents of the full brief include material that is currently required to be in a brief of evidence, together with material that can currently be requested under the **Magistrates' Court Act 1989** Schedule 2, clause 1A.

in detention—

The definition of in detention means—

- in a prison in the legal custody of the Secretary to the Department of Justice;
- in custody in a police gaol in the legal custody of the Chief Commissioner of Police;
- detained in an approved mental health service within the meaning of the **Mental Health Act 1986** in the legal custody of the authorised psychiatrist of the approved mental health service;

- in custody in a remand centre, youth residential centre or youth justice centre within the meaning of the **Children, Youth and Families Act 2005** in the legal custody of the Secretary to the Department of Human Services;
- in custody in a residential institution or a residential treatment facility within the meaning of the **Disability Act 2006** in the legal custody of the Secretary to the Department of Human Services.

interlocutory appeal—

This refers to an appeal under Division 4 of Part 6.3 against an interlocutory decision.

interlocutory decision—

This refers to a decision made by a trial judge in a proceeding referred to in clause 295(1), whether before or during the trial, including a decision to grant or refuse to grant a permanent stay of the proceeding.

This specific reference to a stay of proceeding is for the avoidance of doubt and not intended to limit any other decisions which might otherwise fall within this general definition.

legal practitioner—

This definition includes people acting in the course of their employment with the Crown or a public authority who engage in legal practice in that capacity as many prosecuting lawyers fall into this category.

original jurisdiction—

The definition of original jurisdiction is inclusive. It includes—

- a proceeding for an indictable offence; and
- a proceeding for a related summary offence heard under clause 242; and
- a proceeding for an unrelated summary offence heard under clause 243; and
- a proceeding for contempt of court; and
- a proceeding for variation or breach of a sentencing order under the **Sentencing Act 1991**.

originating court—

This is defined as either the County Court in its original jurisdiction or the Trial Division of the Supreme Court in its original jurisdiction. The term is used in relation to appeals to the Court of Appeal.

preliminary brief—

The preliminary brief is described in clause 37.

return date—

This refers to the first date on which the proceeding is listed before the Magistrates' Court. Subsequent dates are referred to either as a mention date or as specific types of hearings such as a contest mention hearing.

sentence—

The definition of "sentence" is inclusive. It is intended to capture the main types of sentencing orders including those made under Parts 3, 3A, 4 and 5 of the **Sentencing Act 1991**.

sexual offence—

The definition of sexual offence includes Subdivision (8EAA) of Division 1 of Part I of the **Crimes Act 1958** which sets out offences of sexual servitude. The Bill differs from that Act by using the definition consistently in different situations, such as time limits for holding a committal mention hearing and commencing a trial.

summary case conference—

The summary case conference is a conference referred to in clause 54.

Clause 4 states that references in the Bill to a Part by a number must be construed as a reference to the Part of the Bill designated by that number. This provision obviates the need to refer to the Chapter in which a Part is located.

CHAPTER 2—COMMENCING A CRIMINAL PROCEEDING

PART 2.1—WAYS IN WHICH A CRIMINAL PROCEEDING IS COMMENCED

- Clause 5 sets out that a criminal proceeding is commenced in one of three ways—
- by filing or signing a charge-sheet in accordance with the procedure set out in clause 6;
 - by filing a direct indictment in accordance with clause 159 (which sets out that the DPP or a Crown Prosecutor may file an indictment); or
 - by a direction under clause 362 that a person be tried for perjury.

PART 2.2—CHARGE-SHEET AND LISTING OF MATTER

- Clause 6 sets out how a criminal proceeding is commenced in the Magistrates' Court. The clause provides for three of the ways in which this can be done. First, by filing a charge-sheet containing a charge with a registrar of the Magistrates' Court. Second, if the accused is arrested without a warrant and is released on bail, by filing a charge-sheet containing a charge with a bail justice. Third, if a summons is issued by police or a public official (under clause 14), at the time the charge-sheet is signed.

Clause 6(4) provides that, in the case of an indictable offence that may be heard and determined summarily, a charge-sheet may include a request for a committal proceeding. It is intended that this would simply involve the informant ticking a box on the charge-sheet. Currently, the registrar lists a matter in either the summary or committal stream based on information from the informant. However, the legislation is silent as to how this initially occurs.

The purpose of this change is to provide greater clarity and transparency to the process for determining whether a charge for an indictable offence is likely to be dealt with in the committal stream or the summary stream.

- Clause 7 provides time limits for filing a charge-sheet.
- For a summary offence, a proceeding must be commenced within 12 months after the date on which the offence is alleged to have been committed except where otherwise provided by any other Act or where the accused gives written consent, and the DPP or a Crown Prosecutor consent, to the proceeding being commenced after that period expires.
- For an indictable offence, a proceeding may be commenced at any time except where otherwise provided by this Bill or any other Act. A proceeding for an indictable offence may be heard and determined summarily even though the proceeding may have been commenced more than 12 months after the date on which the offence is alleged to have been committed.
- Clause 8 provides the Magistrates' Court with a discretion to make orders to amend a charge-sheet.
- The court may order that the charge-sheet be amended in any manner that the court thinks necessary, unless the required amendment cannot be made without injustice to the accused. The word "defect" (used in section 50 of the **Magistrates' Court Act 1989**) has not been used as it had an uncertain legal meaning.
- The clause prevents amendment of a charge-sheet that has the effect of charging a new offence after the expiry of the period, if any, within which a proceeding for the offence may be commenced.
- The clause provides that, if a limitation period applies to the offence charged in the charge-sheet, the charge-sheet may be amended after the limitation period expires if the charge-sheet sufficiently disclosed the nature of the offence before the amendment, the amendment does not amount to the commencement of a proceeding for a new offence and the amendment will not cause injustice to the accused.
- Clause 9 explains that a charge-sheet is not invalidated by certain errors. Clause 6(3) provides that a charge-sheet must comply with Schedule 1 which sets out matters such as how an offence must be described.
- Clause 10 provides for when a matter is listed for a mention hearing or a filing hearing.
- This clause deals with the allocation of proceedings to the summary stream or the committal stream in the Magistrates' Court. If the charge-sheet contains a charge for an indictable offence that may be heard and determined summarily (and does

not contain any charges for offences that are indictable only), it is possible to move from one stream to another.

For example, if the charge-sheet is initially allocated to the summary stream, it is possible for the accused to decline to consent to a summary hearing.

Conversely, if the charge-sheet is initially allocated to the committal stream, it is possible for an application for summary hearing to be made at any time before the court determines whether to commit the accused for trial. In particular, the application (or offer of a summary hearing) could be at a committal mention hearing or the committal hearing.

Subclause (1) requires a matter to be listed for a mention hearing if a charge-sheet contains a charge for a summary offence.

Subclause (2) allows the court to list a matter for either a mention hearing or a filing hearing if a charge-sheet contains a charge for an indictable offence that may be heard and determined summarily, having regard to any request for a committal proceeding included on the charge-sheet. This is subject to subclause (3) which provides that a mention hearing must be listed if a charge-sheet was filed after a notice to appear under clause 21 was given. Notices to appear should be used in cases where summary process will be appropriate and, as a result, such cases should not be put into the committal stream without an order by a Magistrate.

Subclause (4) confirms that a matter must be listed for a filing hearing if a charge-sheet contains a charge for an indictable offence which cannot be heard and determined summarily.

Clause 11 specifies the place of hearing of a criminal proceeding in the Magistrates' Court.

The clause provides that, except where otherwise provided by the Bill or another Act, a criminal proceeding in the Magistrates' Court is to be held at the court venue nearest to either the place where the offence is alleged to have been committed or the place of residence of the accused.

The clause provides the Chief Magistrate with the power to change the venue for the hearing of a specified criminal proceeding or a specified class of criminal proceeding.

The clause also provides that a criminal proceeding is not invalid only because it was conducted at a venue of the court other than one referred to in this clause.

PART 2.3—NOTIFYING ACCUSED OF COURT APPEARANCE

Division 1—Summons or warrant to arrest

- Clause 12 provides that the Magistrates' Court may issue a summons or warrant to arrest.
- The clause provides that when a charge-sheet is filed, unless a notice to appear has already been served on the accused, an application can be made (in person or by post) to the registrar of the Magistrates' Court for the issue of either a summons or a warrant to arrest in order to compel the attendance of the accused.
- If he or she is satisfied that the charge discloses an offence, the registrar must issue the summons or warrant to arrest. However, in order to issue the warrant to arrest, the registrar must be satisfied by sworn evidence (whether oral or by affidavit) that it is probable that the accused will not answer a summons, has absconded, is likely to abscond or is avoiding service of a summons that has been issued, or that a warrant is required or authorised by any other Act or for good cause.
- Clause 13 provides that, on service or execution, the summons or warrant is to be accompanied by a copy of the charge-sheet and a notice containing information for the accused.
- A summons and an arrest warrant each perform dual purposes - they not only compel the accused to attend court, they also inform the accused of the charges that the accused is being called on to answer at court.
- Clause 14 provides that a member of the police force or a public official acting in the performance of his or her duty may commence a criminal proceeding (see clause 6(1)(c)) by issuing a summons after signing a charge-sheet containing a charge.
- If the member of the police force or public official issues the summons, they must file the charge-sheet and summons with the appropriate registrar within 7 days after signing the charge-sheet. If they fail to do so, the Magistrates' Court has discretion to strike out the charge. Clause 349(3) allows costs to be awarded if a proceeding is struck out.

- Clause 15 sets out the required content of a summons to answer to a charge.
- A summons must direct the accused to appear at the appropriate venue on a specified date and time to answer the charge.
- In cases of indictable offences that may be heard and determined summarily, a summons that is to be served on a corporate accused must state that if the accused does not appear in answer to the summons, the Magistrates' Court may proceed to hear and determine the charge in their absence.
- In any case, a summons to answer to a charge for an indictable offence that is to be served on a corporate accused must state that if the accused does not appear in answer to the summons, the Magistrates' Court may proceed to conduct a committal proceeding in their absence.
- Clause 16 provides that, except where otherwise expressly enacted, there must be personal service of every summons to answer to a charge (in accordance with clause 339) at least 14 days before the return date or, in the case of a charge for an indictable offence in respect of which a registrar of the Magistrates' Court has fixed a date for a filing hearing, at least 7 days before that date or any other time before that date that is prescribed by the regulations.
- Clause 17 provides for ordinary service of a summons for a summary offence.
- The summons must be served at least 14 days before the return date. In deciding whether ordinary service should be used, an informant must consider whether it is the appropriate method of service in all the known circumstances. These circumstances include the nature and gravity of the alleged offence, whether the accused has previously been found guilty or convicted of any similar offence, and the period of time that has elapsed since the address for service was obtained.
- If ordinary service is effected by sending a copy of the document by ordinary post (according to clause 342(a)), evidence of service must state how the address was obtained, the time and place of posting and whether the relevant matters discussed above were considered before determining to effect service by post.

- Clause 18 requires the informant to nominate in writing a business address, email address, if any, and fax number for service on the informant of documents relating to a charge.
- Such nomination may be included on a charge-sheet or any other document served with a charge-sheet.
- Clause 340 allows an informant to be served at the nominated location.
- Clause 19 provides for the extension or adjournment of the return date in specific instances.
- A return date may be extended by an appropriate registrar on application by the informant on one or more occasions.
- An extension on a subsequent occasion may be provided if the appropriate registrar is satisfied by evidence on oath (whether oral or by affidavit) that reasonable efforts have been made to serve the summons.
- Clause 20 provides that an accused may apply for an adjournment of proceedings.
- If such an application is made, the appropriate registrar may adjourn the proceeding to a later date and, if relevant because the accused is on bail, extend bail but not revoke it or vary its conditions.
- The clause refers to the court's general power of adjournment in clause 331.
- Clause 21 provides that a member of the police force or a public official acting in the performance of his or her duties may serve a notice to appear if they reasonably suspect that the person has committed a summary offence or an indictable offence that may be heard and determined summarily. A public official is defined in clause 3.
- The clause also specifies information which the notice to appear must contain, including a brief description of the offence and surrounding circumstances, contact details for the person serving the notice and a date and time when the person served with the notice must attend court.
- The Bill provides an alternative method of dealing with alleged offenders who are currently brought before the Magistrates' Court by way of summons. The notice to appear is intended to be a simple and more efficient mechanism for use in minor matters. It is available for all summary and indictable offences which may be heard and determined summarily.

The notice to appear must be served by giving it to the person, or if the person does not accept the notice, by putting it down in the person's presence and telling them the nature of the document.

Clause 22 provides that notice to appear lapses unless the charge-sheet is filed within 14 days together with a copy of the notice to appear and evidence of service.

Failure to file a charge-sheet within the 14 days does not prevent an informant from filing a charge-sheet at any later time, subject to the usual limitation periods.

Clause 23 provides for notice to be given to both the person on whom the notice to appear was served and the Magistrates' Court after the lapsing of a notice to appear.

If a decision is made not to prosecute or a charge-sheet is not filed within 14 days, the police or public official must, within 7 days, notify the person in writing that no charge-sheet has been filed and that the person is no longer required to attend court.

Clause 24 requires an informant who files a charge-sheet in accordance with clause 22(1) to serve a preliminary brief on the accused within 7 days after the day on which the charge-sheet is filed. On the return date, the informant must also have a copy of the preliminary brief available to provide to the accused or their legal practitioner on request.

Clause 25 provides for the procedure following the non-appearance of an accused who has been served with a notice to appear. It distinguishes between a summary offence and an indictable offence that may be heard and determined summarily, in the same way as clauses 80 and 81 (in relation to non-appearance on a summons).

For summary offences, the court may issue a warrant to arrest the accused, adjourn the proceeding on any terms or proceed to hear and determine the case in the absence of the accused in accordance with Division 10 of Part 3.3. For indictable offences that may be heard and determined summarily, the court may only issue a warrant to arrest the accused.

Clause 26 provides that service of a notice to appear does not commence a criminal proceeding.

CHAPTER 3—SUMMARY PROCEDURE

PART 3.1—WHEN A SUMMARY HEARING MAY BE HELD

Clause 27 requires a charge for a summary offence to be heard and determined summarily in accordance with this Chapter or Division 1 of Part 5.8.

Clause 28 allows a charge for certain indictable offences to be heard and determined summarily by the Magistrates' Court.

Unless there is a contrary intention in the Bill, any other Act or subordinate instrument, the indictable offences that may be heard and determined summarily are—

- an offence referred to in Schedule 2;
- an indictable offence under an Act or subordinate instrument or a common law offence if the offence is described by an Act or subordinate instrument as being—
 - a level 5 or 6 offence; or
 - punishable by level 5 or 6 imprisonment or fine or both; or
 - punishable by a term of imprisonment not exceeding 10 years or a fine not exceeding 1200 penalty units or both.

A level 5 offence is punishable by 10 years imprisonment maximum and a level 6 offence punishable by 5 years imprisonment maximum.

If a Schedule 2 indictable offence is qualified by reference to a specified amount or value or a specified kind of property, that qualification is not affected by this clause.

Clause 29 allows an indictable offence to be heard and determined summarily if the accused (or their legal practitioner) consents and the Magistrates' Court considers that the charge is appropriate to be determined summarily having regard to—

- the seriousness of the offence;
- the adequacy of sentencing orders available to the court, having regard to the criminal record of the accused;

- whether a co-accused is charged with the same offence;
and
- any other matters considered relevant by the court.

These considerations are not relevant to a proceeding in the Children's Court as the **Children, Youth and Families Act 2005** provides that indictable offences must be heard and determined summarily unless, for instance, the Children's Court does not have the jurisdiction to hear the offence or the child objects to the case being heard and determined summarily.

The clause provides that both a body corporate and a natural person who are jointly charged with an indictable offence which may be heard and determined summarily must consent to a summary hearing before the court hears the charge. If a corporate accused fails to appear in a proceeding and the natural person consents to a summary hearing then the court may proceed to hear the charge. The charge against the corporate accused may be heard and determined summarily, in its absence, in accordance with clause 82.

A matter may also be heard and determined summarily if the County Court or Supreme Court orders that a charge for an indictable offence triable summarily be transferred under clause 168.

Clause 30 sets out the procedure for indictable offences that may be heard and determined summarily.

The Magistrates' Court may offer a summary hearing, or either party may apply for one under clause 30(1), any time before the court determines whether to commit the accused for trial.

For the purpose of determining whether to grant a summary hearing, the court may seek from the prosecution or informant an outline of the prosecution's evidence and any other relevant information. While the prosecution or informant must fulfil this request, any statement they make in doing so is not admissible in evidence in any subsequent proceeding in respect of the charge.

A summary hearing must be conducted in accordance with Part 3.3.

Even after a committal hearing has commenced, the charge may be heard and determined summarily. Subclauses (7) and (8) set out how the summary hearing may be conducted and what evidence from the committal hearing may be admitted as evidence in the summary hearing.

PART 3.2—PROCEDURE BEFORE SUMMARY HEARING

Division 1—General

- Clause 31 allows the Magistrates' Court to change the place of any hearing in the Magistrates' Court if a fair hearing cannot otherwise be had, or for any other reason it is appropriate. Clause 11 determines what the presumptive place of hearing will be in the Magistrates' Court.
- Clause 31 is based on section 359 of the **Crimes Act 1958** but does not re-enact the requirement to give notice or the entitlement of parties to be present and make submissions. For consistency throughout the Bill all such procedural references have been removed and will be resolved on ordinary principles of procedural fairness.
- Clause 337 provides a general rule that orders can be made on the application of a party or on the court's own motion unless otherwise provided.
- Clause 32 provides that the accused is entitled to a free copy of the charge-sheet from the informant or the appropriate registrar as well as reasonable particulars of the charge from the informant.
- Clause 33 requires the Magistrates' Court to ask an accused who is unrepresented on the return date and who is charged with an offence punishable by imprisonment whether they have sought legal advice. If satisfied that the accused has not had a reasonable chance to do so, the court must grant an adjournment if the accused so requests.
- The court must also inform an accused of their right, if eligible, to legal aid, which is consistent with section 25(2)(e) of the **Charter of Human Rights and Responsibilities**.
- Clause 34 gives the Magistrates' Court power to direct that property taken from the accused be returned (to the accused or any other person that the accused directs) if consistent with the interests of justice and the safe custody of the accused.
- If a person other than the accused applies for return of property, the court may direct that the property be returned to the person at any time or subject to any condition that the court considers appropriate.

Division 2—Pre-hearing disclosure of the prosecution case

Clause 35 sets out when a preliminary brief is to be served on the accused by the informant.

The preliminary brief must be served either—

- as required by clause 24, where a notice appear has been served and a charge-sheet has been filed; or
- on written request by the accused.

If the accused makes a written request, the informant must serve the preliminary brief within 14 days of receiving the request.

The clause also gives the informant an option to serve a preliminary brief at any time. This is relevant to cases where an informant is not required to comply with clause 24 or a written request by the accused.

Clause 36 provides for service of a preliminary brief.

In deciding whether ordinary service rather than personal service should be used, an informant must consider whether it is an appropriate method of service in all the known circumstances. These circumstances include the nature and gravity of the alleged offence, whether the accused has previously been found guilty or convicted of any similar offence, the manner of service of the summons and the period of time that has elapsed since the address for service was obtained. If ordinary service is not appropriate, personal service in accordance with clause 339 must be used.

Clause 37 sets out the contents of a preliminary brief.

The preliminary brief will replace the outline of evidence in section 37A of the **Magistrates' Court Act 1989**. Accordingly, if the court proceeds to hear and determine a charge in the absence of the accused, material in the preliminary brief, in accordance with clause 84, may be used as evidence in the hearing. The preliminary brief includes basic material such as the charge-sheet in respect of the alleged offence, a copy of any criminal record of the accused and the informant's statement.

The preliminary brief is also mandatory in all cases in which a notice to appear was originally served. As a result, it is also intended to provide preliminary disclosure of the case against the accused. The informant's statement must be complete and accurate and include, amongst other things—

- a statement of the alleged facts on which the charge is based and evidence available to the prosecution in support of the alleged facts; and
- a list of witnesses and exhibits that the prosecution may rely on at the hearing of the charge.

The informant may also include other material in the preliminary brief, such as key witness statements, which will assist the accused in understanding the case against them.

Clause 38 sets out different ways in which the informant's statement in a preliminary brief may be acknowledged. An acknowledgement is subject to the penalties for perjury.

Clause 39 requires that, on written request by the accused, the informant must serve a full brief on the accused.

An accused may make a written request for a full brief at any time after a charge-sheet is filed, except in cases where a notice to appear has been served.

Where a notice to appear has been served and a charge-sheet is filed within 14 days in accordance with clause 22, the informant must have served a preliminary brief on the accused within 7 days of filing a charge-sheet. If the accused requires further disclosure, a written request for a full brief may be made at any time after a summary case conference is held in accordance with clause 54.

The notice to appear process is designed to provide preliminary disclosure of the case against the accused at an early stage in the proceeding and an opportunity for the parties to discuss the case at a summary case conference. If a matter does not resolve at a summary case conference, full disclosure is available before an accused proceeds to a contest mention hearing or, if a contest mention hearing is not held, a summary hearing.

Clause 39 provides that where a written request has been made, the informant must serve the full brief at least 14 days before the contest mention hearing or, if no contest mention hearing is held, at least 14 days before the summary hearing. This timeframe may be varied by the Magistrates' Court under subclause (3).

If a full brief is not served within the timeframes, the Magistrates' Court may make an order for service of the full brief in accordance with clause 46.

Subclause (4) recognises that the informant and the accused may agree to more limited disclosure than is required in the full brief.

Clause 40 provides for service of a full brief.

In deciding whether ordinary service rather than personal service should be used, an informant must consider whether it is an appropriate method of service in all the known circumstances. These circumstances include the nature and gravity of the alleged offence, whether the accused has previously been found guilty or convicted of any similar offence, the manner of service of the summons and the period of time that has elapsed since the address for service was obtained. If ordinary service is not appropriate, personal service in accordance with clause 339 must be used.

Clause 41 sets out the contents of a full brief.

The purpose of the full brief is to provide more comprehensive disclosure than the preliminary brief. It includes material that is relevant to the charge, both that the prosecution intends to rely on and that it does not intend to rely on at the summary hearing.

The clause lists, on an inclusive basis, the type of material that should be included in a full brief.

The full brief replaces both the brief provided in accordance with clause 1A, Schedule 2 to the **Magistrates' Court Act 1989** and the brief of evidence in section 37 of the **Magistrates' Court Act 1989**. As a single, comprehensive disclosure process, the full brief avoids the current problems with two different brief processes and the limited disclosure that is in the brief of evidence.

Clause 45 sets out the grounds on which the informant may refuse to disclose material and clauses 43, 44 and 46 set out a process for resolving disputes about disclosure.

Clause 42 confirms that the informant has a continuing obligation of disclosure.

This applies to any information, document or thing that comes to the informant's notice or into the possession of the informant after service of the preliminary brief or full brief.

The informant must serve on the accused a copy of the document or list as soon as practicable after it comes to their notice or into their possession.

If the informant refuses to make such disclosure, he or she must serve on the accused, as soon as practicable, a written notice that the informant refuses disclosure under clause 45, identifying the ground for refusal.

The ongoing disclosure obligation is consistent throughout the Bill and repeated in committal and trial proceedings (see clauses 111 and 185).

Clause 43 allows the accused to give to the informant a written request for the following—

- a copy of any statement or information given by a person, or thing listed in the full brief;
- a copy of any information, document or thing that is required to be disclosed in a preliminary brief or full brief;
- particulars of the previous convictions of any witness who the prosecution intends to call at the hearing; or
- to inspect exhibits at a time and place agreed by the parties.

A request may be made at any time after service of the preliminary brief or full brief (whichever occurs first). However, the request must be made at least 7 days before a contest mention hearing or, if a content mention hearing is not held, the summary hearing, unless the Magistrates' Court otherwise orders.

Clause 44 requires the informant to comply with a request under clause 43 within 7 days of receiving the request or as otherwise ordered by the Magistrates' Court.

If the informant refuses to comply with the request, the informant must serve on the accused, within 7 days of receiving the request, a written notice of refusal, identifying the grounds for refusal as set out in clause 45.

Clause 45 sets out the grounds on which the informant may refuse to disclose any material required to be disclosed under Division 2, Part 3.2.

The informant may refuse to disclose material if it would, or would be reasonably likely, to—

- prejudice the investigation of a contravention (or possible contravention) of the law;

- prejudice the fair hearing of a charge or the impartial adjudication of a particular case;
- disclose methods or procedures for preventing, detecting, investigating or dealing with matters arising out of contraventions or evasions of the law if such disclosure would, or would be reasonably likely to, prejudice the effectiveness of those methods or procedures;
- endanger the lives or physical safety of certain persons.

If an informant refuses to disclose material required in a preliminary brief or full brief, clause 37(1)(f) and clause 41(1)(f) require the informant to include a written notice in the preliminary brief or full brief (whichever is being served) stating the grounds on which the informant refuses disclosure.

An informant may also refuse to disclose material on any ground on which the informant would be entitled to refuse to produce material under a witness summons, which protects the restrictions on disclosure developed by the courts in relation to subpoenas.

An informant may refuse to disclose particulars of a previous conviction of a witness if it is irrelevant to the proceeding having regard to the character of the previous conviction. The informant might consider that a previous conviction is irrelevant for a number of reasons such as—

- the witness is not that important to the prosecution case;
- the witness's credit is not or should not be in issue;
- the previous conviction is not relevant to the prosecution case;
- the previous conviction is not relevant to the accused's case; or
- the previous conviction is not relevant to the case because of the character of the previous conviction.

Only the last reason is a basis for the informant to refuse to disclose a previous conviction of a witness.

If the informant does refuse to disclose a previous conviction, the informant must inform the accused of the existence of the undisclosed previous conviction.

This clause, together with the Magistrates' Court's power to make disclosure orders under clause 46, is designed to reduce reliance on witness summonses and subpoenas to resolve disclosure disputes.

- Clause 46 gives an express power to the Magistrates' Court to order an informant to disclose any material in accordance with a request by the accused under clause 43 or as required under Division 2, Part 3.2. This power is currently contained in clause 1A(6), Schedule 2 to the **Magistrates' Court Act 1989**. It has been broadened to cover two situations—
- where the informant has refused to disclose information requested by the accused and the accused disputes the reasons given by the informant; or
 - the informant has failed to comply with their obligations under the Division in any other way.

The accused may apply for such an order if the informant has served on the accused (under clauses 37(1)(f), 41(1)(f) or 45) a statement of grounds for refusing disclosure or if the informant has failed to give disclosure in accordance with the Division.

- Clause 47 sets out how a statement contained in a full brief must be acknowledged. An acknowledgement is subject to the penalties for perjury.

The clause provides that if a person under the age of 18 years acknowledges a statement, it must include their age. It also sets out what must be done if a person who cannot read provides a statement.

- Clause 48 provides that the informant must not disclose the address or telephone number of any person in the material provided to the accused under this Division unless—

- the Magistrates' Court permits; or
- the informant believes that the material either does not identify such information or that information is relevant to the offence charged and is not likely to present a reasonably ascertainable risk to the welfare or physical safety of a person.

This clause takes a more restrictive approach than the current provision relating to disclosure of witness details in clause 1A(2)(d), Schedule 2 to the **Magistrates' Court Act 1989**.

The informant may delete or render illegible the relevant information before serving the material on the accused.

Under subclause (3), the court may permit disclosure, if the address or telephone number is relevant to the offence charged and either—

- disclosure is not likely to pose a reasonably ascertainable risk to the welfare or safety of the witness; or
- the interests of justice outweigh any reasonably ascertainable risk.

In considering whether it is in the interests of justice, the court must weigh the right to privacy of the witness against the right of the accused to prepare properly for the hearing. The new balancing exercise the court is required to undertake recognises the right of a person to their privacy and reputation as found in section 13 of the **Charter of Human Rights and Responsibilities** and section 14 of the **Victims' Charter Act 2006**.

Clause 49 allows for disclosure by placing material on an electronic database. The informant must place on a database a copy of any preliminary brief, the full brief, and any additional information, documents and things requested by the accused under clause 43 or required to be disclosed under clause 42.

The clause applies where the informant is a member of the police force or an officer of a prescribed agency, the accused's legal practitioner is authorised by the Secretary of the Department of Justice to electronically access the information referred to in clause 43 and it is practicable to transmit the information electronically.

Division 3—Preliminary disclosure of case of accused

Clause 50 requires an accused who intends to call an expert witness at the hearing to file and serve a copy of the expert witness's statement at least 7 days before the contest mention hearing, or if no contest mention hearing is held, the summary hearing, or if it is not then in existence, as soon as possible after it comes into existence.

The statement must contain the witness's name and business address, describe the witness's qualifications to give evidence as an expert, and set out the substance of the evidence the accused proposes to adduce from the witness as an expert (including the witness's opinion and the basis on which the opinion is formed).

Clause 1B of Schedule 2 to the **Magistrates' Court Act 1989** requires an expert witness statement to be served at least 7 days before the mention date (or if it is not in existence then, as soon as practicable after it comes into existence). This timeframe is not practical as the accused will rarely have a statement prepared so early in a proceeding. A more practical timeframe is to provide the statement shortly before a contest mention hearing.

Under section 79 of the **Evidence Act 2008**, expert evidence is evidence of opinion given by a person with specialised knowledge.

Clause 51 sets out that an accused must not, without the leave of the court, give or adduce evidence relating to an alibi unless a notice of alibi has been served on the prosecution. Subclause (8) provides that the court cannot refuse to grant leave if the accused was not informed of the requirement to serve a notice of alibi.

A notice of alibi must be served at least 7 days before the contest mention hearing, or if no contest mention hearing is held, the summary hearing.

A notice of alibi must contain particulars of the alibi and of any witness to the alibi. If the name and address of a witness are not known, then the accused must include any information which, may assist in finding the witness.

If a notice of alibi does not include the name and address of a witness, the accused must not call that person to give evidence in support of the alibi unless the court is satisfied that the accused took reasonable steps to find out the name and address. The accused must also give written notice to the informant of any further information which might assist in finding the witness if the informant notifies the accused that a witness named (or referred to) in a notice of alibi has not been traced.

If the accused gives notice of alibi, the court must grant an adjournment on the prosecution's application to allow investigation of the alibi, unless the adjournment would prejudice the proper presentation of the accused's case.

Clause 52 provides that it is an offence for the prosecution or a member of the police force to communicate about the charge or any related matter with a person named or referred to as a proposed witness in a notice of alibi without the consent and presence of the accused's legal practitioner (or the accused if they are unrepresented). This carries a maximum penalty of 1 year imprisonment.

Subclause (2) is a new subclause which provides that such communication is not an offence where it involves a person whom the accused has been notified may be called as a witness for the prosecution at the summary hearing.

This subclause is designed to overcome the difficulty the prosecution may face in communicating with a prosecution witness for the purposes of preparing their case, where that witness is named in a notice of alibi. This situation arose in *R v Boris Beljajev* [2006] VSC 413.

Division 4—Mention hearing and contest mention hearing

Clause 53 sets out what the Magistrates' Court may do at a mention hearing. This includes—

- if the charge is for an indictable offence that may be heard and determined summarily, grant a summary hearing;
- fix a date for a contest mention hearing or summary hearing;
- proceed immediately to hear and determine the charge; or
- make any other order or give any direction the court considers necessary.

Clause 54 provides for a summary case conference between the prosecution and the accused.

The conference is intended to be a flexible, out of court, case management tool designed to encourage discussion between the parties at an early stage in a summary proceeding. An express purpose of the conference is to allow the accused to identify material that may be useful in resolving the case (for example the statement of a key witness or a copy of an interview with the accused), and for the prosecution to provide such material.

In order to promote open discussion between the prosecution and the accused, subclause (7) provides that anything that is said or done in the conference and any document prepared solely for the conference is not admissible as evidence in any proceeding unless both parties agree.

The clause also sets out that a conference must be held when a notice to appear has been served and the informant has filed a charge-sheet in court. In this case, if a preliminary brief has been served in accordance with clause 24, a summary case conference must be held if—

- a case is set down for a contest mention hearing or, if no contest mention hearing is held, a summary hearing; or
- the accused makes a request for a full brief.

The Magistrates' Court can also direct the parties to attend a summary case conference.

If an accused is unrepresented, a summary case conference may only be held if the court is satisfied that the conference is appropriate, having regard to whether the accused has had a reasonable opportunity to obtain legal advice.

In any other summary proceeding (i.e. where a notice to appear has not been served) a conference may be held but it is not required under the Bill. A conference may also be held at any other time, other than when required under the Bill, if the parties agree.

Clause 55 provides a statutory basis for the contest mention system, which is an established case management process in the Magistrates' Court.

The Magistrates' Court has a discretion to conduct a contest mention hearing between the return date and the summary hearing. A contest mention hearing can be held on the application of a party or on the court's own motion in accordance with clause 337.

Clause 55 sets out what the court may do or require of the parties in preparation for the summary hearing. This includes, amongst other things, requiring the parties to provide an estimate of the time needed for the hearing, the estimated number and availability of witnesses (other than the accused), requesting that the parties indicate the evidence they propose to adduce and the issues in dispute and establishing whether the accused is legally represented.

This clause requires the accused to attend all contest mention hearings. However, the court can excuse an accused from attendance under clause 330.

PART 3.3—SUMMARY HEARING

Division 1—Joint or separate hearing of charges

Clause 56 provides that if a charge-sheet contains more than one charge or names more than one accused (whether in the same charge or separate charges), the charge or charges must be heard together.

This is subject to the power of the court to order a separate hearing in accordance with clause 58.

A charge-sheet may allege that accused A committed an offence with accused B, however, a separate charge-sheet must still be filed against each accused.

Clause 57 gives the Magistrates' Court a discretion to order, on application of the prosecution or the accused, that any number of charges on a separate charge-sheet should be tried together.

Clause 58 gives a discretion to the Magistrates' Court to order a separate hearing—

- for any one or more charges, if a charge-sheet contains more than one charge; or
- for a specified accused, if a charge-sheet names more than one accused.

The court may order a separate hearing if it considers that—

- an accused's case may be prejudiced because they are charged with more than one offence in the same charge-sheet;
- a hearing with a co-accused would prejudice the fair hearing of the charge against the accused; or
- for any other reason it is desirable to do so.

The orders may be made on the court's own motion or on application by any party in accordance with clause 337, before or during the hearing.

If an order is made for a separate hearing, the court may make any order in relation to the bail of the accused that it considers appropriate.

If the court makes one of the orders, the prosecution may elect which charge is to be heard first. The procedure on the separate hearing of a charge is the same as if the charge had been set out separately.

Division 2—Diversion program

Clause 59 sets out which offences under the **Road Safety Act 1986** the diversion program does not apply to and gives a discretion to the Magistrates' Court to adjourn a proceeding for a period of 12 months or less to enable the accused to complete a diversion program if—

- before taking a formal plea from the accused in a proceeding for a summary offence or an indictable offence that may be heard and determined summarily, the accused acknowledges responsibility for the offence to the court;
- their participation in a diversion program appears appropriate to the court; and
- both parties consent to an adjournment for this purpose.

An accused's acknowledgement to the court of responsibility for an offence is inadmissible as evidence in a proceeding for that offence and does not constitute a plea.

If an accused completes a diversion program, no plea is to be taken and the court must discharge the accused without any finding of guilt. The fact of participation in the diversion program is not to be treated as a finding of guilt except for a number of exceptions set out in subclause (4)(c) including Part 4 of the **Sentencing Act 1991**.

The fact of participation in the diversion program and the discharge of the accused is a defence to a later charge for the same offence or a similar offence arising out of the same circumstances.

The clause sets out the consequences if the accused does not complete a diversion program to the satisfaction of the court and is subsequently found guilty of the charge. In this instance, the court must take into account the extent to which the accused complied with the diversion program when sentencing the accused.

The clause does not affect the requirements to observe the rules of natural justice nor does it affect the incurring of demerit points under the **Road Safety Act 1986** or regulations made under that Act.

Division 3—Sentence indication

- Clause 60 enables the Magistrates' Court to give an indication as to the type of sentence that will be imposed if the accused pleads guilty at that time.
- Clause 61 provides that if the Magistrates' Court gives a sentence indication and the accused pleads guilty to the charge at the first available opportunity after the indication, the court is bound by the indication to the extent that a more severe type of sentence than that indicated must not be imposed. The court may impose a less severe sentence than that indicated.

If the accused does not plead guilty in response to the indication but instead chooses to go ahead with a contested hearing, the contested hearing will be conducted before a different magistrate, unless the parties otherwise agree.

A sentence indication may be provided at any time that the court considers appropriate. These provisions also apply to indictable offences being heard and determined summarily. The court has unfettered discretion to refuse to provide a sentence indication. Accordingly, if the material available is insufficient to provide an indication by which the court is prepared to be bound, it may decline to provide a sentence indication.

If a sentence indication is requested, a decision to give or not to give a sentence indication is final and conclusive and cannot be appealed. However, this does not limit the number of sentence indications that a magistrate may give.

The prosecution and accused retain their rights to appeal against sentence.

An application for an indication, the sentence indication hearing and any sentence indication given may not be used as evidence against the accused in any proceeding.

Division 4—Entering a plea

- Clause 62 requires the court to read to the accused any charge or explain the substance of any charge, as set out in the charge-sheet, before an accused is asked to plead to a charge.
- The clause provides an exception to this requirement if an accused is represented by a legal practitioner and the court considers it appropriate not to read out the charge.
- Clause 63 allows a legal practitioner appearing for the accused to enter a plea on behalf of the accused.
- Clause 64 enables the court to order that a plea of not guilty be entered on behalf of an accused, if an accused does not answer directly to the charge. Such a plea will have the same effect as if the person had in fact pleaded not guilty.

Division 5—Opening address

- Clause 65 is a new Division that, together with Divisions 6 and 7, set out the course of a summary hearing in the Magistrates' Court. Currently this is dealt with in clause 2, Schedule 2 to the **Magistrates' Court Act 1989** by referring to procedure at trial in the Supreme Court "with any necessary modifications". Consistent with the general approach taken in the Bill, the steps in a summary hearing are clearly set out in Divisions 5, 6 and 7 and largely reflect the trial provisions in the Bill.
- This clause provides that the prosecution may give an opening address and the accused may give an opening address in response to the prosecution opening if the Magistrates' Court grants leave to do so. The clause is not prescriptive therefore an accused is not required to make an opening address, which is different to the current position in the **Crimes (Criminal Trials) Act 1999**. This is consistent with the accused's right to silence.
- The court may limit the length of the address of either party.

Division 6—Case for the accused

- Clause 66 sets out three ways in which the accused may respond after the prosecution case closes—
- by making a submission that there is no case to answer;

- by answering the charge by giving evidence or calling witnesses to give evidence, or both; or
 - by not giving evidence or calling witnesses.
- Clause 67 gives the Magistrates' Court the power to question a legal practitioner representing the accused at the close of the prosecution case to determine which of the three options in clause 66 the accused elects to take.
- Clause 68 concerns the response of the accused to the prosecution case if they are not legally represented.
- The Magistrates' Court, in these circumstances, must inform the accused immediately following the close of the prosecution case, in a manner that they are likely to understand, that they have the right to answer the charge and must choose either to give sworn evidence or say nothing in answer to the charge. Further, the court must also inform the accused that they may call any witnesses to give sworn evidence for them.
- The court must then ask the accused what they elect to do.
- Clause 69 regulates the procedure for joint hearings where a no case submission has been made. The clause applies to a hearing in which 2 or more accused are named on the charge-sheet.
- Any accused who wishes to make a submission that there is no case to answer must do so after the prosecution case closes.
- Once the court has ruled on the no case submissions and there are 2 or more accused with charges to be determined, then the accused must indicate how the accused will respond to the prosecution case, as outlined in clause 66.
- Clause 70 requires the accused to indicate, when called on by the Magistrates' Court to do so, the names of any witnesses the accused intends to call to give evidence at the hearing (other than the accused) and the order in which they are to be called.
- The accused must seek the leave of the court to make any change to the witnesses or the order in which they are to be called.
- Clause 71 provides that if the accused intends to give evidence or call witnesses, or both, the Magistrates' Court may grant leave to the accused to open their case if the court considers it appropriate to do so.

The accused's opening address must be given before the accused gives evidence or calls any witness. The court may limit the length of the opening address of the accused.

The accused is not required to give evidence before any other witness is called on their behalf.

- Clause 72 provides that the accused bears the evidential burden for presenting or pointing to evidence that suggests a reasonable possibility of any facts that would establish an exception, exemption, proviso, excuse or qualification provided by an Act or subordinate instrument and on which the accused wishes to rely.

If the accused presents or points to such evidence, the informant is then required to prove that the exception, exemption, proviso, excuse or qualification does not apply.

The Magistrates' Court may allow the prosecutor to re-open the prosecution case in order to adduce evidence rebutting the evidence presented by the accused under this clause, if the court is satisfied that it is in the interests of justice to do so.

Division 7—Closing address

- Clause 73 gives the Magistrates' Court a discretion to grant leave to the prosecutor to address the court for the purpose of summing up the evidence after the close of all evidence and before any closing address from the accused.

The court may limit the length of the closing address of the prosecutor.

- Clause 74 gives the Magistrates' Court a discretion to grant leave to the accused to address the court for the purpose of summing up the evidence after the close of all evidence and any closing address from the prosecutor.

The court may limit the length of the closing address of the accused.

- Clause 75 gives the Magistrates' Court a discretion to grant leave for a supplementary prosecution closing address in limited circumstances, that is, where the accused asserts facts in their closing address which are not supported by sworn evidence before the court. The prosecution is limited to replying to the relevant assertion.

The court may limit the length of a supplementary address.

Division 8—Determination of charge

- Clause 76 gives the Magistrates' Court the discretion to find the accused guilty of attempting to commit the offence charged, if the accused is found not guilty of the charge. This applies only to indictable offences heard and determined summarily.

Division 9—Criminal record

- Clause 77 sets out that, in relation to each previous conviction, a criminal record must contain the following information—

- the date of the conviction;
- the court in which it took place;
- the place of sitting of that court;
- the offence committed; and
- the sentence imposed.

There is an additional, new requirement that where a sentence was imposed in respect of a previous conviction a criminal record may contain a statement that other offences were taken into account including the number of offences. The purpose of this requirement is to reflect section 100(11) of the **Sentencing Act 1991**.

In order for a criminal record to be admissible in evidence, it must be signed by a person listed in subclause (3). This requirement is new, and is intended to ensure that a criminal record has been checked and is accurate before it is tendered as evidence in a proceeding.

- Clause 78 allows the prosecution to provide to the Magistrates' Court the criminal record (if any) of a person found guilty of an offence in a summary hearing.

The court must ask the person whether they admit the previous conviction in the criminal record. If the person (or their legal practitioner) admit to the previous conviction, the court may proceed to sentence the person. If the person does not admit to the previous conviction, the prosecution may lead evidence to prove it in accordance with the **Evidence Act 2008**.

Division 10—Non-appearance of a party

Clause 79 sets out what the Magistrates' Court may do if the informant does not appear on the date that the proceeding is listed for hearing. The court has a discretion to dismiss the charge or adjourn the proceeding.

Clause 80 sets out what the Magistrates' Court may do if an accused fails to appear in answer to a summons for a charge for a summary offence.

The court may do any of the following things if the accused does not appear—

- direct that the accused be served personally with the summons if ordinary service (clause 342) was used the first time;
- issue a warrant to arrest the accused;
- hear and determine the charge in the absence of the accused; or
- adjourn the proceeding on any terms that it thinks fit.

Where an accused charged with a summary offence fails to attend in answer to bail, the clause provides the court with a discretion to either hear and determine the charge in the absence of the accused or adjourn the proceeding on any terms it thinks fit, without prejudice to any right of action arising out of the breach of the bail undertaking.

The consequences of failing to appear in answer to a summons for a charge for an indictable offence are set out in clause 81.

The consequences of failing to appear in answer to a notice to appear are set out in clause 25.

Clause 81 sets out what the Magistrates' Court may do if an accused fails to appear in answer to a summons for an indictable offence.

The court is limited to issuing a warrant to arrest the accused. This reflects the current practice that the court will not proceed to determine a charge for an indictable offence in the absence of an accused who is a natural person. However, clause 82 allows the court to determine a charge in the absence of a corporate accused charged with an indictable offence.

Clause 82 sets out what the Magistrates' Court may do if a corporate accused fails to appear in answer to a summons for an indictable offence.

The court may hear and determine the charge summarily in the absence of the corporate accused and without its consent if satisfied that the charge and return date have been brought to the notice of the corporate accused and that the charge is appropriate to be determined summarily.

If the court determines a charge in this way and finds the corporate accused guilty, the court must give written notice to the corporate accused of any sentence imposed.

Clause 83 provides that any statement, and exhibits or documents referred to in any statement, that are served in a full brief are admissible as evidence at a summary hearing determined in the absence of the accused.

The Magistrates' Court has a discretion to rule that all or part of a statement, and exhibit or document referred to in a statement, is inadmissible.

The clause takes a new approach to the admissibility of a criminal record by providing that, when served in a full brief, the criminal record of the accused or a statement that the accused has no previous convictions is only admissible for the purpose of sentencing in accordance with clause 86.

This is different to clause 6(8), Schedule 2 to the **Magistrates' Court Act 1989** which prohibits the court from being informed of or having regard to any previous convictions or findings of guilt, except as provided by section 90 of the **Road Safety Act 1986**.

The court may also accept evidence on oath given by the informant, or on their behalf, if a full brief has not been served.

Clause 84 provides that the informant's statement and any exhibit in the informant's statement, served as part of the preliminary brief is admissible in evidence at a summary hearing determined in the absence of the accused if the following conditions are satisfied—

- the informant has served a preliminary brief on the accused in accordance with Division 2, Part 3.2 at least 14 days before the summary hearing; and
- the Magistrates' Court considers that the matters set out in the preliminary brief disclose the offence charged.

The court has a discretion to require the informant to provide additional evidence if the court considers that the matters set out in the preliminary brief do not disclose the offence charged. However, this additional evidence is only admissible if it is in the form of written statements complying with clause 38 and a copy of each statement has been served on the accused at least 14 days before the court considers it.

The court has a discretion to rule the whole or any part of a preliminary brief, statement or exhibit inadmissible.

The criminal record of the accused or a statement that the accused has no previous convictions contained in a preliminary brief is only admissible for the purpose of sentencing in accordance with clause 86.

The court may also accept evidence on oath given by the informant, or on their behalf, if a full brief has not been served.

Clause 85 applies to a lodgeable infringement offence (within the meaning of the **Infringements Act 2006**) in respect of which either an election has been made to have the matter heard and determined in the Magistrates' Court under Part 2 or 4 of that Act or an order has been made under section 72(1) of that Act.

In relation to an infringement offence, if the accused fails to appear and the court proceeds to hear and determine the charge in their absence, the court may hear and determine the charge based on the prescribed information lodged under section 40(1)(a) or 71(1)(a) of that Act (as required).

Clause 86 provides that the accused can be served with a copy of their criminal record if the accused is charged with a summary offence and it is alleged that the accused has previous convictions. The contents of the criminal record are set out in clause 77.

If the Magistrates' Court finds the accused guilty in their absence and is satisfied that they were served with a copy of their criminal record at least 14 days before the summary hearing, then the record is admissible only for sentencing purposes and is evidence of the previous convictions and associated particulars.

Clause 87 limits the type of sentence that the Magistrates' Court may impose if the court proceeds to hear and determine a charge in the absence of the accused.

The court must not make a custodial order under Division 2, Part 3 of the **Sentencing Act 1991** or an order that requires the consent of the accused (for example a community based order) if it finds the accused guilty after hearing and determining a charge in their absence.

Where a charge is determined in the absence of the accused on the basis of a preliminary brief, the following limitations on sentencing apply—

- the court must not make an order for a fine exceeding 20 penalty units and the total sum of orders for fines must not exceed in the aggregate 50 penalty units; and
- the total sum of orders for the payment of restitution or compensation must not exceed \$2000.

If the court considers at any time during the hearing that the charge, if proven, is likely to result in an order prohibited under this clause, the court must adjourn the proceeding to enable the accused to either attend or be brought before the court to answer the charge and may issue a warrant to arrest the accused.

If the court finds a charge proved and imposes a sentence in the absence of the accused the court must give written notice of the order and their right to apply for a rehearing.

Where a charge is heard and determined in the absence of the accused, the accused has a right to apply for a rehearing in accordance with Part 3.4.

PART 3.4—REHEARING

- Clause 88 allows a person, or the informant on the person's behalf, to apply for a rehearing in a proceeding where a sentence was imposed on the person in their absence.
- Clause 89 sets out that a notice of intention to apply for a rehearing must state why the person on whom the sentence was imposed did not appear at the hearing and be filed with the registrar at the venue of the Magistrates' Court at which the sentence was imposed.
- Clause 90 requires that when the applicant is the person on whom the sentence was imposed, they must serve on the respondent a copy of the notice under clause 89 within 7 days after filing the notice and in accordance with the requirements for service on an informant in clause 340.

When the informant makes the application on behalf of the person sentenced, they must serve personally on the person a copy of the notice under clause 89 within 7 days after filing the notice and in accordance with the requirements for personal service in clause 339.

- Clause 91 provides that on filing a notice of intention to apply for a rehearing (clause 89), the sentence (other than an order for the cancellation, suspension or variation of a driver licence) is stayed until the application for rehearing has been heard and, if granted, the charge has been reheard.
- The applicant may apply for a stay of an order cancelling, suspending or varying the driver licence of the person on whom the sentence was imposed pending the determination of the hearing.
- The Magistrates' Court may order that the order cancelling, suspending or varying the driver licence be stayed until the application for rehearing has been heard and, if granted, the charge has been reheard.
- Clause 92 provides that, on an application for a rehearing, the Magistrates' Court may set aside any findings and orders made in the earlier proceeding subject to any terms and conditions that it thinks just and rehear the charge.
- Clause 93 provides that if an applicant fails to appear at the time fixed for the hearing of an application for a rehearing and the application is struck out, the applicant may only reapply under clause 88 with the leave of the Magistrates' Court.
- Clause 94 provides that, on an application for an order that a charge be reheard, if the charge-sheet was served using ordinary service and the court is satisfied that the charge-sheet was not brought to the notice of the applicant before the hearing, the court is required to set aside any findings and orders made in the earlier proceeding and rehear the charge.
- The clause provides that if a person is served with a notice under clause 87(4) (that the court found a charge against them proved and imposed a sentence in their absence) and they apply under clause 88 for a rehearing of the charge within 28 days after the date of service of the notice, the court must set aside the findings and orders made in the earlier proceeding and rehear the charge.

CHAPTER 4—COMMITTAL PROCEEDING

PART 4.1—PRELIMINARY

- Clause 95 defines the registrar to mean the registrar at the venue of the Magistrates' Court at which a committal proceeding is, or is to be, held.
- Clause 96 provides that a committal proceeding must be held where the accused is charged with an indictable offence. The exception is cases where the charge is heard and determined summarily or a direct indictment is filed by the DPP pursuant to common law or clause 161. Clause 28 indicates when an indictable offence may be heard and determined summarily.
- Legislation governing committal proceedings is currently located in Schedule 5 to the **Magistrates' Court Act 1989**. In this Bill, a committal proceeding refers to the whole committal process unlike Schedule 5 to the **Magistrates' Court Act 1989** which sometimes uses a committal proceeding to refer to a committal hearing.
- Clause 97 lists the purposes of a committal proceeding which include—
- determining whether an indictable offence is appropriate to be heard and determined summarily;
 - determining whether there is evidence of sufficient weight to support a conviction;
 - determining how the accused proposes to plead to the charge; and
 - ensuring that there is a fair trial, if the accused is committed for trial.
- Clause 98 provides that a committal proceeding commences on the commencement of a filing hearing. This is different from the commencement of a criminal proceeding. Clause 5 indicates how a criminal proceeding is commenced. Clause 6(4) provides that the informant may include a request for a committal proceeding on the charge-sheet (when the criminal proceeding commences). Clause 10(2) indicates that a proceeding for an indictable offence that may be heard and determined summarily may be listed for a filing hearing, having regard to any request for a filing hearing from the informant. However, an indictable offence that cannot be heard and determined summarily must be listed for a filing hearing. Clause 102 provides for the fixing of a date for a filing hearing.

Clause 99 provides that the court must determine a committal proceeding within 2 months after the committal mention hearing (or final committal mention hearing, if more than one is held) for a sexual offence where the complainant is a child or person with a cognitive impairment and a witness other than the complainant is to be cross-examined in the committal hearing.

Subclause (3) provides that if the committal proceeding is for this type of sexual offence, the court may fix a longer period for determination if satisfied that it is in the interests of justice having regard to the seriousness of the offence and the reason why a longer period is required.

Subclause (4) sets out circumstances in which the 2 month time limit does not apply.

Subclause (5) provides that if the committal proceeding for this type of sexual offence has not been determined before the relevant period expires, on the application of the accused, the court may order that the accused be discharged.

Clause 100 lists the types of hearings that may be held in a committal proceeding.

Consistent with the approach throughout the Bill, the clause includes a requirement that the accused attend all hearings in a committal proceeding unless expressly excused. There is a power to excuse attendance in clause 135, in the case of a committal hearing, and clause 329, in other cases.

This provision is designed to assist in explaining what may occur in a committal proceeding.

PART 4.2—FILING HEARING

Clause 101 provides that, at a filing hearing, the court may set a date for a committal mention hearing, set a time for service of a hand-up brief and make orders or give directions it considers necessary.

Clause 102 provides that the date set for a filing hearing must be within 7 days after filing the charge-sheet (if the accused has been arrested and either remanded in custody or granted bail) or within 28 days after the charge-sheet is filed (if a summons to answer a charge is issued in respect of the accused).

These time limits are currently set out in rule 4 of the Magistrates' Court (Committals) Rules 1999.

PART 4.3—COMPULSORY EXAMINATION

Clause 103 regulates the timing of an informant's application for a compulsory examination order.

Subclauses (2) and (3) provide that the informant may only apply for this order after the relevant charge-sheet has been filed and before any committal hearing commences. The court, however, has a discretion to allow an application to be made after the committal mention hearing if satisfied that it is in the interests of justice.

Subclause (4) sets out the information which the informant is required to include in the application. This includes information about whether the person sought to be examined is or has been a suspect in relation to the charge to which the proposed examination relates.

Subclause (6) specifically provides that if the person is or has been a suspect, the informant must give reasonable notice of the application to the person or their legal representative.

Subclause (7) provides that the accused is not a party to this application nor can they address the court in respect of it. This process involves the examination of a potential witness. If the informant proposes to rely on the evidence of this potential witness, the informant must disclose a transcript of the person's evidence, or a statement prepared by the person, as part of the hand-up brief (see clause 106(1)(d)(ii)). If the evidence forms part of the hand-up brief, the accused may seek leave to cross-examine the witness under Part 4.5.

Clauses 103–106 are based on section 56A of the **Magistrates' Court Act 1989**.

Clause 104 provides that the court may order a person to attend on a specific date to be examined by, or on behalf of, the informant or to produce relevant material, if the court is satisfied that it is in the interests of justice to do so.

Clause 105 provides that the informant must serve notice of an order made under clause 104(1) on both the subject of the order and the accused.

Subclause (2) sets out requirements as to the form and service of such a notice.

Subclause (3) provides that section 134(1) of the **Magistrates' Court Act 1989** (contempt of court) applies to anyone ordered to attend court under clause 104(1) as if the order were a summons and they were a witness who had been given or tendered any required conduct money.

Clause 106 provides that a person ordered to attend court under clause 104(1) may be legally represented at the hearing and address the court.

Subclause (2) requires witnesses at a compulsory hearing to give evidence under oath by examination-in-chief and for the evidence to be recorded as it is in committal hearings.

Subclauses (3) and (4) allow the accused to attend a compulsory examination hearing and, if the court determines that there are exceptional circumstances, the accused may address the court, personally or through their legal practitioner, but may not cross-examine witnesses.

If the informant proposes to rely on the evidence of this potential witness, the informant must disclose a transcript of the person's evidence, or a statement prepared by the person, as part of the hand-up brief (see clause 110(1)(d)(v)). If the evidence forms part of the hand-up brief, the accused may seek leave to cross-examine the witness under Part 4.5

Nothing in the clause excludes or limits any other law regarding the competence or compellability of a witness to give evidence.

PART 4.4—PRE-HEARING DISCLOSURE OF PROSECUTION CASE

Clause 107 provides that the informant must serve on the accused a hand-up brief complying with clause 110 (Contents of hand-up brief). However, the informant is not required to serve this brief if a plea brief has been served under clause 116 and the accused pleads guilty.

Subclause (3) obliges the prosecution to serve a list of prior convictions on the accused, or a statement that the accused has no prior convictions, at the same time as the hand-up brief is served.

It is appropriate that the issue of prior convictions be dealt with differently than it is in summary proceedings. In summary proceedings, prior convictions form part of the preliminary brief and the full brief as the brief discloses the prosecution case to the accused. It is inappropriate to include prior convictions of the accused in a hand-up brief because the hand-up brief must

be filed with the registrar and a magistrate will then have access to that material (see clause 109).

Clause 108 provides that a hand-up brief must be served at least 42 days before the committal mention hearing unless the court fixes another period or the accused gives written consent to a lesser period.

The clause requires a hand-up brief to be served personally on the accused (in accordance with clause 339) unless the informant is satisfied that ordinary service is appropriate in all the circumstances of which they are aware, specifically considering certain matters.

Clause 109 separates out the additional obligation of the informant to file the hand-up brief and to forward it to the DPP, if the DPP is conducting the committal proceeding.

Clause 110 sets out information that must be included in the hand-up brief. A hand-up brief must contain a range of matters including—

- the date of the committal mention hearing;
- the importance of obtaining legal representation and how to contact Victoria Legal Aid;
- a summary of the material facts;
- any information, document or thing on which the prosecution intends to rely in the committal proceeding (including statements from witnesses, transcripts of interviews and photographs); and
- any other information, document or thing in the prosecution's possession that is relevant to the offence.

Clause 122(2) allows the prosecution to withhold material on specified grounds, including (by reference to clause 45) any grounds on which objection could be taken to material required by a witness summons. Clause 363 saves any other grounds on which material can be legally withheld.

Clause 111 sets out the informant's continuing obligation of disclosure regarding material that comes into their possession or to their notice after service of the hand-up brief, which would have been required to be served in the hand-up brief.

Subclause (2) requires the informant to serve on the accused a copy of the document or list, file a copy with the registrar and, if the DPP is conducting the committal proceeding, forward another copy to the DPP. The informant must do so as soon as practicable after the document or material comes into their possession or to their notice.

The clause does not apply to a plea brief.

Clause 112 sets out the rules relating to statements which the prosecution intends to tender in a committal proceeding.

The clause requires that statements be—

- in the form of an affidavit; or
- signed by the person making the statement with an appropriately witnessed acknowledgement that the statement is true, correct and made with awareness of the penalties of perjury; or
- in a form, and attested to in a manner, prescribed by the rules of court.

Subclauses (2) and (3) set out special requirements for statements made by persons under 18 years and those who cannot read.

Subclause (4) provides that anyone who acknowledges a statement they know to be false is liable to the penalties for perjury.

Clause 113 sets out the rules in relation to recordings. The clause provides that transcripts of audio or video recordings of examinations (under clause 106, being the compulsory examination procedure) or of the evidence-in-chief of a witness (under section 37B of the **Evidence Act 1958**) must be accompanied by an affidavit sworn by the person who asked the questions or made the recording attesting to the accuracy of the recording.

Subclause (2) provides that a person who knowingly and falsely acknowledges the contents of a recording may be dealt with as if the material had been given as evidence in court.

Clause 114 provides that the informant must not disclose the address or telephone number of any person in the material provided to the accused under this Division unless the Magistrates' Court permits or the informant believes that the material either does not identify such information as particular to any person or is relevant to the offence charged and is not likely to present a risk to the welfare or physical safety of a person.

The informant may delete or render illegible the relevant information before serving the material on the accused.

Under subclause (3), the court may permit disclosure if the address or telephone number is relevant to the offence charged and either—

- disclosure is not likely to pose a reasonably ascertainable risk to the safety of the witness; or
- the interests of justice outweigh any reasonably ascertainable risk.

In considering whether it is in the interests of justice the court must weigh the right to privacy of the witness against the right of the accused to prepare properly for their hearing. The new balancing exercise the court is required to undertake recognises the right of a person to their privacy and reputation as found in section 13 of the **Charter of Human Rights and Responsibilities**.

Clause 115 enables the accused to inspect the exhibits at a time and place agreed to by the parties.

Clause 116 provides that if the accused or a legal practitioner representing the accused gives written consent, the informant may serve the accused with a plea brief that complies with clause 117 any time before a hand-up brief is served.

The clause sets out relevant service and filing requirements for the plea brief.

The time period for service has been changed from 5 to 7 days because, in practice, most periods are calculated from a day which will have been a court day, and thus ordinarily a weekday. Accordingly, most time periods in the Bill calculated in days are expressed as multiples of seven.

Clause 117 sets out information that must be included in the plea brief.

The plea brief must include a copy of any statement from an alleged victim concerning the circumstances of the offence which would be admissible in evidence and is in the possession of the informant. The informant may also include in the plea brief any other statement relevant to the charge and a copy of the record of interview.

The clause provides that clause 112 (Rules with respect to statements) and clause 114 (Disclosure of addresses or telephone number of witness) apply to statements included in a plea brief.

The plea brief provides a mechanism by which the informant does not need to prepare a full hand-up brief where early discussions between the prosecution and the accused have resolved that the accused will plead guilty to a charge or charges.

PART 4.5—CASE DIRECTION

Clause 118 provides that the accused and either the DPP or informant (as applicable), must jointly file a case direction notice with the registrar at least 7 days before the committal mention hearing if a hand-up brief is served.

Subclause (2) provides that if the accused is unrepresented and does not sign a case direction notice, the DPP or informant must file the notice despite the accused not having participated in discussions or activities connected with its preparation.

Subclause (3) provides that if the court fixes another date for a committal mention hearing, it has a discretion to direct that another case direction notice be jointly filed with the registrar at least 7 days before that date or within any other period. The court may also give any direction that it thinks fit as to the matters with which that case direction notice will deal.

Clause 119 sets out the information which is both required and permitted to be in a case direction notice.

The purpose of the case direction notice is to get the parties to discuss a case before it is heard in court and to provide the court with notice as to how the parties propose that the case proceed. For example, the parties may have resolved the case as a plea of guilty to certain charges and that other charges will be withdrawn. Alternatively, a committal hearing may be required and the notice will set out whether the parties agree on whether certain witnesses should be called. The notice may also contain information about whether there are any issues about the disclosure of the prosecution case that need to be resolved.

This clause is based on clause 11AA of Schedule 5 to the **Magistrates' Court Act 1989**. However, the case direction notice now includes matters from clause 12 of Schedule 5. The effect of this change is that the accused can, in one document rather than two, deal with all matters concerning access to exhibits and whether they are prepared to proceed in the absence of the completion of certain forensic information.

Clause 120 provides a discretion to the court to permit an accused to apply for leave to cross-examine a witness after the expiry of the period for filing a case direction notice if the court is satisfied that it is in the interests of justice to do so, having regard to the reason why the application was not made earlier.

If the court allows this application to be made, the accused and either the DPP or informant (as applicable) must jointly file another case direction notice at least 7 days before the next committal mention hearing or within any other period the court fixes. This case direction notice does not need to specify the procedure by which it is proposed that the matter be dealt with or indicate whether an adjournment of the committal mention hearing would assist the parties in determining how the matter should be dealt with (clause 119(b)).

An application for leave to cross-examine witnesses does not need to be included in the first case direction notice because the parties may be discussing whether the case can be resolved or whether the prosecution should disclose other items.

By permitting a late application for leave to cross-examine witnesses to be made, the accused does not lose an opportunity to cross-examine witnesses simply because, for instance, a case could not be resolved.

Clause 121 provides that if the parties have indicated in a case direction notice (under clause 118) that adjourning the committal mention hearing would help them to determine how the matter should be dealt with, the court has a discretion to adjourn the hearing for up to 14 days. If it does so it must give notice to the parties of the new date.

If the accused has been granted bail in respect of the committal proceeding, the court may extend their bail to the new date of the hearing.

If the court extends bail under this clause it is required to give the accused and any sureties written notice of the extension of bail and the date, time and place at which the accused is bound to attend and the consequences of failure to attend.

Providing a short adjournment in some cases will enable the parties to resolve outstanding issues without appearing in court simply to seek an adjournment for those discussions to continue.

Clause 122 provides that while the informant is required to comply with a reasonable request (referred to in clause 119(e)(i) or (ii)) for a copy of an item, if the informant considers that it is not reasonable to copy the item due to its size or nature, the informant must allow the accused to inspect it on or before the committal mention hearing.

The clause provides that the informant may object to producing an item requested under clause 119(e)(i) or (ii) on any ground referred to in clauses 45 (Grounds on which informant may refuse disclosure) or 114 (Disclosure of address or telephone number of witness).

Subclause (4) sets out that it does not prevent the accused from applying for a witness summons to be issued in respect of an item listed in the hand-up brief.

Subclause (4) also provides that the informant is not required to produce an item listed in the hand-up brief if it is not requested under clause 119(e)(i) or a witness summons is not issued in respect of it, unless the court requires it to be produced.

Further, subclause (4) does not prevent the court or the informant proceeding, or proceeding further, with the committal hearing, irrespective of any statement included by the accused in the notice in clause 119(f) (that the accused is, or is not, prepared to proceed, or proceed further, with the committal hearing while a forensic procedure remains uncompleted).

As the note to this clause indicates, if the informant objects to the disclosure of material, the Court may deal with that objection at a committal mention hearing.

Clause 123 provides that the court must not grant leave to cross-examine a witness who—

- is a complainant in a proceeding that relates (wholly or partly) to a charge for a sexual offence;
- was a child or person with a cognitive impairment when the criminal proceeding was commenced; and
- made a statement which was provided in the hand-up brief or whose evidence-in-chief or examination at a compulsory hearing was recorded and a transcript was served in the hand-up brief.

Clause 124 provides that a witness (who is not a witness in the sexual offence cases referred to in clause 123) can only be cross-examined when leave is granted under this clause.

The case direction notice (clauses 119 and 120) may indicate that the informant consents to leave being granted to the accused to cross-examine a witness. Where this occurs, subclause (2) provides that the court must grant leave unless it considers that it is inappropriate to do so.

Where the informant does not consent to leave, before the court grants leave it must be satisfied that the accused has identified an issue to which the proposed questioning relates and has provided a reason why the evidence of the witness is relevant to that issue and cross-examination of the witness on that issue is justified.

This is sometimes described as the "hurdle" test as it requires the accused to identify one issue on which cross-examination should be permitted. If that test is satisfied, the witness may be cross-examined. Clause 132 then provides the court with the power to forbid a question during cross-examination if the accused cannot meet the same test which is applied at this stage.

Subclause (4) sets out considerations to which the court must have regard in determining whether cross-examination is justified.

Subclause (5) includes separate considerations to which the court must have regard where the witness is under 18 years old. These considerations apply in addition to those set out under subclause (4). They recognise that different procedures are required when children and young people are involved with the criminal justice system.

PART 4.6—COMMITTAL MENTION AND CASE CONFERENCE

Clause 125 sets out what the court may do at a committal mention hearing. The committal mention hearing is the central case management hearing in committal proceedings.

The clause provides that if the court is considering changing the date for a committal mention hearing so that the accused may obtain legal representation, the court is required to consider whether the accused has made reasonable attempts to obtain representation.

Clause 126 provides that a committal mention hearing must be held within 3 months after the commencement of the criminal proceeding for the offence (rather than the commencement of the committal proceeding), in the case of a sexual offence. Clause 6 sets out how a criminal proceeding is commenced.

In all other cases, the committal mention hearing must be held within 6 months after the commencement of the criminal proceeding for the offence.

Subclause (3) provides that neither of these time periods applies if the accused failed to attend in accordance with the conditions of bail or if an arrest warrant has been issued after a committal mention hearing was required to be held and the accused has not been arrested. The time limits also do not apply where the accused requests that a committal mention hearing be held after the period for holding a committal mention hearing has expired and the court is satisfied that the request should be granted in the interests of justice. This can arise where an indictable offence is initially proposed to be dealt with summarily but then the accused decides that they will not consent to summary jurisdiction and a committal proceeding needs to be held.

The clause provides a discretion to the court to fix a longer period for a committal mention hearing if satisfied that it is in the interests of justice having regard to both the seriousness of the offence and the reason a longer period is required.

The clause provides a discretion to the court to discharge the accused, on the accused's application, if a committal mention hearing has not been held before the expiry of the two time periods described in this clause, or any longer period fixed by the court.

This clause is based on clause 4 of Schedule 5 to the **Magistrates' Court Act 1989**. This clause simplifies the test to be applied and addresses a gap in the current provision which does not indicate what the court must consider where an application for an extension of time is made before the time limit has expired.

Clause 127 provides a discretion to the court to direct the parties to a committal proceeding to appear at a committal case conference.

The clause specifies that the conference be conducted by a magistrate and that, when practicable, should be conducted on the committal mention hearing date.

Subclause (3) sets out that certain evidence is not admissible in any proceeding before a court, tribunal or inquiry where evidence may be given before a person acting judicially unless the parties to a committal case conference agree to the giving of the evidence. This is intended to facilitate open and frank discussion between the parties with the aim of resolving matters at an early stage without proceeding to a committal hearing.

This clause is based on clause 4A of Schedule 5 to the **Magistrates' Court Act 1989**. Clause 127(3) of the Bill is a new provision which is designed to protect the confidentiality, and promote the candour, of the discussions held as part of the case conference.

PART 4.7—COMMITTAL HEARING

Clause 128 sets out what the court may do at a committal hearing.

The court may offer a summary hearing or determine an application for a summary hearing in accordance with clause 30 which sets out the procedure for indictable offences which may be heard and determined summarily. Clause 30(7) specifically deals with the admissibility of evidence in a summary proceeding where a committal hearing has commenced before the court grants a summary hearing.

The court may hear evidence after granting leave to either cross-examine witnesses on whose evidence the informant intends to rely in the committal proceeding or to call a witness to give oral evidence-in-chief.

The clause provides that if the committal hearing proceeds, the court must determine whether there is sufficient evidence to support a conviction.

The clause provides the court with a discretion to make any order or give any direction it considers necessary.

Clause 129 provides that if leave is granted to cross-examine a witness referred to in clause 124 (which sets out the procedure for cross-examining witnesses other than those in certain sexual offence cases), or to call them to give oral evidence-in-chief, the witness is required to attend to give evidence on the date to which the committal hearing is adjourned.

The informant is required to ensure that the witness attends at the relevant time and place. Unless excused by the court, a witness who is required to attend a committal hearing must attend on the date to which the hearing is adjourned.

The clause notes that clause 134 sets out the consequences of a witness's failure to attend a committal hearing, which can include their statement being inadmissible.

This is based on clause 14 of Schedule 5 to the **Magistrates' Court Act 1989**.

Clause 130 provides that a witness can be called to give evidence at a committal hearing if the court grants leave for the cross-examination of the witness (under clause 124) or to the prosecution to call the witness to give oral evidence in chief.

Subclause (3) indicates that if leave is granted to cross-examine a witness under clause 124, the evidence-in-chief of the witness must be confined to the witness identifying themselves and attesting to the truthfulness of the statement or recording.

However, subclauses (4) and (5) provide a discretion to the court to give leave to a witness to give oral evidence-in-chief supplementary to the statement or recording, if satisfied that it is in the interests of justice to do so. Further, if exceptional circumstances exist, the court has a discretion to give leave to the witness to give the whole of their evidence-in-chief orally.

Either party can apply for the court to permit a statement or transcript to be read out before the witness is asked to attest to its truthfulness or is cross-examined. The witness or any other person that the court considers appropriate may read out the statement or transcript.

A witness who gives evidence-in-chief may be cross-examined and re-examined.

Subclause (8) provides that evidence given at committal hearings must comply with the recording requirements in Part VI of the **Evidence Act 1958**.

Clause 131 prohibits a witness whose address or telephone number was not disclosed to the accused (under Part 4.4) as part of the hand-up brief from disclosing that information to the court unless the court permits disclosure on an application made by either party.

The clause lists the matters of which the court must be satisfied before it grants the application.

When first called to give evidence, a witness is asked questions to identify them. The purpose of this clause is to indicate that a witness should not normally be asked to disclose their address or telephone number.

Clause 132 provides that, after obtaining leave to cross-examine a witness, an accused is not limited to cross-examining the witness on the issue with respect to which leave was obtained.

The clause provides a discretion to the court to disallow questions to a witness during cross-examination in a committal hearing if it appears that the accused has failed to identify an issue to which the question relates and has not provided a reason why the evidence of the witness is relevant to that issue or that the question is not justified. This discretion does not limit any other power of the court to disallow questions.

The clause provides that the court must have regard to matters referred to in clause 124(4) and (5) when determining whether a question is justified.

Clause 133 applies to a committal hearing relating to any charge for a sexual offence.

Subclause (2) requires the informant to be represented by a legal practitioner.

The clause lists those allowed to be present while the complainant is giving evidence or a recording of their evidence or examination under clause 106 is being played.

The clause gives a discretion to the court to authorise a person to be present at this time, although it must give reasons for doing so.

Clause 134 sets out ways in which the court may proceed if a witness who is required to attend a committal hearing does not attend and the powers of the court to compel the attendance of the witness.

Subclause (2) provides that the statement or recorded evidence or examination of the witness is inadmissible at the committal hearing if the court chooses to continue the hearing in the absence of the witness.

Clause 135 enables an accused to apply to the court before or during a committal hearing for permission to be absent from the hearing for a specified period. If the application is granted, the clause permits the committal hearing to continue in the absence of the accused.

The clause provides a discretion to the court to grant this application if it is satisfied that there are special circumstances in respect of the accused and it considers that the hearing cannot be postponed without undue prejudice or inconvenience to the prosecution, any other accused or any witness.

The power under clause 329(3) to excuse the attendance of an accused does not apply to this clause.

If absent, the accused will receive a transcript of evidence given in the accused's absence if the accused is committed for trial. Clause 130(8) requires evidence in a committal hearing to be recorded and clause 147 provides that the accused is entitled to a copy of the depositions (which includes a transcript of evidence given at the committal hearing) if the accused is committed for trial.

Clause 136 allows the court to continue a committal hearing in the absence of the accused if it considers that the hearing cannot be postponed without undue prejudice or inconvenience to the prosecution, any other accused or any witness in circumstances where the accused absconds, has been ordered to be removed or is absent without permission.

If the accused is absent, they will receive a transcript of evidence given in the accused's absence if the accused is committed for trial. Clause 130(8) requires evidence in a committal hearing to be recorded and clause 147 provides that the accused is entitled to a copy of the depositions (which includes a transcript of evidence given at the committal hearing) if the accused is committed for trial.

Clause 137 provides that when a committal hearing is continued in the absence of an accused (who is a natural person) and they are not present when the evidence for the prosecution is concluded, the court is required to postpone the committal hearing until they are present or, if any other accused is present, postpone the committal hearing in respect of the charge against the absent accused.

This clause does not apply, however, if the court makes an order under clause 141(4)(a) for the accused to be discharged.

Clause 138 provides that on the attendance of an accused who has been absent from a committal hearing without legal representation during their absence the court must direct that either the record of evidence be played or read in the presence of the accused or the accused be given a transcript of the evidence.

The clause provides a discretion to the court (on the application of the accused and subject to clause 124) to recall any witness who gave oral evidence during the accused's absence for further examination.

PART 4.8—EVIDENCE IN COMMITTAL PROCEEDING

- Clause 139 lists the types of non-oral evidentiary material which, on proof of service on the accused in accordance with Part 4.4, are admissible as if their contents were a record of oral evidence.

The clause provides a discretion to the court to rule that a statement, any exhibit or document referred to in a statement or the contents of a recording is inadmissible in whole or in part.

The clause provides that a recording, a transcript of which has been served in the hand-up brief, is admissible if it is proved that the accused and their legal practitioner were provided with a reasonable opportunity to listen to or view (as applicable) the recording.

The majority of committal proceedings are determined at a committal mention based on the evidence contained in the hand-up brief. This clause deals with the evidentiary status of the materials contained in that brief.

- Clause 140 provides that if the accused makes an admission of any relevant fact or matter during a committal proceeding (under section 184 of the **Evidence Act 2008**) the court is required to cause the admission to be included in the record of the proceeding.

The clause provides that an accused's admission during a committal proceeding may be used in evidence at the subsequent trial.

PART 4.9—DETERMINATION OF COMMITTAL PROCEEDING

- Clause 141 requires the court to enquire, after the prosecution's evidence concludes, whether the accused intends to call any witnesses or make an submission.

If the accused is unrepresented, the court must inform them in a manner likely to be understood that they have the right to answer the charge and must choose either to give sworn evidence or to say nothing in answer to the charge and that, in either case, they may call any witness to give sworn evidence for them. The court must then ask the accused what they intend to do.

The clause sets out that the court must proceed at the conclusion of all evidence and submissions by—

- discharging the accused if it considers that the evidence is insufficient to support a conviction for an indictable offence;
- committing the accused for trial (in accordance with clause 144 which sets out the procedure for committing the accused for trial) if it considers that the evidence is sufficient to support a conviction for the offence in question;
- adjourning the committal proceeding to enable the informant to file a charge-sheet in respect of another offence if it considers that the evidence is sufficient to support a conviction for an indictable offence other than that with which the accused is charged. If a charge-sheet is filed, the court must commit the accused for trial in accordance with clause 144. If a charge-sheet is not filed within the adjournment period, the court is required to discharge the accused.

Clause 144 sets out the procedures for the court to follow if it decides to commit the accused for trial.

This clause differs from clause 23(2)(c) and (3)(c) of Schedule 5 to the **Magistrates' Court Act 1989**. Under Schedule 5, if the court considers that the evidence is of sufficient weight to support a conviction for another offence, the court must "direct the informant to prepare a charge for that offence and cause the defendant to be charged with that offence".

This clause removes the power of the court to direct that a charge be prepared and filed because the charge to be filed is a matter for the prosecution. The court can then commit or discharge the accused based on the charges filed by the prosecution.

Clause 142 sets out that, if a plea brief is served, the court is required to proceed at the committal mention hearing by asking how the accused pleads to the charge to which the committal proceeding relates.

If the accused pleads guilty and the court considers that there is sufficient evidence to support a conviction for the charged offence, it must commit the accused for trial (in accordance with clause 144).

If the accused does not plead guilty to the charged offence, the court must direct the informant to prepare and serve a hand-up brief.

The plea brief provides a quicker way of proceeding through the committal process where a guilty plea is intended.

Clause 143 provides that an accused may elect to stand trial at any time after service of a hand-up brief.

The clause sets out that an election is made by filing a notice and serving it on the informant (in accordance with clause 340).

As soon as practicable after filing the notice, the court is required to direct that an accused be brought before the court (if they are in custody) or direct that either a summons to attend or an arrest warrant be issued. Clause 330(4) authorises a court to issue a warrant whenever an accused fails to attend court when required to do so.

Once the accused attends court, the clause requires the court to commit the accused for trial in accordance with clause 140 if it considers that the accused understands the nature and consequences of the election.

An election to stand trial provides a quicker way of proceeding through the committal process. This clause provides that an election to stand trial *determines* a committal proceeding. This is different from section 56(1)(b) of the **Magistrates' Court Act 1989** which provides that an election to stand trial does not involve a committal proceeding. The approach in the Bill reflects the fact that an accused can only elect to stand trial where a committal proceeding has commenced. The accused's election simply changes the way in which a committal proceeding is conducted and determined.

Clause 144 provides the procedure to be followed before and on committing the accused for trial.

The clause requires the court, before committing an accused for trial, to ask whether they plead guilty or not guilty and to inform them that a guilty plea and the stage at which it was indicated may be a relevant consideration at sentencing. If the accused does not indicate whether they plead guilty or not guilty, the court will treat their silence as not guilty as the prosecution must prove the guilt of the accused unless the accused admits that they are guilty.

The clause sets out the process which the court must follow when committing an accused for trial—

- If an accused was unrepresented at the committal proceeding, the court must explain to them the importance of obtaining representation at trial and their right to legal aid if eligible. The court must also warn the accused that if they wish to be legally aided, it is their responsibility to apply to Victoria Legal Aid as soon as possible.
- If relevant, the court must explain in a manner likely to be understood by the accused provisions relating to alibi evidence (clause 190), rules (5) to (5C) in section 37A(1) of the **Evidence Act 1958** (these rules involve restrictions on cross-examining a complainant about their sexual history) and any other information required to be given by the rules of court.
- Where the accused is a natural person, the court must either remand them in custody or grant bail until trial or a fixed date before trial.
- Where the accused is a corporation, the court must order it to appear (by a representative or legal practitioner) on the day the trial is listed to commence or another specified day. The note refers to clause 252 which provides that it is an offence for a corporate accused to fail to appear on any day on which they are required to appear.

PART 4.10—PROCEDURE AFTER COMMITTAL

Clause 145 requires the Magistrates' Court to transfer related summary offences to the County or Supreme Court on committal of an accused for trial.

This is a new process. Currently, when an accused is committed for trial, any related summary offences are adjourned *sine die*. These summary offences may then be dealt with after the proceeding in relation to the indictable offence has been completed. In many cases it will be more efficient for the County or Supreme Court to deal with the summary offences. In some cases this may involve the prosecution withdrawing the summary charges because these charges were alternative offences to the indictable offence and the accused is being dealt with for the indictable offence. In other cases, the matters may

be able to be dealt with as part of a plea which also deals with the indictable offence. There may also be occasions in which it is efficient and practicable for the court to hear further evidence to determine the summary charge. Alternatively, it may be more appropriate to remit the summary offence to the Magistrates' Court to be determined.

The clause provides a discretion to the court to order that related charges remain in the Magistrates' Court, but only if both parties consent.

- Clause 146 sets out the documents which the registrar must forward to the DPP after the committal. Depositions are defined in clause 3.
- Clause 147 provides that, as soon as possible after being committed for trial, the accused is entitled to receive copies of certain documents from the DPP and to examine any exhibits. This forms an important part of the prosecution's disclosure obligations.
- Clause 148 provides that if a corporate accused does not appear at its committal proceeding and is committed for trial, the DPP or informant (as applicable) must serve a notice on the accused in accordance with clause 341 within 14 days after the committal. The notice must set out certain details including the fact that the accused has been committed for trial, when the accused's trial is listed to commence and when the accused must appear and that if the accused does not appear, the court may hear and determine the charge in the absence of the accused. An accused may appear by a representative or a legal practitioner. The ability of a corporate accused to nominate a representative is provided for in clause 334.

PART 4.11—TAKING EVIDENCE AFTER ACCUSED COMMITTED FOR TRIAL

- Clause 149 provides that an accused who has been committed for trial may apply to the court for an order that the evidence of a person be taken at a time and place fixed by the court.

The applicant must give notice of the application to the DPP and any co-accused at least 14 days before it is heard or any shorter period to which the DPP agrees.

Clause 198 provides a power to examine a witness that overlaps with this clause. Clause 198 enables the County or Supreme Court to order that the evidence of a witness be taken where the witness was not available to be examined at a committal hearing or has subsequently made a further statement. The Bill does not

provide a strict demarcation concerning the court in which the application should be made. However, as a matter of practice, the closer in time the matter is to the completion of the committal proceeding the more likely it is that an application should be made in the Magistrates' Court. Also, if the County or Supreme Court has commenced its case management processes for a case, an application should normally be made in that court.

This clause is based on clause 24 of Schedule 5 to the **Magistrates' Court Act 1989**. It differs from Schedule 5 because it only applies to an application by the accused. Schedule 5 provides for an application to be made by the DPP. The primary purpose of this provision is to ensure disclosure of the prosecution case. The DPP does not use this existing power. Therefore, this clause has been limited to an application by the accused.

Clause 150 provides a discretion to the court, after an accused has been committed for trial, to order that the evidence of a person be taken.

Subclause (2) provides that the court cannot make an order under this clause in respect of certain persons (e.g. where a witness was examined at the committal hearing or made a statement that formed part of the evidentiary material on which the accused was committed for trial) unless the person subsequently makes a statement or supplementary statement which has been attested.

Before it makes an order, the court must be satisfied, in relation to the statement or supplementary statement of a person, that—

- there is an issue to which the proposed evidence relates;
- there is a reason why the evidence is relevant to that issue; and
- taking evidence from the person is justified.

In determining whether taking evidence from the person is justified, the court is required to have regard to the matters listed in clause 124(4) (except for paragraph (c)) and 124(5). Clause 124 sets out the matters the court must consider in determining whether cross-examination is justified. This also includes special considerations where a witness is under 18 years of age. Paragraph (c) of clause 124(4) is not relevant because it concerns the test to be considered when determining whether an accused should be committed for trial. As the

accused has already been committed for trial, this consideration is irrelevant.

- Clause 151 provides that, if the accused obtains an order (under clause 150(1) with respect to examining a prosecution witness, the informant is required to ensure that the witness attends at the relevant time and place for the examination.

Subclause (3) indicates that if a witness fails to attend at this hearing, the court may exercise certain powers including issue a summons or warrant for the arrest of the witness.

- Clause 152 provides that, if the accused obtains an order (under clause 150(1)), the DPP may appear and address the court at the hearing at which evidence is taken.

The clause provides the court with a discretion to make any order it considers in the interests of justice with respect to the examination or cross-examination of a person giving evidence under this clause.

A person cross-examining a witness giving evidence under this section is not limited to the issue with respect to which the order was made under clause 150(1). This operates in the same way as the "Hurdle" test referred to in clause 124.

Cross-examination of a person under this clause must comply with clause 132 (setting out rules for the cross-examination of witnesses) and the evidence must be given and recorded in the same manner as evidence at a committal hearing.

In relation to the record of the evidence, the clause provides that it must be forwarded to the DPP as soon as possible and it has the effect, and must be treated, as if it were a record of evidence given at the committal hearing.

PART 4.12—GENERAL

- Clause 153 sets out the actions which the court can take at a special mention hearing. A special mention hearing is often used by the court for case management purposes. Paragraph (b) indicates that the court may make any order or give any direction for the management of the committal proceeding.

- Clause 154 provides that, if a corporate accused does not appear in answer to a summons for an indictable offence, the court may conduct a committal proceeding in the absence of the accused if satisfied that the accused is aware of the charge and date of the related committal mention hearing and that is appropriate to do so.

If the court conducts a committal proceeding in the corporate accused's absence, the clause provides it with a discretion to dispense with or vary any requirement imposed under this Chapter.

Clause 155 provides that the Bill does not change the nature of a committal proceeding from that which existed immediately before the commencement of this clause.

Clause 156 provides that this Chapter does not affect certain powers of the DPP to file an indictment for an offence where the court orders the person to be discharged in relation to that offence. This Chapter also does not affect the power of the DPP to discontinue a proceeding or not to file an indictment within the time limits set out in clause 163 in relation to an offence in respect of which a person has been committed for trial.

Clause 157 provides that the accused may apply in writing to the DPP for the DPP to issue written directions for the return of property which was tendered in evidence during a committal proceeding.

Release of property under this clause may be subject to a condition that it must be produced at trial. The DPP may also impose any other conditions the DPP thinks fit.

The clause enables the DPP to require a person to whom property is released under this clause to give an undertaking to comply with the condition to which release is subject.

The clause creates an offence of failing, without reasonable cause, to comply with an undertaking.

CHAPTER 5—TRIAL ON INDICTMENT

PART 5.1—INTRODUCTION

Clause 158 provides that this Chapter applies if an accused is committed for trial under Chapter 4 or a direct indictment is filed against an accused. Clause 3 defines direct indictment.

Unless expressly provided for, or necessarily implied, the powers in this Chapter are available from the point of committal for trial or the filing of a direct indictment, as the case may be.

PART 5.2—INDICTMENT AND PLACE OF TRIAL

Clause 159 states that, subject to the **Public Prosecutions Act 1994**, the DPP or a Crown Prosecutor in the name of the DPP may file an indictment.

Subclause (2) allows an indictment to be filed at any time, except where otherwise provided by or under this Bill or any other Act.

Subclause (3) requires an indictment to be in writing, to be signed by the DPP or a Crown Prosecutor in the name of the DPP, and to comply with Schedule 1.

Clause 160 allows an indictment to be filed in the Supreme Court or in the County Court, provided that all of the indictable offences alleged in the indictment are within that court's jurisdiction.

Subclause (2) obliges the DPP or a Crown Prosecutor to have regard to a number of specified factors when determining whether to file an indictment in the Supreme Court or in the County Court.

Clause 161 provides that the filing of a direct indictment commences a criminal proceeding.

Direct indictment is defined in clause 3 and the ways in which a criminal proceeding can be commenced are provided for in clause 5. Clause 3 provides that a direct indictment is an indictment for a charge where the accused was not committed for trial in relation to that charge or a related charge. In the vast majority of cases, however, the charges on the indictment are the same or are related charges to charges on which the accused was committed for trial. In that situation, the indictment does not commence a criminal proceeding.

The most common example of a direct indictment arises where the DPP decides to file an indictment for a charge where the Magistrates' Court discharged the accused at the committal proceeding.

Clause 162 provides that the filing of an indictment other than a direct indictment does not commence a new criminal proceeding against the accused.

The Bill operates on the basis that, where an accused is committed for trial on a charge and the indictment includes a charge for that offence or a related offence, there is one proceeding with different stages of committal and trial.

- Clause 163 sets out the time limits for filing certain indictments. The clause distinguishes between persons committed for trial in respect of three types of offences—
- an offence other than a sexual offence;
 - a sexual offence in which the complainant is a child or a person with a cognitive impairment;
 - any other sexual offence.
- Sexual offence is defined in clause 3.
- Clause 164 applies to the filing of a fresh indictment. A fresh indictment includes a charge for the same offence as an offence charged in an indictment previously filed in court against that accused, or a related offence. The filing of a fresh indictment does not commence a new criminal proceeding. On the filing of a fresh indictment against an accused, proceedings in relation to a charge for the same offence or a related offence in an indictment previously filed in court against that accused are discontinued.
- Clause 177 also refers to when a prosecution may be discontinued by the DPP. Related offence is defined in clause 3.
- A fresh indictment usually contains different charges or fewer charges than an indictment previously filed. For example, this may occur because of an agreement with the accused to plead guilty to some charges or a judge may order severance of some charges on the indictment (see clause 193).
- Clause 165 provides that a court may order that the indictment be amended in any manner that the court thinks necessary unless, having regard to the merits of the case, the required amendment cannot be made without injustice to the accused. This clause is based on section 372 of the **Crimes Act 1958** but does not use the word "defective" because of its uncertain legal meaning.
- An amended indictment must be treated as having been filed in the amended form for the purposes of the trial and all proceedings connected with the trial.
- Clause 166 provides that an indictment is not invalid by reason only of a failure to comply with Schedule 1 (which applies to charges on a charge-sheet or indictment) or for a number of listed technical errors.

This clause is based on sections 370 and 375 of the **Crimes Act 1958**. However, sections 370 and 375 deal with defects in different ways: section 370 provides that "it is *not open to objection* by reason only of a failure to comply...", whereas section 375 provides that "[n]o indictment or presentment shall be held *insufficient*..." by virtue of certain errors. The consequences of an error in an indictment should be the same regardless of the type of error. Accordingly, the phrase "is not invalid" has been used.

Clause 167 allows the Supreme Court to order that an accused be tried in the County Court or the Supreme Court regardless of where the indictment is filed.

This clause is based on sections 359 and 388 of the **Crimes Act 1958** but does not re-enact the requirement to give notice or the entitlement of parties to be present and make submissions. For consistency throughout the Bill all such procedural references have been removed and will be resolved on ordinary principles of procedural fairness.

Section 359(4) which allowed *ex parte* applications to be made has not been re-enacted as *ex parte* applications are not preferred.

Clause 168 allows the Supreme Court or the County Court to order that a proceeding for a charge for an indictable offence that may be heard and determined summarily be transferred to the Magistrates' Court at any time except during trial provided that—

- the accused consents to the transfer; and
- the court considers that the charge is appropriate to be determined summarily, having regard to the matters in clause 29(2).

A court cannot transfer a charge if the Magistrates' Court has previously refused to hear and determine it summarily unless there has been a significant change in the charges against the accused or in the prosecution case against the accused. For example, the charge that the DPP decides to proceed with may be significantly different (involving a lesser offence) than the charge on which the accused was committed for trial.

Clause 168(1) ensures that the accused's right to elect trial on indictable offences is protected by requiring the accused's consent to that process.

If an order is made under this clause, the transferred charge must be heard and determined summarily as provided in clause 168(3).

Clause 169 governs the place of hearing of criminal trials in the Supreme Court or the County Court. Subclause (1) requires such trials to be held closest to the place at which the offence is alleged to have been committed, unless an order is made to change that place under clause 192.

Subclause (2) provides that a proceeding is not invalid because it was conducted at a place other than the place referred to subclause (1).

Clause 170 provides for multiple charges or multiple accused on a single indictment. If an indictment contains more than one charge, the charges must be heard together unless an order is made under clauses 193 (order for separate trial) or 195 (order for separate trial—conspiracy).

If an indictment names more than one accused, whether in the same charge or separate charges, the charges against all accused must be tried together unless an order is made under clause 193 (order for separate trial).

PART 5.3—NOTIFYING ACCUSED OF INDICTMENT

Clause 171 requires the DPP, as soon as practicable after an indictment is filed, to serve a copy of the indictment on the accused and, if the DPP does not have notice that the accused is represented by a legal practitioner, the DPP must also serve a prescribed notice containing information about legal representation and legal aid as well as contact details for Victoria Legal Aid.

If the indictment is a direct indictment, it must be personally served on the accused in accordance with clause 339.

Clause 172 allows the DPP to nominate in writing a business address, email address or fax number for service of documents. The nomination may be included on an indictment or any other document served on the accused.

Clause 340 permits documents to be served on the DPP in accordance with the details nominated under this clause.

Clause 173 requires the DPP to serve a notice with the indictment on a corporate accused stating the date and time specified in an order made under clause 144(2)(d) (regarding an order for a corporate accused to appear) and warning the accused that charges can be heard and determined in the accused's absence.

Clause 214 gives the court the power to try a corporate accused in its absence.

Clause 174 provides a new process to compel the attendance of the accused when a direct indictment has been filed. It replaces the complex processes in sections 66 and 67 of the **Magistrates' Court Act 1989** and the need for a Notice of Trial.

If a direct indictment is filed, the DPP can apply to the court for the issue of a summons or a warrant to arrest the accused in order to compel the attendance of the accused.

On an application for a summons or warrant, the court must, if satisfied that the charge discloses an offence known to law, issue a summons or a warrant.

Subclause (3) prohibits the court from issuing a warrant to arrest in the first instance unless satisfied by sworn evidence that—

- it is probable that the accused will not answer a summons; or
- the accused has absconded, is likely to abscond or is avoiding the service of a summons that has been issued; or
- a warrant is required or authorised by another Act or for other good cause.

Clause 359 provides that an arrested person must, if practicable, be brought before the court which issued the warrant.

Clause 330(4), which applies across the Bill, also authorises a court to issue a warrant whenever an accused fails to attend court when required to do so.

Clause 175 requires the DPP to serve a summons issued under clause 174 by personal service on the accused at least 14 days before the date specified in the summons.

When the summons is served on the accused, it must be accompanied by a copy of the indictment and, if applicable, the notices required by clauses 171 and 173.

Clause 176 requires the execution of a warrant issued under clause 174 to be accompanied by a copy of the indictment and, if applicable, the notice required by clause 171.

PART 5.4—DISCONTINUING A PROSECUTION

Clause 177 provides a new statutory power for the DPP to discontinue a prosecution, replacing the common law *nolle prosequi* power. This new power to discontinue a prosecution vests only in the DPP and not the Attorney General (who will retain the common law *nolle prosequi* power).

The DPP may discontinue a prosecution for an offence against an accused by announcing the discontinuance in court or filing a signed notice in court. The DPP can discontinue a prosecution at any time, whether or not an indictment has been filed, except during trial (when a trial for a charge is completed by a verdict being given by a jury or a jury being discharged from giving a verdict on the indictment.) Accordingly, the DPP may, for instance, discontinue a proceeding after a trial has commenced if the jury is discharged from giving a verdict, or if the Court of Appeal orders a new trial.

If an indictment has not been filed against the accused, the written notice referred to in subclause (1) must be filed in the court to which the accused has been committed for trial.

If the discontinuance is announced in court, the DPP must file a signed notice of the discontinuance as soon as practicable after the announcement.

The DPP must serve a copy of a notice of discontinuance on the accused or, if the accused is dead, on the legal practitioner who last represented the accused or on the next of kin of the accused.

Subclauses (6) and (7) confirm that a discontinuance does not amount to an acquittal and that an accused can be charged again with an offence in respect of which an earlier prosecution has been discontinued.

Clause 178 applies to cases where a prosecution has been discontinued under clause 177 and the person is in custody in relation to that charge. The DPP must immediately notify the person who has legal custody of the person that the prosecution has been discontinued.

On such notification being given, the person in custody must be released, provided that the person is not in custody for any other reason.

PART 5.5—PRE-TRIAL PROCEDURE

Division 1—Directions hearings

- Clause 179 allows the court to conduct one or more directions hearings at any time, other than during a trial. Directions hearings are the main pre-trial case management process in the Bill.
- Clause 180 enables the accused to be arraigned at a directions hearing if an indictment has been filed. The process of arraignment is described in clause 215. A truncated arraignment process is available if the accused pleads not guilty to one or more charges in the indictment and indicates an intention to plead not guilty to any of the remaining charges. In those circumstances the accused can be taken to have pleaded not guilty to those remaining charges.
- Clause 181 sets out the powers of the court at a directions hearing. Subclause (1) gives a broad power for the court to make or vary any direction or order necessary for the fair and efficient conduct of the proceeding.

Without limiting the generality of subclause (1), subclause (2) sets out specific orders that the court may make at directions hearings. These include powers at directions hearings currently in section 5 of the **Crimes (Criminal Trials) Act 1999** but also adds powers to ensure that the court can manage and decide important issues pre-trial. The powers at a directions hearing include the power to—

- require the parties to notify any pre-trial issues that they intend to raise or any orders under clause 199(1) that they intend to seek;
- set a timetable for the hearing of pre-trial issues and orders;
- determine any objection relating to the disclosure of information or material by the prosecution; and
- determine an application for a sentence indication.

Subclause (3) confirms that at a directions hearing, the court can also make any order and other decision that can be made pre-trial. Clause 199(1) sets out which orders and other decisions can be made pre-trial.

Division 2—Pre-trial disclosure

- Clause 182 requires the DPP to file and serve a summary of the prosecution opening and a notice of pre-trial admissions at least 28 days before the trial is listed to commence.

Pursuant to subclause (2), the summary of the prosecution opening must outline the manner in which the prosecution will put the case against the accused and the acts, facts, matters and circumstances being relied on to support a finding of guilt.

Pursuant to subclause (3), the notice of pre-trial admissions must identify the statements of the witnesses whose evidence the DPP believes should be admitted as evidence without further proof, in particular in relation to a list of formal matters set out in the clause.

- Clause 183 requires the accused to serve on the prosecution and file in court a written response to the summary of the prosecution opening and notice of pre-trial admissions, filed and served under clause 182, at least 14 days before the trial is listed to commence.

The response to the summary of the prosecution opening must identify the acts, facts, matters and circumstances with which the accused takes issue and the reasons why.

The response to the notice of pre-trial admissions must indicate what evidence (as set out in the notice of pre-trial admissions) is agreed to be admitted as evidence without further proof and what evidence is in issue and, if the accused takes issue, the reasons why this is the case.

The accused is not required to state the identity of any witness (other than an expert witness under clause 189) to be called by the accused or whether the accused will give evidence.

- Clause 184 applies if a party intends to depart substantially at trial from a matter set out in a document filed and served under clause 182 or 183. In such cases, the party must inform the court and the other party in advance of the trial and, if the court orders, inform the court and the other party of the details of the proposed departure.

- Clause 185 provides for a continuing disclosure obligation on the prosecution pre-trial that is linked to the disclosure requirements in committal proceedings. It reflects existing disclosure obligations at common law arising from the prosecutor's duty of fairness and applies if there has been a committal for trial or a direct indictment.

The obligation applies only to material that would have been required to be included in a hand-up brief in a committal proceeding (see clause 110 for contents of a hand-up brief), unless it has already been disclosed. If the material cannot reasonably be copied, the DPP must advise of its existence and make it available to be inspected.

Clause 363 also saves existing grounds on which the prosecution may refuse disclosure and clause 181(2)(i) allows a court to resolve disputes about disclosure at a directions hearing.

Clause 186 provides that the prosecution must not disclose the address or telephone number of any person in the material provided to the accused under this Division unless—

- the court permits it; or
- the prosecutor believes that the material either does not identify such information as that of any particular person or is relevant to the offence charged and is not likely to present a risk to the welfare or physical safety of any person.

The prosecutor may delete or render illegible the relevant information before serving the material on the accused.

The court may permit disclosure if the address or telephone number is relevant to the offence charged and either—

- disclosure is not likely to pose a reasonably ascertainable risk to the safety of the witness; or
- the interests of justice outweigh any reasonably ascertainable risk.

In considering the interests of justice, the court must weigh the witness's right to privacy against the right of the accused to prepare properly for the trial. This new balancing exercise recognises a person's right to privacy and reputation, found in section 13 of the **Charter of Human Rights and Responsibilities Act 2006**.

Clause 181(2)(i) allows a court to resolve disputes about disclosure at a directions hearing.

Clause 187 permits the accused to request particulars of previous convictions of witnesses from the prosecution. The prosecution may decline to provide such particulars if they are not relevant to the proceeding. However, in such cases the prosecutor must advise the accused of the existence of any previous convictions.

Clause 181(2)(i) allows a court to resolve disputes about disclosure at a directions hearing.

Clause 188 formalises the current practice of the DPP and the common law requirement that, when the prosecution intends to call additional evidence at trial (that is, evidence not included in the depositions), written notice of that intention is given to the accused and the court.

The clause extends the obligation so that it also applies to notice of additional evidence from an existing witness. Timeframes for the disclosure of such additional evidence fall to be determined under the continuing disclosure obligation set out in clause 185.

Clause 189 requires the accused to file and serve on the prosecution any statements of expert witnesses at least 14 days before the trial is listed to commence. The statement must contain the witness's name and business address, describe the witness's qualifications to give evidence as an expert, and set out the substance of the evidence the accused proposes to adduce from the witness as an expert (including the witness's opinion and the basis on which the opinion is formed).

Under section 79 of the **Evidence Act 2008**, expert evidence is evidence of opinion given by a person with specialised knowledge.

Clause 190 prohibits the accused, without leave of the court, from giving evidence personally or adducing evidence from another witness in support of an alibi unless the accused has served notice on the DPP within 14 days after the day on which the accused was committed for trial or the day on which the accused received a copy of the indictment.

The notice of alibi must contain particulars of the alibi and of any witness to the alibi. If the name and address of a witness are not known, the accused has to include any information which might assist in finding the witness.

If the notice of alibi does not include the name and address of a witness, the accused must not call that person to give evidence in support of the alibi unless the court is satisfied that the accused took reasonable steps to find out the name and address

of the witness. The accused must also give written notice to the DPP of any further information which might assist in finding the witness if the DPP notifies the accused that a witness named or referred to in a notice of alibi has not been traced.

If the accused gives notice of alibi, the DPP may apply for an adjournment to allow investigation of the alibi. The court must grant such an adjournment, unless it would prejudice the proper presentation of the accused's case.

- Clause 191 provides that it is an offence for a person acting for the prosecution or a police officer to communicate directly or indirectly with an alibi witness, with two exceptions. First, communication is allowed with the consent and in the presence of the accused's legal practitioner or, if the accused is not legally represented, the accused. Secondly, the prohibition does not apply to an alibi witness who the accused has been notified may be called as a witness for the prosecution. This second exception is a change from the current offence provision (section 399B of the **Crimes Act 1958**) in order to deal with situations such as that identified in *R v Boris Beljaev* [2006] VSC 413.

Division 3—Orders

- Clause 192 gives the court the power to order that a trial be held at another venue if it considers that a fair trial cannot otherwise be had, or it is appropriate to change the place of trial for any other reason. Clause 169 provides for the primary place of hearing for a criminal trial.

This clause does not re-enact section 388 of the **Crimes Act 1958** which provided that no objection could be taken to an order changing venue. This omission is to ensure that such an order can, if leave is granted, be the subject of an interlocutory appeal (see clauses 295–301).

- Clause 193 enables the court to order separate trials where there is more than one charge or more than one accused in the indictment. The court may make such an order on a number of grounds listed in the clause including that it is appropriate for any other reason.

The procedure on the separate trial of a charge is the same as if the charge had been set out in a separate indictment and the prosecutor may elect which of the severed charges is to be tried first. If the order is made after a jury has been empanelled, the court may order that the jury be discharged from giving a verdict on the indictment.

Clauses 194 and 195 provide for separate trials in relation to sexual offences and conspiracy charges specifically.

- Clause 194 creates a presumption that charges for sexual offences that are contained in the same indictment will be tried together. The presumption is not rebutted because evidence on one charge is inadmissible on another charge. Sexual offence is defined in clause 3 and extended in this clause to apply to an offence listed in clause 1 of Schedule 1 to the **Sentencing Act 1991**.
- Clause 195 applies to cases where the indictment contains a charge of conspiracy to commit an offence and another charge alleging the commission of that offence. In such cases, the court is required to order that the charge of conspiracy be tried separately from the other charge, unless it considers that it would be in the interests of justice to try the charges together. The clause applies despite clause 193 and displaces the presumption in clause 170 that if an indictment contains more than one charge, the charges must be heard together.
- Clause 196 provides that any power of the court under clauses 165 (relating to orders for amendment of defective indictment), 193 (relating to orders for a separate trial) or 195 (relating to orders for a separate trial—conspiracy) is in addition to any other power of the court for the same or similar purposes.
- Clause 197 prevents the court from staying or adjourning a trial because an accused has been refused legal assistance. Clause 197 re-enacts section 360A of the **Crimes Act 1958** which was enacted to deal with problems highlighted in the High Court's decision in *R v Dietrich* (1992) 177 CLR 292. In that case, it was held that if the trial judge forms the view that a fair trial is unlikely because of the accused's inability to obtain legal representation, a stay of proceedings may be ordered. This can create a stalemate if legal aid is refused in a case where the court considers that legal assistance is necessary to ensure a fair trial.
- Clause 197 creates a circuit breaker for this problem by empowering the court to order Victoria Legal Aid to provide legal assistance to an accused if it is satisfied that—
- it will be unable to ensure that the accused will receive a fair trial without legal representation; and
 - the accused is unable to afford the full cost of that representation (with the onus of proving the second matter being on the accused). The court is not obliged to make an order if the accused has engaged in

vexatious or unreasonable conduct that has contributed to the lack of ability to afford representation.

For the purposes of proving that the accused is unable to afford the full costs of obtaining legal representation, regard must be had to property that is subject to the effective control of the accused and in which the accused has an interest as determined in accordance with section 9 or 10 of the **Confiscation Act 1997**.

Victoria Legal Aid must provide legal representation to the accused if an order is made under subclause (3). Victoria Legal Aid must be given the opportunity to appear on an application under this clause and has a right of appeal to the Court of Appeal.

Clause 198 provides for a party to apply to the court for an order that the evidence be taken from a witness prior to trial. The clause is based on section 11 of the **Crimes (Criminal Trials) Act 1999** in which an application can only be made where the witness did not provide a deposition (whether by oral evidence or sworn statement) or give evidence at a compulsory examination hearing. In order to provide greater flexibility to pre-record evidence, this clause extends the provision to witnesses who gave evidence at the committal hearing but who are likely to be unavailable at trial, in cases where the parties agree, or where for any other reason the court considers it to be appropriate.

An order may include a direction that the evidence of the person is to be given or recorded in a specified manner in accordance with the **Evidence Act 1958**. This may include orders as to how the evidence, including evidence-in-chief, cross-examination and re-examination is to be recorded.

The admissibility of any evidence taken under this clause is not determined by the Bill but by the rules of evidence.

Division 4—Procedure for pre-trial orders and other decisions

Clause 199 confirms that the court has the power to decide a wide range of issues and make orders before trial, including with respect to—

- any issue of law or procedure, which includes a decision as to the admissibility of any evidence;
- any issue of fact, or of mixed law and fact, that may be determined lawfully by a judge alone without a jury, including a decision as to the admissibility of any evidence;

- any application for an order under the Bill or under any other Act or at common law; and
- any other issue with respect to the trial.

This clause uses the phrase "at any time before trial" to describe its operation. This is different to other clauses that operate before trial which use the phrase "at any time except during trial" (for example, clause 168). The difference reflects the intention that this clause enables pre-trial decision-making rather than limiting decision-making powers during trial.

This clause applies despite clauses 181 (powers of court at directions hearings), 183 (response of accused to summary of prosecution opening and notice of pre-trial admissions), 184 (intention to depart at trial from document filed and served) and 200 (disclosure of pre-trial issues).

A decision made at a directions hearing or other pre-trial hearing has the same effect as if it had been made after the commencement of the trial.

Finally, subclause (4) provides that nothing in this clause limits the power of the court to make any decision that it has the power to make under this Division.

This provision is to ensure that, for example, a change of venue application or applications for orders under the **Evidence Act 2008** are able to be decided before trial. Similarly, common law decisions can be made including a decision on an application to quash a charge in an indictment. This phrase replaces and modernises the historical term "demurrer" (currently referred to in section 390A(1) of the **Crimes Act 1958**).

The broad range of decisions that can be made pre-trial under this provision incorporates the substance of section 391A of the **Crimes Act 1958**.

Clause 213 also confirms that a trial judge may make any order during trial that could have been made pre-trial and that nothing in the Bill removes or restricts any powers of a trial judge that existed prior to the Bill coming into force.

Clause 200 obliges the parties to notify the court and the other party of issues that fall within clause 199(1), whether it is intended to raise such an issue before or during trial.

The party obliged to raise the issue must first notify the other party of the issue or the order sought, in order to ascertain whether the issue will be in dispute or the order will be opposed; and secondly, notify the court of the issue or order

sought. The notification to the court must include confirmation that the other party has been notified of the issue or the order sought and information, if available, as to whether the issue is in dispute or the order is opposed.

The notification must be given as soon as possible after the party becomes aware of the issue and at least 14 days before the trial is listed to commence. If the party is not aware of the issue 14 days prior to the trial, notification must be given as soon as possible after the party becomes aware of it.

This clause incorporates the contents of section 10 of the **Crimes (Criminal Trials) Act 1999** with two additions—

- the existing obligation to raise issues within 14 days of trial is made subject to an overriding obligation to raise issues as soon as they become known to a party; and
- it provides an express obligation to raise an issue with the other party before notifying the court and the notification to the court must include confirmation that the issue has been discussed between the parties.

- Clause 201 allows the court to decide pre-trial issues of which it is notified under clause 200, entirely on the basis of written submissions, without the attendance of the parties or their representatives, provided that all the parties to the proceeding agree.
- Clause 202 applies when the court hears an application by the accused for the exclusion of evidence. In such cases, the court may hear evidence on behalf of the accused before it hears evidence called on behalf of the prosecution.
- Clause 203 provides that directions hearings or other pre-trial hearings do not need to be conducted by the trial judge.
- Clause 204 provides that decisions made at directions hearings or other pre-trial hearings by a judge who is not the trial judge are binding on the trial judge, unless otherwise ordered.
- Clause 205 applies if a new trial is held. It allows decisions made in directions hearings or other pre-trial hearings held in connection with an earlier trial to be treated as if they had been held in connection with the new trial. However, the court does not have to treat previous pre-trial decisions in this way if it considers that to do so would be inconsistent with any order or decision made or direction on an appeal, or would otherwise not be in the interests of justice.

Clause 206 provides the process if the prosecution decides not to lead evidence against an accused before trial. If the accused is arraigned and pleads not guilty to a charge in respect of which the prosecution does not propose to lead any evidence, the prosecution must inform the court that it does not propose to lead any evidence and the court must direct that an entry of not guilty be made on the record in respect of the charge. This entry has the same effect as if it were a jury verdict.

This clause is based on section 391 of the **Crimes Act 1958**. Once a trial commenced, only the jury could acquit the accused. The Bill clarifies when a trial formally commences (see clause 210) and allows legal, evidential and procedural issues to be decided before trial (see clause 199). As a result, this power is likely to be of less use.

However, clause 206 has been retained so that the prosecution can end a case before trial with the result that an acquittal is entered (rather than discontinuing a prosecution under clause 177) which does not result in an acquittal. Clause 206 complements rather than interferes with the power to discontinue a prosecution. See also clause 241 which allows a judge to enter a finding of not guilty during trial.

PART 5.6—SENTENCE INDICATION

Clause 207 authorises the court to provide a sentence indication as to whether the accused would or would not be likely to receive an immediately servable term of imprisonment, if the accused pleads guilty to the offence charged or another specified offence. This indication is narrower than for the Magistrates' Court, which may give an indication as to the type of sentence (see clause 60).

Clause 208 allows a sentence indication under clause 207 to be given on the application of the accused with the consent of the prosecutor. Such an indication may be given only once during the proceeding, unless the prosecutor otherwise consents. If an application is made in respect of a charge that is not on the indictment, the accused must specify the charge in the application. Finally, the clause gives the court the power to refuse to give a sentence indication under clause 207.

Clause 209 describes the effect of a sentence indication. If the court indicates that it would not be likely to impose a sentence of imprisonment that commences immediately and the accused pleads guilty to the charge for the offence at the first available

opportunity, the court must not impose a sentence of imprisonment that commences immediately.

If the court gives a sentence indication under clause 207 and the accused does not plead guilty to the charge for the offence at the first available opportunity, at trial the court must be constituted by a different judge, unless all the parties otherwise agree.

A sentence indication does not bind the court on any hearing by a different judge. A decision to give or not to give a sentence indication is final and conclusive. An application for a sentence indication and the determination of the application are not admissible in evidence against the accused in any proceeding and do not affect any right to appeal against sentence.

PART 5.7—TRIAL

Division 1—Preliminary

Clause 210 defines the commencement of trial as when the accused pleads not guilty on arraignment in the presence of the jury panel in accordance with clause 217. The clause also provides for the situation where a jury panel is split into parts under section 30(5) of the **Juries Act 2000**, in which case the trial commences when the accused pleads not guilty on arraignment before the first of those parts.

This definition is new and resolves uncertainty surrounding when a trial formally commences arising from the difference between the approach at common law (see *R v Talia* [1996] 1 VR 462) and section 2 of the **Crimes (Criminal Trials) Act 1999**. The new definition ensures that empanelling of the jury forms part of the trial. It also allows particularity as to the timing of pre-trial obligations (e.g. in clauses 182 and 183 which now run backwards from the day on which the trial is "listed to commence").

Clause 211 sets out the time limit for commencing a trial for offences other than sexual offences. Such a trial must commence—

- within 12 months after committal for trial; or
- if no committal proceeding is held, within 12 months of the filing of the indictment; or
- if the Court of Appeal orders a new trial, within 6 months after the day on which the order is made; or
- any extensions of these time limits provided under clause 247.

- Clause 212 sets out the time limit for commencing a trial for sexual offences. Such a trial must commence—
- within 3 months after committal for trial; or
 - if no committal proceeding is held, within 3 months of the filing of the indictment; or
 - if the Court of Appeal orders a new trial, within 6 months after the day on which the order is made (or 3 months if it is a sexual offence); or
 - any extensions of these time limits provided under clause 247.

The time limits for commencing trials after successful appeals to the Court of Appeal are new. Currently, there are no time periods within which such trials must be commenced. The appeal process itself will be likely to have taken a significant period of time and must now be prioritised, as well as ensuring compliance with section 25(2)(c) of the **Charter of Human Rights and Responsibilities**.

- Clause 213 confirms that the trial judge may make any order during trial that could have been made pre-trial and that nothing in the Bill removes or restricts any powers of a trial judge that existed prior to the Bill coming into force.

- Clause 214 allows the court to proceed with the trial of a corporate accused in its absence. In addition, if applicable, the court may proceed to hear and determine a summary offence under Division 1 of Part 5.8 (regarding hearing of charges for related and unrelated summary offences) if it is satisfied that a notice under clause 148 or 173 has been served on the accused and the court considers it appropriate to do so.

For the purpose of the trial in the accused's absence, the court can dispense with or vary any requirement imposed by or under this Part.

Division 2—Arraignment

- Clause 215 describes what an arraignment is, namely when the court—
- asks the accused whether he or she is the person named on the indictment; and
 - reads out each charge on the indictment and asks the accused whether he or she pleads guilty or not guilty to the charge.

It also confirms that an accused may be arraigned and re-arraigned at any time.

- Clause 216 allows a court to accept guilty pleas in writing in certain circumstances. This clause addresses the inefficiency of requiring oral guilty pleas to be entered to indictments with a large number of charges, particularly in fraud cases. The clause provides that if the accused pleads guilty orally to one or more counts, the court may accept the remaining guilty pleas in writing. This can only happen if both parties consent (the accused's consent must be in writing) and the court considers it appropriate. Pleas taken in writing under this clause have the same effect as if they had been entered on arraignment.
- Clause 217 applies if the accused has not pleaded guilty to all of the charges on an indictment. If this is the case, the accused must be arraigned in the presence of the jury panel and a jury for the trial must be empanelled from the jury panel before which the accused was arraigned. This links to clause 210, which provides that a trial commences when the accused pleads not guilty on arraignment before the jury panel, or the first part of a jury panel where applicable.
- Clause 218 entitles the accused, upon arraignment, to plead not guilty in addition to making a special plea. Special pleas remain regulated by the common law. The reference in section 390A(1) of the **Crimes Act 1958** to a demurrer is no longer required. A demurrer is an historical term for an application to quash a charge in an indictment on the grounds that it does not disclose an offence known to law. Such applications (with modernised language) can be managed in the same way as any application and this is specifically confirmed in clause 199(1)(c).
- Clause 219 allows an accused on arraignment to plead not guilty to the offence charged but guilty to another offence of which the accused might be found guilty. The consequences of pleading guilty to another offence are the same as if the other offence had been charged in the indictment. For instance, an accused charged with murder may plead not guilty to that charge but guilty to manslaughter.
- Clause 220 provides for how the pleas of (what are currently known as) *autrefois acquit* and *autrefois convict* are now to be entered. These historical Norman French phrases literally translate to "I have been acquitted" and "I have been convicted." Consistent with the goal of modernising historical language, this clause instead refers to a plea of previous conviction or

previous acquittal. The principles to be applied to such pleas are purely common law and are expressly saved.

- Clause 221 deals with cases where an accused refuses to plead on arraignment. If an accused will not answer directly to a charge on the indictment, the court may order that a plea of not guilty be entered on the accused's behalf. Such a plea entered on the accused's behalf has the same effect as if the accused had in fact pleaded not guilty. This is consistent with the presumption of innocence.

Division 3—Assisting the jury

- Clause 222 provides a simple power authorising the judge to address the jury at any time in the trial on any matter relevant to the jury in the performance of its functions and its understanding of the trial process. It includes by giving directions on any issue of law, evidence and procedure, addressing the jury on issues anticipated to arise and commenting on the relevance of any admissions made or matters determined before trial.

This clause incorporates and expands on the contents of section 14 of the **Crimes (Criminal Trials) Act 1999**.

- Clause 223 allows the trial judge to order that copies of a wide range of specified documents be given to the jury in any form that the judge considers appropriate. The trial judge may make such an order at any time during the trial for the purpose of helping the jury to understand the issues or the evidence in a trial.

Division 4—Opening addresses

- Clause 224 sets out the requirements for a compulsory opening address by the prosecutor. If documents have been served and filed by the prosecution under Part 5.5 (pre-trial procedure), the prosecutor must restrict themselves to the matters set out in those documents, unless the trial judge allows a departure from those documents. However, the prosecutor is not restricted to a verbatim presentation of the summary of the prosecution opening.

A departure from pre-trial documents can only be allowed in exceptional circumstances, which does not include a change of legal practitioner. The court may limit the length of the opening address.

- Clause 225 sets out the requirements of the accused's response to the prosecution opening, which is compulsory if the accused is represented by a legal practitioner.

If documents have been served and filed by the prosecution under Part 5.5 (pre-trial procedure), the accused must restrict themselves to the matters set out in those documents, unless the trial judge allows a departure from those documents. However, the accused is not restricted to a verbatim presentation of the summary of the prosecution opening.

A departure from pre-trial documents can only be allowed in exceptional circumstances, which does not include a change of legal practitioner. The court may limit the length of the opening address.

This clause is based on sections (8)(1),(2) and (3) and 13 of the **Crimes (Criminal Trials) Act 1999**. The only difference is that clause 225 makes a response discretionary if the accused is unrepresented. This has been done to be consistent with the right to silence.

Division 5—Case for the accused

Clause 226 entitles the accused to respond after the close of the prosecution case. Currently sections 397 and 398 of the **Crimes Act 1958**, which cover the subject matter of this clause, are inconsistent and difficult to follow. In order to create consistency between the declaration of the accused's entitlements and what an unrepresented accused is told under clause 228, clause 226 makes it clear that an accused is entitled to—

- to make a submission that there is no case for the accused to answer;
- to answer the charge by choosing to give evidence or call other witnesses to give evidence or both;
- not to give evidence or call any witnesses.

This Division simplifies provisions relating to what happens after the close of the prosecution case.

Clause 227 applies if the accused is represented by a legal practitioner. It allows the trial judge to question the legal practitioner at the close of the case for the prosecution to determine which of the options referred to in clause 226 the accused elects to take.

Clause 228 applies when the accused is not legally represented. It requires the trial judge to give the accused certain information immediately after the close of the case for the prosecution. The trial judge must inform the accused in a manner which is likely to be understood by the accused that the accused has the right to answer the charge and must choose either to give

evidence or to remain silent and in either case may also choose to call witnesses.

After giving the above information, the trial judge must ask the accused what the accused wants to do. An express limitation has been added (when compared to section 398 of the **Crimes Act 1958**) that the information given to an unrepresented accused must be in the absence of the jury.

- Clause 229 governs the procedure for joint trials (where two or more accused are named on the indictment) if a no-case submission is made. Currently there is no statutory provision dealing with this issue in the context of joint trials. In practice, the position is governed by a common law approach in *R v Faure & Corrigan* [1978] VR 246 and *R v Webster* [1974] VR 457 which allows a trial judge to determine whether to rule on a no case submission before or after hearing the case for one or more of the accused.

For compatibility with the affirmation in the **Charter of Human Rights and Responsibilities** of the presumption of innocence, the Bill proceeds on the basis that all submissions should be heard at the end of the prosecution case.

Clause 229 provides that, after the close of the case for the prosecution, every accused who wishes to make a submission that there is no case for the accused to answer must do so at that time and the trial judge must rule on them all at that time. If, after the trial judge has ruled on all no case submissions and two or more accused remain on trial, the first remaining accused must elect whether to give or call evidence.

Each subsequently named accused is not required to advise the trial judge of his or her election until the close of the case for the previously named accused. Finally, the order of the defence cases must follow the order of the indictment, unless the trial judge otherwise orders.

- Clause 230 requires an accused who intends to call witnesses to give evidence at the trial to indicate to the trial judge, the names of those witnesses and the order in which those witnesses are to be called. The accused must then not present the case of the accused differently from the way indicated to the trial judge without the leave of the trial judge.

- Clause 231 concerns the opening address of the accused and the order in which events occur at the beginning of the accused's case.

The current provision is section 418 of the **Crimes Act 1958** which is complex and has been amended many times.

When originally enacted in 1958, section 418 dealt only with unsworn statements by the accused. It provided that, if the accused wanted to make an unsworn statement, the statement had to be made after counsel for the accused had made his or her final address to the jury. A problem arose in cases where there were multiple accused. The **Crimes (General Amendment) Act 1976** amended the section to, among other things, address this problem. Subsequently, the **Evidence (Unsworn Evidence) Act 1993** abolished the right of an accused to make unsworn statements, resulting in further substantial amendments to the section. The result of this history is that the purpose of much of section 418 is difficult to identify.

Specifically, section 418(c)(i) currently provides that "the accused may be called as a witness at any stage as he may think fit after the close of the evidence for the prosecution and either before or after the opening". Arguably, the two parts of the quoted portion are inconsistent. The first part indicates that the accused can give evidence at any time, including after any other witness has given evidence. The second part suggests that the accused's options are limited to before or after the opening address, but still before anyone else gives evidence.

The first interpretation is preferred by Fox in *Victorian Criminal Procedure* (Monash University, 2005) at paragraph 8.8.16 and is consistent with the common law position (see *Regina v RPS* [1997] NSWSC 305 affirmed in *RPS v R* [2000] HCA 3).

In light of this history, clause 231 represents a new simplified process by which—

- if the accused chooses either to give evidence, or call evidence, or both, then the accused may give an opening address to the court;
- if the accused gives such an opening address then it must be given before any evidence is either given or called by the accused;
- the trial judge may limit the length of the opening address;
- the accused is not obliged to give evidence before other witnesses called by the accused have given evidence.

Division 6—Giving of evidence

Clause 232 allows the trial judge to permit a person to give evidence in the following ways set out in subclause (1)—

- by reading from the witness' statement prepared in advance of giving evidence (with the consent of both parties);
- for an expert witness, by the presentation of audio or audiovisual material;
- by means of playing an audio or audiovisual recording;
- in any other manner that the trial judge considers may be of assistance.

The right to cross-examine an expert witness before, during or after a presentation is expressly saved. Similarly, if a witness is allowed to give evidence by playing an audio or audiovisual recording then the trial judge may, if unanticipated issues arise during the trial, order that the witness attend before the court.

Nothing in this clause affects the operation of sections 41G, 42A and 42B and Part IIA of the **Evidence Act 1958** and sections 29 and 50 of the **Evidence Act 2008**, which provide for the ways in which evidence may generally be recorded.

Clause 233 governs the introduction of evidence at trial not previously disclosed.

It allows the prosecutor or the accused, with the leave of the trial judge, to introduce certain evidence that was not disclosed in accordance with Part 5.5. This clause covers evidence not disclosed which represents a substantial departure from the summary of the prosecution opening, the response to the summary of the prosecution opening or the response of the accused to the notice of pre-trial admissions.

The court may also allow the prosecution to call evidence after the close of the prosecution's case, if the accused has given or called evidence which could not reasonably have been foreseen by the prosecution, having regard to the pre-trial documents filed and served under Part 5.5.

Division 7—Closing addresses and judge's directions to the jury

- Clause 234 entitles the prosecution to address the jury for the purpose of summing up the evidence. It may do so after the close of all the evidence and before the closing address of the accused. The trial judge may limit the length of the prosecution's closing address.
- Clause 235 entitles the accused to address the jury for the purpose of summing up the evidence. The accused may do so after the close of all the evidence and after the closing address of the prosecution (if any). As with prosecution closing addresses, the trial judge may limit the length of the accused's closing address.
- Clause 236 allows the prosecution, with the leave of the trial judge, to make a supplementary address if, in the accused's closing address, the accused asserts facts which are not supported by any evidence that is before the jury. The supplementary address must be confined to replying to such assertions and the trial judge may limit the length of the supplementary address.
- Clause 237 enables the trial judge or, with the leave of the trial judge, a party to comment on departures outlined in clause 233(1) (introduction of evidence not previously disclosed) and any failure by a party to comply with a requirement of this Chapter or an order made under this Chapter.

The trial judge may grant leave to a party to comment on a departure or failure only if satisfied that the proposed comment is relevant and is not likely to produce a miscarriage of justice and subject to the following restrictions. A comment on a departure must not suggest that an inference of guilt may be drawn from the departure except in those circumstances in which an inference of guilt might be drawn before the commencement of this clause from a lie told by an accused.

A comment on a failure must not—

- suggest that an inference of guilt may be drawn from the failure except in those circumstances in which an inference of guilt might be drawn from the failure of an accused to adduce evidence from a particular witness; or
- suggest that the failure may be taken into account in considering the probative value of the prosecution evidence except in those circumstances in which a failure of an accused to give evidence or adduce evidence from a particular witness might be taken into account for that purpose.

In section 16 of the **Crimes (Criminal Trials) Act 1999**, the circumstances referred to in the above bullet points are limited to the point in time before the commencement of the section in 1999. This clause does not contain that, or any similar, limitation. The questions which the court must answer are essentially evidential and the answer should be determined by the law of evidence as it exists at the time, particularly given that the **Evidence Act 2008** is intended to commence at the same time as this Bill.

- Clause 238 requires the trial judge to give directions to the jury so as to enable the jury to properly consider its verdict after all of the addresses have been given. This does not limit the ability of the trial judge to give directions during trial on appropriate issues as they arise.

Division 8—Alternative verdicts and discharge of jury from delivering verdict

- Clause 239 applies to trials for offences other than treason or murder where the jury finds the accused not guilty of the offence charged but where there are alternative offences available to the charge. In such cases, the jury may find the accused guilty of such alternative offences.
- For the purposes of this clause, an allegation of an offence includes an allegation of an attempt to commit the offence.
- Clause 240 allows the trial judge to order that guilt in respect of alternative offences is not to be determined at the trial, despite section 421(1) of the **Crimes Act 1958** (regarding alternative verdicts on a charge of murder) and clause 239 of this Bill.
- Clause 241 allows the trial judge to enter findings of guilty and not guilty without the jury giving a verdict when either the accused pleads guilty during the trial, the judge accepts a submission at the close of the prosecution case that there is no case for the accused to answer, or the prosecution decides not to lead evidence on a charge. At any time other than during a trial, a judge may accept a plea of guilty or find the accused not guilty where the prosecution does not lead evidence on a charge.
- There is currently no legal mechanism for a judge to determine charges in the above situations and instead, the jury is required to give a verdict, even if that verdict is inevitable because the jury is still "in charge" (see, for example, *R v Paprounas* [1970] VR 865).

The process of requiring such verdicts can be unwieldy and confusing for jurors. It can require jurors to be balloted off and then returned to continue the trial in relation to other charges or other accused, under section 48 of the **Juries Act 2000**.

This clause provides a new process in which a trial judge can discharge the jury from delivering a verdict and direct that an entry of "guilty" or "not guilty" be made on the record in any of the following situations—

- The accused pleads guilty to a charge on re-arraignment during trial; or
- The trial judge decides at the end of the prosecution case that there is no case for the accused to answer; or
- The trial judge is advised by the prosecution that the prosecution proposes not to lead evidence on a charge.

Such an entry has the same effect as if the jury had delivered a verdict on the charge.

PART 5.8—GENERAL

Division 1—Hearing of charges for related and unrelated summary offences

Clause 242 allows the Supreme Court or the County Court to hear and determine a charge for a related summary offence where an accused pleads guilty to an indictable offence or is found guilty or not guilty of an indictable offence. The court may hear and determine the summary offence before sentencing or otherwise dealing with the accused in relation to the indictable offence. A related summary offence is transferred to the County Court or the Supreme Court from the Magistrates' Court under clause 145.

These summary offences may then be dealt with after the proceeding in relation to the indictable offence has been completed. In many cases it will be more efficient for the County Court or Supreme Court to deal with the summary offences. In some cases this may involve the prosecution withdrawing the summary charges because these charges were alternative offences to the indictable offence and the accused is being dealt with for the indictable offence. In other cases, the matters may be able to be dealt with as part of a plea which also deals with the indictable offence. There may also be occasions in which it is efficient and practicable for the court to hear further evidence to determine the summary charge.

Alternatively, it may be more appropriate to remit the summary offence to the Magistrates' Court to be determined.

The court must hear and determine the charge for a related summary offence without a jury and, as far as practicable, in accordance with Part 3.3 (summary hearing).

The evidence given in the trial or depositions (in the case of a guilty plea) relating to the indictable offence can be admitted as evidence (if the court has a discretion concerning whether to admit it) on the hearing of a charge for a related summary offence. Further evidence can be adduced with the leave of the court. The court can ultimately impose any sentence that may be imposed for the offence by the Magistrates' Court. The court may, if it considers appropriate to do so, transfer the proceeding for the related summary offence back to the Magistrates' Court for hearing and determination.

Related offences and related summary offence are defined in clause 3.

- Clause 243 allows the Supreme Court or County Court to hear and determine an unrelated summary offence where the accused is before the court in relation to an indictable offence, provided the accused consents to the court hearing and determining the charge for the summary offence and states an intention to plead guilty to the summary offence.

In such cases, the proceeding in respect of the charge is transferred from the Magistrates' Court to the Supreme Court or the County Court as the case may be. The court must hear and determine the charge for the summary offence without a jury and in accordance with Part 3.3, as far as practicable and may impose any sentence in the respect of the summary offence that could be imposed by the Magistrates' Court.

However, if the accused does not plead guilty to the charge for the summary offence or states an intention to plead not guilty, the court must direct the charge to be transferred to the Magistrates' Court for hearing and determination.

Division 2—Criminal record

- Clause 244 sets out what a criminal record must contain and when a criminal record is inadmissible as evidence. A criminal record replaces what is currently required to be included in a further presentment under section 395(1)(a) of the **Crimes Act 1958**.

A criminal record must contain, in relation to each previous conviction—

- the date of the previous conviction; and
- the court in which the previous conviction took place; and
- the place of sitting of that court; and
- the offence committed; and
- the sentence imposed.

If other offences were taken into account when a sentence was imposed in respect of a previous conviction, a criminal record may contain a statement to that effect and the convictions taken into account.

A criminal record is inadmissible as evidence against the person to whom it relates in a proceeding for an offence unless the criminal record is signed by any one of a number of specified persons.

Clause 245 applies in cases where the prosecution intends to allege previous convictions at sentencing. The clause allows the prosecution to file a criminal record at any time after the filing of the indictment and before the commencement of the sentencing hearing. If the criminal record is not available before the commencement of the sentencing hearing, it can be filed any time before sentencing with the court's leave.

Before criminal convictions can be taken into account by the court, it must ask the person whether they admit the previous convictions set out in the criminal record. If the person admits to a previous conviction, the court may sentence the person accordingly. If, however, the person does not admit to a previous conviction, the prosecution may lead evidence to prove the previous conviction under the **Evidence Act 2008**. One or more previous convictions can be admitted in writing on the criminal record. Unlike in the equivalent summary clause (clause 78(5)), convictions must be admitted by the accused personally (i.e. not through a legal practitioner) in indictable proceedings.

Division 3—Powers and obligations

- Clause 246 requires an accused to attend all hearings conducted under this Chapter in the criminal proceeding, unless excused under clause 330 (the main clause governing the appearance and attendance of accused at hearings).
- This is a new clause creating an express presumption of attendance (defined in clause 3 to mean physical presence) of the accused at all hearings under this Part. This clause is part of a Bill-wide approach to the issue of when an accused is required to appear or attend.
- Clause 247 gives the court the power to extend or bridge any time fixed by or under this Chapter or any order extending or abridging time made under this clause, if the court considers that it is in the interests of justice to do so. An order extending time is not needed if a ruling made or a direction given by the court explicitly or implicitly provides for an extension. The court may also extend time under this clause before or after the time expires and whether or not an application for an extension of time is made before the time expires. More than one extension may be ordered and no material in support of the application need be filed.
- This clause re-enacts sections 353(5)–(6B) and 359A(2)–(6) of the **Crimes Act 1958** but not the express ability of the court to make an order on its own motion which is provided for, as a general matter, in clause 337. It also does not re-enact the statement in section 359A(4) that an application can be made orally as a court generally has the power to hear applications orally unless written notice of application is required. This approach has been taken across the Bill.
- Clause 248 requires the parties to inform the Juries Commissioner of certain events relating to the need for jurors for particular trials.
- Clause 249 requires a legal practitioner who has been briefed (or otherwise agreed to appear for an accused at a trial) to advise the court of his or her intention to appear for the accused at least 7 days before the trial.
- A legal practitioner may only withdraw from the case within 7 days of the trial with the leave of the court. The court can order that costs be paid personally by the legal practitioner if the court considers that the agreement to appear at trial was unreasonable or the withdrawal is unreasonable.

- Clause 250 deals with complaints against legal practitioners. It allows the court to make a complaint about a legal practitioner's conduct to the Legal Services Commissioner if it considers that that legal practitioner has failed to comply with certain specified requirements.
- Clause 251 applies if an offence charged in an indictment and an offence that was tried at an earlier trial are the same or related offences.
- The trial judge at the earlier trial, or a judge who conducted a directions hearing or any other pre-trial hearing in relation to the earlier trial, is not prevented from being the trial judge at the later trial merely because that judge made a decision on any contentious issue of law or procedure.
- Clause 252 makes it an offence for a corporate accused not to comply with an order to appear at court made under clause 148(2)(d), unless the accused has a reasonable excuse.
- Clause 253 abolishes the common law procedure of calling a grand jury to determine whether a person charged with an indictable offence ought to be put on trial before an ordinary jury.

CHAPTER 6—APPEALS AND CASES STATED

PART 6.1—APPEAL FROM MAGISTRATES' COURT TO COUNTY COURT

Division 1—Appeal by offender

- Clause 254 provides that a person convicted of a criminal offence in the Magistrates' Court may appeal to the County Court either against the conviction and sentence imposed by the Court or against sentence alone. See clause 3 for the definition of conviction.

Currently, section 83(1) of the **Magistrates' Court Act 1989** does not distinguish between appeals against conviction and appeals against sentence. Instead, it provides that a person may appeal to the County Court "against any sentencing order made against that person by the Magistrates' Court." This means that a person who has been found guilty by the Magistrates' Court and who wishes to appeal against the finding of guilt does so by appealing against the sentencing order, even if he or she does not consider that the sentencing order itself was excessive. Conversely, it also means that a person who originally pleaded guilty and who does not contest the finding of guilt but who simply considers that the sentence imposed was excessive must

nevertheless in effect appeal against the finding of guilt and the sentence.

In practice, however, it is possible to indicate on the prescribed notice of appeal (Form 2-2A in the **County Court Miscellaneous Rules 1999**) whether the appellant is appealing on the grounds that the appellant is not guilty, that the sentence is excessive, or both. Fox (*Victorian Criminal Procedure*, 2005, at paragraph 10.4.5) notes that where the merit of the conviction is not in dispute, but only the sentence, the County Court may rely upon an outline of facts accepted by the appellant.

Clause 254 clarifies the position by referring to an appeal to the County Court against—

- the conviction and sentence imposed by the Magistrates' Court; or
- the sentence alone.

Clause 255 sets out how an appeal is commenced, namely by filing a notice of appeal, which must comply with the requirements of the clause and the rules, at any venue of the Magistrates' Court within 28 days of sentencing. A copy of the notice of appeal must be served 7 days later.

Clause 256 sets out certain powers and obligations of the County Court when hearing an appeal under clause 254. In particular, an appeal must be conducted as a rehearing and the appellant is not bound by the plea entered in the Magistrates' Court.

The County Court must set aside the sentence of the Magistrates' Court and may impose any sentence which the Magistrates' Court could have imposed and may exercise any power which the Magistrates' Court could have exercised.

A notice of appeal must include a statement to the effect that the appellant is aware that the County Court may impose a more severe sentence than the sentence that the appellant is appealing. The Victorian Parliament Law Reform Committee (the VPLRC) in its report on De Novo Appeals to the County Court recommended that the current law be amended so that the County Court be required to provide a warning, as early as possible during the hearing, if the court is considering imposing a more severe sentence than the sentence originally imposed in the Magistrates' Court in order to give the appellant an opportunity to abandon the appeal.

Division 2—Appeal by DPP against sentence

Clause 257 allows the DPP to appeal to the County Court against a sentence imposed in the Magistrates' Court if satisfied that an appeal should be brought in the public interest.

Clause 258 sets out how an appeal by the DPP is commenced, namely by filing a notice of appeal, which must comply with the clause and the rules, in the Magistrates' Court within 28 days of sentencing.

A copy of the notice of appeal must be served personally on the respondent within 7 days after the day the notice is filed. Service for such appeals is personal because it is a significant new step in a proceeding and the accused may have thought that the matter was finished.

Further, the DPP is required to provide a copy of the notice of appeal to the legal practitioner who last represented the respondent, if they can reasonably be identified.

Clause 259 contains various powers and obligations of the County Court in determining a DPP appeal, including that it is to be conducted as a rehearing, with the result that the respondent is not bound by the plea entered in the Magistrates' Court.

The County Court must set aside the sentence of the Magistrates' Court and impose any appropriate sentence which the Magistrates' Court could have imposed and exercise any power which the Magistrates' Court could have exercised. In imposing a sentence, the County Court must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate. This exclusion of double jeopardy as a factor has been done in relation to all relevant DPP appeals. Its primary operation is in relation to DPP appeals against sentence to the Court of Appeal and it is discussed in detail in relation to clauses 289 and 290.

A sentence may be backdated to a date on or before the date of the original sentence of the Magistrates' Court and a sentence imposed under this clause is for all purposes to be regarded as a sentence of the County Court.

Division 3—Appeal by DPP—Failure to fulfil undertaking

Clause 260 sets out the DPP's right of appeal in cases where the person convicted has failed to fulfil an undertaking to assist law enforcement authorities and the sentence was less severe because the person gave the undertaking.

The DPP can bring an appeal under this clause at any time, whether or not the person has served the sentence.

Clause 261 sets out how an appeal under clause 260 is commenced, namely by filing a notice of appeal, in the prescribed form, signed by the DPP personally, in the Magistrates' Court.

The notice of the appeal to be served personally on the respondent within 14 days after the notice is filed. Further, the DPP is required to provide a copy of the notice of appeal to the legal practitioner who last represented the respondent, if they can reasonably be identified.

The commencement of an appeal under clause 261 is similar to clause 258 except that there is no time limit for filing a notice of appeal. This is because the failure to fulfil an undertaking may not be apparent for some time. In addition, an extra seven days (14 days in total) is allowed for a copy of the notice of appeal to be served on the respondent. This is because the underlying proceedings may not be recent.

Clause 262 contains various powers and obligations of the County Court in determining a DPP appeal with respect to the failure to fulfil an undertaking. Unlike other appeals to the County Court, an appeal under clause 260 must not be conducted as a rehearing and, if the County Court considers that the respondent has failed, in whole or in part, to fulfil the undertaking, it may set aside the sentence of the Magistrates' Court and impose the sentence that it considers appropriate.

Pursuant to subclause (3) in imposing a sentence under this clause, the County Court must not take into account the element of double jeopardy involved in the respondent being sentenced again, in order to impose a less severe sentence than the court would otherwise consider appropriate.

With respect to double jeopardy amendments, see clause 289. Similar provisions also appear in clauses 259, 290 and 293.

Division 4—Procedure

Clause 263 deals with late notices of appeal. A notice of appeal filed late is deemed to be an application for leave to appeal on the grounds stated in the notice. The County Court may grant leave to appeal under subclause (1) and the appellant may proceed with the appeal if the late notice of appeal was due to exceptional circumstances and the respondent's case would not be materially prejudiced because of the delay.

Clause 264 provides for the stay of orders if the appellant appeals against sentence.

If an appellant appeals against sentence and is not in custody as a result of that sentence, the appeal operates as a stay of the sentence (but not of the conviction) when the appellant files the notice of appeal and signs the undertaking referred to in clause 255(5).

Pursuant to subclause (2), if an appellant appeals against sentence and is in custody because of that sentence, the appeal operates as a stay of sentence (but not a conviction in respect of the sentence) only once the appellant enters bail, if bail is granted under clause 265.

This clause is subject to section 29 of the **Road Safety Act 1986**.

Clause 265 allows an appellant who is in custody because of the sentence appealed against to apply to the Magistrates' Court for bail and give notice to the respondent.

The Magistrates' Court may either grant or refuse bail as if the appellant were an accused applying for bail and the **Bail Act 1977** applies.

Clause 266 sets out the procedures which apply when an appellant wishes to abandon an appeal, which must be done in accordance with the rules of court.

Under subclause (2), if an appellant appeals against both conviction and sentence but decides not to pursue the appeal against conviction, the appellant must give both the court and the respondent written notice that he or she is abandoning the appeal against conviction. This avoids the inconvenience of the current practice of listing the appeal in order for the appeal against conviction to be formally abandoned.

Subclause (3) states that an appeal against sentence in which a term of imprisonment or detention was imposed can be abandoned if the appellant is not in custody by surrendering to the registrar of the County Court and filing a notice in the prescribed form. If the appellant is in custody, he or she may abandon the appeal simply by filing a notice in the prescribed form.

If an appellant abandons an appeal, the County Court must strike out the appeal.

If an appeal is struck out under this clause—

- the order of the Magistrates' Court may be enforced as if an appeal had not been made except that time is deemed not to have run during the period of any stay under clause 264; and
- the registrar of the County Court must give the respondent a copy of the order striking out the appeal.

Clause 267 sets out the procedure if an appellant fails to appear at an appeal and permits the County Court to strike out or adjourn the appeal.

If an appeal is struck out—

- the order of the Magistrates' Court may be enforced as if an appeal had not been made except that time is deemed not to have run during the period of any stay under clause 264; and
- the registrar of the County Court must give the respondent a copy of the order striking out the appeal.

The County Court can set aside an order striking out an appeal due to the failure of the appellant to appear if the court is satisfied that the failure to appear did not result from any fault or neglect by the appellant.

Clause 268 sets out the procedure in cases in which the respondent fails to appear at an appeal by the DPP, in which case the County Court can adjourn the appeal or hear and determine the appeal in the absence of the respondent. However, the County Court cannot impose a sentence that requires the consent of the respondent (such as a community-based order) in the respondent's absence.

If the County Court adjourns the proceeding, it may issue a warrant to arrest the respondent.

- Clause 269 allows the appellant to give one notice of appeal for all or any of the sentences in cases where two or more sentences are imposed in respect of charges that have been heard together.
- Clause 270 allows the County Court's to sentence a person where the sentence appealed against is an aggregate sentence of imprisonment imposed in accordance with section 9(1) of the **Sentencing Act 1991** or an aggregate fine imposed in accordance with section 51 of that Act. It enables the County Court to rely on any agreed statement of facts (however derived) relevant to any charge contained in the original charge-sheet.
- Clause 271 provides that, if a person is authorised by or under another Act to appeal from an order of the Magistrates' Court to the County Court, the provisions of this Bill with respect to appeals to the County Court apply.
- The clause notes that section 283 gives a further right of appeal from the County Court to the Court of Appeal in certain circumstances.

PART 6.2—APPEAL FROM MAGISTRATES' COURT TO SUPREME COURT ON A QUESTION OF LAW

- Clause 272 sets out the requirements for parties to appeal on a question of law.
- Subclause (1) allows a party (including the DPP on behalf of a police officer) to appeal to the Supreme Court on a question of law, from a final order of the Magistrates' Court, unless the order was made in a committal proceeding.
- Under subclause (3), an appeal under this clause is commenced by filing a notice of appeal in accordance with the rules of the Supreme Court within 28 days after the day on which the order complained of was made. Subclause (4) requires a copy of the notice of appeal to be served within 7 days of the notice of appeal being filed.
- An appeal under this clause does not operate as a stay of any order made by the Magistrates' Court unless the Supreme Court orders otherwise.
- Further, an appeal commenced late is deemed to be an application for leave to appeal.

The County Court may grant leave to appeal and the appellant may proceed with the appeal if the late notice of appeal was due to exceptional circumstances and the respondent's case would not be materially prejudiced because of the delay.

Subclause (9) provides that, after hearing and determining the appeal, the Supreme Court may make any order that it thinks appropriate, including remitting the case for rehearing to the Magistrates' Court with or without any direction in law. An order made on appeal can be enforced as an order of the Supreme Court.

The Supreme Court has the power to stay the original sentence (and other orders) or grant bail.

- Clause 273 provides that, if a person chooses to appeal under this Part to the Supreme Court on a question of law, that person cannot also appeal to the County Court in relation to the same proceeding.

PART 6.3—APPEAL AND CASE STATED FROM COUNTY COURT OR TRIAL DIVISION OF SUPREME COURT TO COURT OF APPEAL

Division 1—Appeal against conviction

- Clause 274 allows a person convicted of an offence by an originating court to appeal to the Court of Appeal against the conviction. (Originating court is defined in clause 3 and includes reference to original jurisdiction, which is also defined in clause 3).

- Clause 275 sets out how an appeal is commenced, namely by filing a notice of application for leave to appeal in accordance with the rules of the court within 28 days of sentencing.

The Registrar of Criminal Appeals of the Supreme Court must provide the respondent with a copy of the notice of application for leave to appeal within 7 days after the filing of the notice.

The current distinction in section 567 of the **Crimes Act 1958** between questions of fact, questions of law and mixed questions of fact and law is not used to delineate different types of appeal. See clause 276 with respect to the reform of grounds of appeal and the proviso.

In addition, the distinction between: (a) appeals as of right (i.e. without leave) on questions of law; (b) appeals as of right on questions of fact or mixed questions of fact or law (if the trial judge certifies the case as appropriate); and (c) appeals with the leave of the Court of Appeal on any other ground of appeal has been removed because the processes in (a) and (b)

had fallen into disuse. Instead, this clause allows a person to appeal against conviction on any ground of appeal with the leave of the Court of Appeal.

Clause 276 requires the Court of Appeal to allow an appeal against conviction if the appellant satisfies the court that—

- the verdict of the jury is unreasonable or cannot be supported having regard to the evidence; or
- as the result of an error or an irregularity in, or in relation to, the trial there has been a substantial miscarriage of justice; or
- for any other reason there has been a substantial miscarriage of justice.

Subclause (2) requires the Court of Appeal to dismiss the appeal in any other case.

This provision has been substantially changed as a result of a review of the grounds of appeal against conviction and the proviso currently in section 568(1) of the **Crimes Act 1958**. The grounds and proviso are drafted as a single subsection, but for ease of discussion, they can be separated into the following separate components:

The Court of Appeal on any such appeal against conviction shall allow the appeal if it thinks—

[First limb] that the verdict of the jury should be set aside on the ground that it is **unreasonable** or cannot be supported having regard to the evidence; or

[Second limb] that the judgment of the court before which the appellant was convicted should be set aside on the ground of a wrong decision on a question of law; or

[Third limb] that on any ground there was a miscarriage of justice and—

in any other case shall dismiss the appeal—

["The proviso"] Provided that the Court of Appeal may, notwithstanding that it is of opinion that the point raised in the appeal might be decided in favour of the appellant, dismiss the appeal if it considers that no substantial miscarriage of justice has actually occurred.

Prior to the High Court decision in *Weiss v R* (2005) 224 CLR 300, the Court of Appeal applied two tests to decide if the proviso applied after a wrong decision or miscarriage had been found under the second or third limb. First, whether the appellant had lost a chance of acquittal that was fairly open or, secondly, whether the wrong decision or miscarriage amounted a fundamental error, constituting a "serious breach of the presuppositions of a trial".

The approach taken to the proviso was altered by the High Court decision in *Weiss*, in which the High Court held that the proviso applied where the Court of Appeal was itself satisfied (on the trial record) that the appellant was guilty beyond a reasonable doubt.

In *Gassy v The Queen* [2008] HCA 18 the High Court confirmed that there remained a number of ways in which the Court of Appeal could determine what constituted a "substantial miscarriage of justice".

Clause 276 simplifies the appeal grounds without departing from the overall "substantial miscarriage of justice" test. It does so by reflecting the following approach—

- the current first ground of appeal is fundamentally sound;
- there is duplication (and linguistic difficulty) in requiring initial consideration of whether there has been a miscarriage and then separate consideration of whether there has been a substantial miscarriage;
- A single-tiered test removes much of the complexity of the current provision and is preferred over a two-tiered grounds of appeal and proviso structure;
- the phrase "substantial miscarriage of justice" should remain the ultimate test for determining whether an appeal should be allowed or dismissed;
- there is a presumption that, until the contrary is shown, a trial before judge and jury was fair and in accordance with law. It follows that the onus to persuade the court of the matters required for a successful appeal should be on the appellant;

- errors or irregularities in the trial should result in appeals being allowed when the problem could have reasonably made a difference to the trial outcome; or if the error or irregularity was of a fundamental kind depriving the appellant of a fair trial or amounting to an abuse of process (regardless of whether it could have made a difference to the trial outcome).

Clause 277 outlines the orders that the Court of Appeal may or must make following a successful appeal.

If the Court of Appeal allows an appeal, it must set aside the conviction of the offence (offence A) and must order a new trial or enter a judgment of acquittal of that offence.

Alternatively, if the appellant could have been found guilty of some other offence (offence B) instead of offence A and the court is satisfied that the jury must have been satisfied that the appellant was guilty of offence B, the Court must convict the appellant of offence B and impose a sentence that is no more severe than the sentence that was imposed for offence A.

According to subclause (1)(d), if the court does not consider that the jury must have been so satisfied, then the court can order a new trial for offence B. This subclause is designed to allow the Court of Appeal to order a retrial in the circumstances covered in *AJS v The Queen* [2007] HCA 27, that is to enter a judgment of acquittal for offence A and order a re-trial on an alternative offence.

With respect to offence A, if the court is satisfied that the appellant should have been found not guilty due to mental impairment, it must enter a finding of not guilty on this ground.

Similarly, with respect to offence B, if the court is satisfied that the appellant should have been found not guilty due to mental impairment, it must enter a finding of not guilty on this ground.

Subclause (2) requires the Court of Appeal, when it orders a new trial, to order that the appellant appear on a specified date before the trial court. This requirement is new. It ensures that the accused is promptly brought back before the trial court; currently there is no clear way to ensure this happens.

This clause also gives the Court of Appeal power to re-sentence after an appeal, including for aggregate offences. If the Court of Appeal sets aside the conviction for one offence, it may vary sentences that relied on the conviction for that offence.

Division 2—Appeal by offender against sentence

- Clause 278 allows a person sentenced for an offence by an originating court to appeal to the Court of Appeal against the sentence imposed, provided that the Court of Appeal gives the person leave to appeal. Originating court is defined in clause 3.
- Clause 279 sets out how an appeal is commenced, namely by filing an application for leave to appeal within 28 days of sentencing.
- The Registrar of Criminal Appeals of the Supreme Court must provide the respondent with a copy of the notice of application within 7 days after the notice is filed.
- Clause 280 applies to an application for leave to appeal under clause 278 (against sentence) that is heard by a single Judge of Appeal under clause 315(1) and allows an application for leave to appeal to be refused if there is no reasonable prospect that the Court of Appeal would impose a less severe sentence than the sentence first imposed, even if there may be a reasonably arguable ground of appeal.
- Clause 280 reflects the approach of the minority in *R v Raad* [2006] VSCA 67, a decision of a bench of five that was split 3/2. The majority held that the sole test was whether the single judge considered that there was a reasonably arguable ground of appeal and held that the single judge should not refuse leave having found a reasonably arguable ground of appeal because the judge considered that there was no reasonable prospect of a lesser sentence being imposed.
- The minority in *Raad* considered that it was appropriate for a single judge to refuse leave in cases where an arguable error could be shown in sentencing, but that there was no reasonable prospect of the sentence being reduced on appeal.
- However, no change has been made to the absolute right to challenge the decision of the single judge by electing to have the case dealt with by a three-member court. (See clause 315(2)).
- Clause 280 deals only with when leave may be refused, but leaves the general basis upon which leave should be granted open.
- Clause 281 concerns the determination of appeals under clause 278. The Court of Appeal may allow an appeal if the appellant satisfies the court that there is an error in the original sentence and that a different sentence should be imposed. (Originating court is defined in clause 3).

Currently, section 568(4) of the **Crimes Act 1958** requires the Court of Appeal to quash the sentence and substitute a different sentence if it thinks that "a different sentence should have been passed." On the face of it, this discretion is unfettered. In practice, however, it is firmly settled that a two-stage test applies: first, to assess whether the sentence imposed was attended by error and, only if such error was established, to re-sentence the appellant (see, for example, *House v The Queen* (1936) 55 CLR 499 at 505).

The Court of Appeal's discretion has also been held to be subject to three qualifiers. First, there is a strong presumption in favour of correctness, affirming the broad nature of the discretion vested in a sentencing judge. Secondly, even if there is no apparent error on the record, manifest excess itself may allow the Court of Appeal to presume error. Thirdly, an error as to the facts can be found on the basis of material not available to the sentencing judge if the interests of justice require such material to be considered.

The restrictions are not apparent from the words of the current section. To rectify this, subclause (1) specifically requires the Court of Appeal to satisfy itself that there was an error in the original sentence and that a different sentence should be imposed. This is intended to embed the principles noted above into the statutory scheme. The issue of when the Court of Appeal will receive and consider additional evidence will continue to be governed by the principles and practices developed by the court.

Subclause (3) provides that, if the Court of Appeal is considering imposing a more severe sentence than the sentence originally imposed, it must warn the appellant as early as possible during the hearing of that possibility. This requirement is new and is consistent with the recommendation of the Victorian Parliament Law Reform Committee that (in relation to de novo appeals to the County Court) a statutory warning should be given if the court is considering increasing a sentence on appeal, presumably to give the appellant the opportunity to abandon the appeal. See also discussion of clause 256.

Clause 282 sets out orders which the Court of Appeal must or may make following a successful appeal which include setting aside the appeal and substituting a new appropriate sentence (whether more less severe) or remitting the matter.

If the Court of Appeal remits a matter to the originating court it can give directions as if the matter is to be re-heard.

The term "set aside" is used instead of "quash" throughout the Appeals Chapter as part of modernising language in the Bill. No different meaning is intended.

- Clause 283 allows a person sentenced to a term of imprisonment by the County Court on appeal from a non-custodial sentence in the Magistrates' Court to appeal to the Court of Appeal with leave.
- Clause 284 sets out how an appeal under clause 283 is commenced, namely by filing a notice of application for leave to appeal within 28 days of sentencing by the County Court.

The Registrar of Criminal Appeals of the Supreme Court must provide the respondent with a copy of the notice within 7 days after the filing of the notice.

- Clause 285 provides for the determination of sentence appeals to the Court of the Appeal from the County Court (on appeal from the Magistrates' Court). The clause now distinguishes between finding error and re-sentencing as described in relation to clause 281.

If the Court of Appeal is considering imposing a more severe sentence than the sentence originally imposed, it must warn the appellant as early as possible of that possibility. See discussion in clauses 256 and 281.

- Clause 286 sets out orders which the Court of Appeal must or may make following a successful appeal which include setting aside the appeal and substituting a new appropriate sentence (whether more less severe) or remitting the matter to the originating court.

If the Court of Appeal remits a matter to the originating court it can give directions concerning the further hearing of the matter by the County Court. See, also, discussion under clause 282.

Division 3—Crown appeal against sentence

- Clause 287 allows the DPP to appeal to the Court of Appeal against a sentence imposed by an originating court if the DPP—
- considers that there is an error in the sentence imposed and that a different sentence should be imposed; and
 - is satisfied that an appeal should be brought in the public interest.

Originating court is defined in clause 3 and includes reference to original jurisdiction, which is also defined in clause 3.

Clause 288 sets out how an appeal is commenced, namely by filing a notice of application for leave to appeal within 28 days of sentencing by the County Court. A copy of the notice of appeal must be served personally on the respondent within 7 days after the notice was filed and the DPP must provide a copy of the notice to the respondent's legal practitioner if able to be identified.

Clause 289 provides for how the Court of Appeal must determine a Crown appeal against sentence.

The court must allow the appeal if the DPP satisfies the court that there is an error in the sentence originally imposed and that a different sentence should be imposed. See the discussion of "error" in relation to clause 281. In the same way that a manifestly excessive sentence can allow the court to presume error on an offender appeal, a manifestly inadequate sentence can, in accordance with established principles on DPP appeals against sentence, allow the court to presume error.

Subclause (2) is new and removes what is called sentencing double jeopardy as a factor when considering whether there has been an error on DPP appeals against sentence.

Currently, when determining what sentence is appropriate to impose, the court may take into account what is described as the double jeopardy that the offender faces as a result of having to be sentenced twice. This is not double jeopardy in a strict legal sense. Instead, it reflects the anticipated trauma and inconvenience of being sentenced twice.

Consideration of double jeopardy is removed because it interferes with a central function of DPP appeals which is to provide guidance for lower courts on sentencing. Further, the inconvenience and trauma of re-sentencing a person is not the only matter relevant to such policy issues. Rather, the interests of the community in seeing adequate punishment given for criminal offences is an overriding policy consideration.

The double jeopardy principle is described in the often cited case of *R v Clarke* [1996] 2 VR 520 as follows:

"When, in response to a Crown appeal, the court decides to re-sentence an offender, it ordinarily gives recognition to the element of double jeopardy involved (in twice standing for sentence) by imposing a sentence that is somewhat less than the sentence it considers should have been imposed at first instance.

An appellate court has an over-riding discretion which may lead it to decline to intervene, even if it concludes that error has been shown in the original sentencing process. In this connection, the conduct of the Crown at the original sentencing proceedings may be a matter of significance."

Subclause (2) removes consideration of double jeopardy when deciding if there has been error demonstrated. Clause 290(2) removes consideration of "double jeopardy" when re-sentencing an offender after error has been established. In each context, the Bill—

- removes the consideration in the first paragraph quoted from Clarke above (namely twice standing for sentence); and
- limits the discretion in the second paragraph only to the extent that the discretion may be exercised on the basis of the double jeopardy principle. Accordingly, the conduct of the Crown at the original sentencing proceedings will continue to be relevant.

In order to avoid the potential difficulties identified in *State of Western Australia v Wallam* [2008] WASCA 117, the phrase "the element of double jeopardy involved in the fact that the respondent is being sentenced again" is used to ensure that it is clear what the court is not entitled to take into account.

Clause 290 sets out the orders the Court of Appeal must make upon a successful DPP appeal, namely to set aside the original sentence and impose the sentence, whether more or less severe, that it considers appropriate. It can also make any other order that it considers ought to be made.

Subclause (2) ensures that, in considering what sentence to impose, the Court of Appeal does not take into account any element of double jeopardy involved in the respondent being sentenced again. See discussion in clause 289 above.

Clause 291 sets out the DPP's right of appeal in cases where the person convicted has failed to fulfil an undertaking to assist law enforcement authorities and the sentence was less severe because the person gave the undertaking.

The DPP can bring an appeal under this clause at any time, whether or not the person has served the sentence.

- Clause 292 sets out how an appeal under clause 291 is commenced, namely by filing a notice of appeal in accordance with the rules of court. A copy of the appeal must be served personally on the respondent within 14 days of the filing of the notice and the DPP must provide a copy of the notice to the respondent's legal practitioner.
- Clause 293 provides for the Court of Appeal to allow a DPP appeal if it considers that the respondent has failed (wholly or partly) to fulfil an undertaking (see clause 291(a)).
- Clause 294 sets out the orders the Court of Appeal may make upon a successful appeal, namely to set aside the original sentence and impose the sentence, whether more or less severe, that it considers appropriate.
- Subclause (2) provides that, in considering what sentence to impose, the Court of Appeal does not take into account any element of double jeopardy involved in the respondent being sentenced again. See discussion in clause 289.

Division 4—Interlocutory appeal

- Clause 295 sets out the right of appeal against interlocutory decisions. An interlocutory decision is defined in clause 3. It is defined broadly to avoid technical arguments about what judgments or orders and other types of decisions are capable of being appealed.
- This clause applies to proceedings in the County Court or the Trial Division of the Supreme Court for the prosecution of an indictable offence and allows a party to appeal, with leave, to the Court of Appeal against an interlocutory decision made in the proceeding.
- However, a party cannot seek leave to appeal a decision on the admissibility of evidence unless that evidence, if ruled inadmissible, would eliminate or substantially weaken the prosecution case.
- Subclause (3) limits a party's ability to seek leave to appeal after the trial has commenced without the judge who made the interlocutory decision certifying the following matters—
- with respect to an appeal of a decision on the admissibility of evidence, that the evidence, if ruled inadmissible, would eliminate or substantially weaken the prosecution case or, in any other case, the interlocutory decision must be of sufficient importance

to the trial to justify it being determined on an interlocutory appeal. The words "is otherwise of sufficient importance" in (3)(b) confirm that a decision which passes the evidential threshold in (3)(a) will inevitably pass the sufficient importance test;

- if the interlocutory decision is made after the trial commences the relevant issue must not have been reasonably able to be identified before the trial or the party must not have been at fault in failing to identify the relevant issue.

The requirement for certification is designed to reflect the desired balance between hearing appeals that are genuinely likely to reduce overall delays and avoiding the fragmentation of individual trials without good reason. Restricting access to appeals during trials encourages earlier resolution of important issues pre-trial.

Certification in accordance with this clause is a necessary but not sufficient step for a grant of leave to appeal and the Court of Appeal must still grant or refuse leave based on the factors in clause 297.

The new sections 15A and 15B of the **Appeal Costs Act 1998** in Part 9.6 of the Bill apply to interlocutory appeals.

Clause 296 allows a party to apply to the Court of Appeal for a review of a decision by a judge refusing to certify under clause 295(3). If the trial has not commenced when the judge refuses to certify, an application for review is commenced by filing a notice of that application which must be filed within 10 days of the refusal to certify or, if the trial commences within 10 days of this date, within 2 days after the commencement of the trial.

The time limit for filing is also 2 days (but after the refusal to certify rather than the start of the trial) if the trial has already commenced at the time that the judge refuses to certify.

A copy of the notice must be served on the respondent. Once again, the time limits for doing so, which are set out in subclause (3), depend on whether the trial has commenced—

- if the trial has not commenced when the judge refuses to certify the notice must be served within 2 days of it being filed;

- if the trial commences within 10 days of the refusal to certify, within 2 days of the commencement of the trial; and
- if the trial has commenced when the judge refuses to certify, within 2 days after the refusal to certify.

Clause 297 contains the factors to which the Court of Appeal must have regard, when considering whether granting leave to appeal is in the interests of justice, including—

- the extent of any disruption or delay to the trial process that may arise if leave is given; and
- whether the determination of the appeal may—
 - render the trial unnecessary; or
 - substantially reduce the time required for the trial; or
 - resolve an issue of law, evidence or procedure that is necessary for the proper conduct of the trial; or
 - reduce the likelihood of a successful appeal against conviction in the event that the accused is convicted at trial; and
 - any other matter that the Court of Appeal considers relevant.

If leave to appeal is sought during trial, the Court of Appeal must not grant leave unless the reasons for doing so clearly outweigh any disruption to the trial.

Subclause (3) ensures if the Court of Appeal refuses leave to appeal under this clause, the refusal does not preclude another appeal (particularly post-conviction) on the issue.

Clause 298 sets out how an interlocutory appeal is commenced, namely by filing a notice of application for leave to appeal.

The time limits for filing depend on whether the trial has commenced or not. The notice must be filed—

- if the trial has not commenced when the interlocutory decision is made, within 10 days of the date of the interlocutory decision;

- if the trial commences within 10 days of the interlocutory decision, within 2 days after the trial commences;
- if the trial has commenced, within 2 days after the interlocutory decision.

A copy of the notice must be served on the respondent. Again, the timing, which is set out in subclause (2), depends on whether the trial has commenced.

- Clause 299 provides that, if the Court of Appeal grants leave to appeal under clause 295 after the trial has commenced, the trial judge must adjourn the trial until the appeal has been determined. The trial judge must adjourn the trial without discharging the jury, if this is reasonably practicable.
- Clause 300 provides for how the Court of Appeal is to determine an interlocutory appeal.
- The appeal is to be determined on the evidence, if any, given in the proceeding to which the appeal relates, unless the Court gives leave to adduce additional evidence.
- The Court of Appeal may affirm or set aside the interlocutory decision and make any other decision that the court considers ought to have been made. It can also remit the matter to the trial court with directions.
- Clause 301 requires the Registrar of Criminal Appeals of the Supreme Court to transmit the decision of the Court of Appeal to the court which made the interlocutory decision and requires that court to enter the decision on the court record.

Division 5—Case stated for Court of Appeal

- Clause 302 allows courts to reserve questions of law for determination by the Court of Appeal. There are two main changes from the existing case stated provisions in sections 446 and 447 of the **Crimes Act 1958**, namely the clause—
- removes the ability to state a case on the accused's application after conviction. In view of the right to appeal against conviction, this process is now obsolete;
 - removes the restriction on the procedure only being available on the accused's application. It will now (by operation of clause 337) also be available on application by the DPP or on the court's own motion.

The court can only reserve a question of law arising before or during the trial for determination by the Court of Appeal if it is in the interests of justice to do so. In determining the interests of justice, the court must have regard to the same factors as the Court of Appeal must have regard to when granting leave to appeal an interlocutory decision, namely—

- the extent of any disruption or delay to the trial process that may arise if the question of law is reserved; and
- whether the determination of the question of law may—
 - render the trial unnecessary; or
 - substantially reduce the time required for the trial; or
 - resolve a novel question of law that is necessary for the proper conduct of the trial; or
 - reduce the likelihood of a successful appeal against conviction in the event that the accused is convicted at trial.

This is an extension from the current test which only allows a question of law to be reserved if it could render the conduct of the trial unnecessary. In two recent Supreme Court cases (*R v Pepper* [2007] VSC 234 and *DPP v McAllister* [2007] VSC 315) the case stated provision could not be used because no matter what decision was made on the question of law, a trial would still be necessary. Clause 302 will allow such questions to be reserved.

As in interlocutory appeals, the court cannot reserve a question of law after a trial has commenced, unless the reasons for doing so clearly outweigh any disruption to the trial.

The new section 15C of the **Appeals Costs Act 1998** in Part 9.6 of the Bill applies to case stated procedures.

Clause 303 provides that, if a court reserves a question of law under clause 302 after the trial has commenced, it must adjourn the trial without discharging the jury, if reasonably practicable, until the question of law has been determined. This also mirrors the approach in interlocutory appeals (see clause 299).

- Clause 304 applies in cases where the Supreme Court or the County Court refuses an application under clause 302 to reserve a question of law.
- In such cases, the Court of Appeal can call on the court which dismissed the application and the respondent to show cause why the question of law should not be reserved.
- The Court of Appeal may order that the question of law be reserved, and, if so, the court to which the order is directed must reserve the question.
- Clause 305 provides for how a case is to be stated, namely in writing referring to the circumstances in which the question has arisen. The court must sign the case stated and transmit it to the Court of Appeal within a reasonable time and the Court of Appeal can return a case stated for amendment.
- Clause 306 sets out the general powers of the Court of Appeal in relation to a case stated. It enables the Court of Appeal to hear and finally determine a question of law set out in a case stated and to remit the question and the determination of the Court of Appeal back to the court which reserved the question.
- Clause 307 requires the Registrar of Criminal Appeals of the Supreme Court to transmit the judgment and order of the Court of Appeal to the court that reserved the question of law and that court must enter the judgment and order on the court record.
- Clause 308 allows the DPP to refer a point of law to the Court of Appeal following an acquittal in respect of all or any of the charges.
- Pursuant to subclause (4) a reference under this clause does not affect the trial in relation to which the reference is made or an acquittal in that trial.

Division 6—Status of sentences and orders during appeal period

Currently, there is no general rule providing for or against stays of sentencing orders or an offender appeal to the Court of Appeal. The provisions that determine how an appeal affects sentencing orders are in both the **Crimes Act 1958** and the **Supreme Court (Criminal Procedure) Rules 1998**. The Bill states and, where possible, clarifies the current position.

In summary, clauses 309–312 of the Bill—

- create an express presumption that, unless this Bill or any other Act provides to the contrary, sentences are not stayed during the appeal period;

- provide exceptions for specific orders to be automatically stayed, namely—
 - restitution orders under the section 84 of the **Sentencing Act 1991**; and
 - compensation orders under sections 85B (pain and suffering) and 86 (property loss) of the **Sentencing Act 1991**;
- provide a power for the trial court and/or the Court of Appeal to stay any other sentencing orders in the interests of justice. The trial court has that power prior to an appeal being filed and the Court of Appeal has it after that point;
- include the power to grant stays as a power that can be exercised by a single judge of the Court of Appeal under clause 315; and
- as a separate matter, provide that, where any order is made under any Act for the forfeiture or destruction of an item, as a minimum protection, the item must not be destroyed until the appeal period expires.

Clause 309 provides a general presumption that a sentence is not stayed during the appeal period unless this or any other Act otherwise provides or the trial judge or the Court of Appeal orders a stay. Appeal period is defined in clause 3. See also clause 315, which allows a single Judge of Appeal to stay a sentence.

Clause 310 enables a prisoner within the meaning of the **Corrections Act 1986**, who appeals or applies for leave to appeal, to apply to the Court of Appeal to be granted bail and the Court of Appeal to grant the prisoner bail pending the appeal.

Clause 311 provides for the automatic stay of certain orders during the appeal period; in particular orders under sections 84, 85B or 86 of the **Sentencing Act 1991**, unless the Supreme Court or County Court otherwise order.

The Court of Appeal can set aside or vary an order staying an order referred to in this clause.

Clause 312 deals with execution of orders for forfeitures or destruction of property.

Subclause (1) states that property which is the subject of a forfeiture or destruction order must not be forfeited or destroyed during the appeal period unless earlier forfeiture or destruction is permitted by any other law.

Subclause (2) excludes orders made under the **Confiscation Act 1997** from the ambit of this clause. The reason for exclusion of orders made under the **Confiscation Act 1997** is that subclause (1) risks picking up such orders. However, forfeiture and pecuniary penalty orders under the **Confiscation Act 1997** have their own regime to protect the position during an appeal period.

Division 7—Powers and procedure

Clause 313 allows the Court of Appeal or the Registrar of Criminal Appeals to extend the time for filing or serving notices of appeal or notices of application for leave to appeal.

The applicant is entitled to have the Court of Appeal determine the application if the Registrar of Criminal Appeals of the Supreme Court refuses an application to extend time.

Clause 314 allows an appeal to be abandoned in accordance with the rules of court.

Clause 315 sets out the powers which may be exercised by a Judge of Appeal.

Subclause (1) allows a Judge of Appeal to make various specified orders in the same manner as they may be exercised by the Court of Appeal. A judge of appeal may—

- give leave to appeal (clauses 274, 278, 283, 295);
- review a refusal to certify (clause 296);
- extend the time within which notice of appeal may be given (clause 313);
- extend the time within which notice of application for leave to appeal may be given (clause 313);
- grant the appellant bail (clauses 310 and 323);
- order stays of sentence (clause 309(2)).

Pursuant to subclause (2), if a Judge of Appeal refuses an application to exercise a power referred to in subclause (1), the applicant is entitled to have the application determined by the Court of Appeal.

- Clause 316 allows the Registrar of Criminal Appeals to require a trial judge to provide a report on a case tried by the judge, giving the opinion of the trial judge on the case or on any point arising in the case. This clause is based on section 573 of the **Crimes Act 1958** which also referred to the trial judge's notes of trial. This historical reference is redundant in light of the way in which trial transcripts are kept by the Victorian Government Reporting Service.
- Clause 317 allows the Court of Appeal to order the production of any document, exhibit or other thing connected with the proceeding.
- Clause 318 allows the Court of Appeal to order any witness who would have been a compellable witness at the trial to attend and be examined before the court, whether or not the witness was called at the trial.
- The Court of Appeal may also order that the examination of the witness be conducted before any person appointed by the Court of Appeal for that purpose. Further, it may admit as evidence any deposition of a witness taken in an examination under this clause.
- Clause 319 allows the Court of Appeal to receive the evidence of any witness (including the appellant) who is a competent but not compellable witness if it considers that it is in the interests of justice to do so.
- Clause 320 allows the Court of Appeal to appoint a special commissioner to inquire into and report on any question referred to it under this Part if the question involves prolonged examination of documents or accounts; or any scientific or local examination which the Court of Appeal considers cannot conveniently be conducted before it.
- Clause 321 sets out the extent to which new evidence can be used to increase a sentence on appeal.
- Subclause (1) provides that, subject to subclauses (2) and (3) the Court of Appeal must not increase a sentence due to any evidence that was not given at the trial or sentencing hearing (new evidence).
- Subclause (2) permits the Court of Appeal, in an appeal under clause 291 (regarding failure to fulfil an undertaking) to increase a sentence by reason of evidence of the failure.
- Subclause (3) also allows the Court of Appeal to increase sentences due to new evidence, if the sentencing judge was misled and the increase is necessary in the interests of justice.

Currently, section 574 of the **Crimes Act 1958** contains a proviso, providing that the Court of Appeal cannot increase a sentence on appeal based on new evidence, that is "evidence not given at trial." Subclause (3), which does not appear in the current section, is designed to provide flexibility in the proviso's application in circumstances such as those which arose in *DPP v Burgess* (2001) 3 VR 363.

Clause 322 permits the Court of Appeal to impose a sentence on a person under this Part even if the person does not attend the hearing of an appeal to the Court of Appeal.

However, the Court of Appeal cannot impose a sentence that requires the consent of the person, for example a community-based order, in the absence of the person.

Clause 323 provides that, if on an appeal the Court of Appeal directs a new trial or remits a matter to the Supreme Court or the County Court, the Court of Appeal may remand the appellant in custody or grant the appellant bail pending the commencement of that proceeding.

Clause 324 allows the Court of Appeal to issue any warrant necessary for enforcing the orders of the court.

Clause 325 refers to ancillary orders of the original court which are orders (other than the order that is the subject of the appeal) made by the originating court in the proceeding. The Court of Appeal can set aside or vary an ancillary order in appeals under this Part, if it is in the interests of justice to do so.

An example is given in the clause: on an appeal against conviction from the County Court, the Court of Appeal may quash or vary an order made by the County Court for the suppression of a name.

This is a new clause giving the Court of Appeal a power to vary or quash orders other than orders appealed from. This will avoid a difficulty that occasionally arises where the Court of Appeal has to send a case back to the originating court to deal with an ancillary order such as name suppression when an appeal has not technically been taken against that order.

Clause 326 provides for the remuneration of special commissioners.

CHAPTER 7—REFERENCE TO COURT OF APPEAL ON PETITION FOR MERCY

Clause 327 allows the Attorney General to refer whole cases to the Court of Appeal or any point arising in a case to judges of the Trial Division of the Supreme Court for their opinion, if a person convicted on indictment or found unfit to stand trial due to mental impairment petitions for the exercise of Her Majesty's mercy in relation to the conviction or finding.

If the Attorney-General refers the whole case to the Court of Appeal, the Court of Appeal must hear and determine the case as if it were an appeal by the person.

Alternatively, if the Attorney-General refers a question to the judges of the Trial Division of the Supreme Court, those judges or any three of them must consider the point and provide the Attorney-General with their opinion.

CHAPTER 8—GENERAL

PART 8.1—CONDUCT OF PROCEEDING

Clause 328 allows a party to a criminal proceeding to appear in various ways, including personally, by a legal practitioner (or another person empowered by law to appear for the party) or, in the Magistrates' Court in the case of informants who are police officers, by a police prosecutor. Additionally, in certain circumstances, a party may appear by any other prescribed person or class of persons under specified provisions of the **Sentencing Act 1991** and the **Infringements Act 2006**.

Legal practitioner is defined in clause 3.

Clause 329 requires an accused or a party to the appeal who was the accused to appear at every hearing in the criminal proceeding against him or her, unless this Bill otherwise provides or the court excuses that person from appearing.

See clause 328 with respect to the meaning of appear, which is also defined in clause 3.

Clause 330 requires an accused or a party to an appeal who was the accused to attend a hearing if—

- this Bill so requires;
- the accused or the party has been remanded in custody or granted bail to attend the hearing; and
- the court requires the attendance of the accused or the party at the hearing.

The court may also excuse a person from attending a hearing that they are otherwise required to attend. If a person fails to attend, the court may issue a warrant to arrest the person in specified cases.

Attend is defined in clause 3 to mean being physically present in court.

The Bill separately requires attendance at a contest mention hearing (see clause 55(4)), all hearings in a committal proceeding (see clause 100(2)) and all hearings under Chapter 5 (see clause 246).

Clause 331 contains a general power of a court to adjourn proceedings. The power to bring a hearing on early when an accused is in custody is currently contained in sections 128(5) and (6) of the **Magistrates' Court Act 1989**. As it is a sensible case management tool, it has been made of general application.

If the court adjourns a hearing, it must either allow the accused to go at large; remand the accused in custody; or grant bail or an extension of bail.

Under subclauses (3) and (6), if the court has adjourned the hearing to a particular time, it may order that the hearing be held or resumed before that time and to a place, other than the court, by audio visual link.

Subclause (5) applies to cases in which a court adjourns a criminal proceeding in which the jury has already been sworn, in which case the court may discharge the jury from giving a verdict and order a new trial, whether or not the accused is present. (See clauses 299 and 303 which place restrictions on this power when the adjournment relates to an interlocutory appeal or case stated.)

Clause 337 provides that an order under the Bill can be made on application by either party or by the court's own motion.

- Clause 332 requires a person who has the legal custody of an accused in detention to cause the accused to be brought to and from court whenever necessary so that the accused may be tried, sentenced or otherwise dealt with according to law.
- Under subclause (2), if a court considers it in the interests of justice that an accused in detention should be present in court, otherwise than for trial, hearing or sentence, the court may order that the accused be brought before the court.
- Clause 3 defines in detention.
- Clause 333 gives the Magistrates' Court the power to return an accused to a youth justice centre instead of remanding them in custody.
- Clause 334 deals with proceedings against bodies corporate and particularly the role of a representative of a corporation in criminal proceedings.
- Clause 3 defines a corporate accused as an accused that is a body corporate.
- A representative of a body corporate is defined as a person duly appointed by the body corporate to represent it for the purpose of doing any act or thing which this clause authorises the representative to do.
- A statement in writing by a manager of the body corporate to the effect that the person named in the statement has been appointed as the representative of the body corporate for the purposes of this clause is admissible and amounts to presumptive proof of its contents.
- Under subclause (4), a representative is allowed to do any act or thing that a natural person may do in a criminal proceeding other than certain specified acts which must be expressly authorised.
- If a representative appears in a proceeding against a body corporate for an offence and a provision of this Bill requires something to be done in the presence of the accused, or to be said to the accused, it is sufficient if that thing is done in the presence of the representative or said to the representative.
- Clause 335 prohibits a court from hearing and determining a proceeding without an interpreter if the accused is charged with an offence punishable by imprisonment and does not have a knowledge of English sufficient to enable the person to understand, or participate in, the proceeding.

- Clause 336 allows parties to criminal proceedings to apply for the issue of a subpoena in accordance with the rules of court or a witness summons in accordance with the **Magistrates' Court Act 1989**, as the case requires.
- Clause 337 provides that, unless the context otherwise requires, a power or discretion conferred on a court by or under this Bill may be exercised by the court on the application of a party to a criminal proceeding or on its own motion. As a result of this general power, specific reference in other clauses to this issue have been removed.

PART 8.2—SERVICE OF DOCUMENTS

- Clause 338 sets out the general rules of service which apply unless this Bill or any other Act or the rules of court provide otherwise. It provides for four categories of service, namely—
- if a document is to be served personally, it must be served in accordance with clause 339;
 - if a document is to be served on the informant or the DPP, it must be served in accordance with clause 340;
 - if a document is to be served on a company, registered body, incorporated association or other body corporate, it must be served in accordance with clause 341; and
 - in any other case, a document may be served in accordance with clause 342 (ordinary service).
- Clause 339 outlines how personal service is to be effected, namely by—
- giving a copy of the document to the person to be served; or
 - if the person does not accept the copy, by putting the copy down in the person's presence and telling the person the nature of the document; or
 - leaving a copy of the document for the person at the person's last known or usual place of residence with a person who appears to be of or over the age of 16 years.

The option to put down a document in the presence of the person being served is consistent with personal service provisions in Rule 6.03 of the **Supreme Court (General Civil Procedure) Rules 2005**.

This clause does not allow personal service to be effected by leaving a document at a last known business address. This is because service at a person's business address does not align well with the primary purpose of personal service—that is, to ensure that a document is actually brought to the attention of the person being served. It remains open to the prosecution to seek an order for substituted service at a person's place of business if required under clause 345. Further, this clause does not remove the ability to locate the person at their place of business and to give them the document or leave it in their presence.

Subclause (3) provides that, if the person to be served is in detention or in immigration detention, personal service of a document on the person may be effected by sending a copy of the document by registered post addressed to the person at the place of detention.

Under subclause (4), if a legal practitioner has given written notice to the informant or the prosecution that the legal practitioner represents an accused and is instructed to accept personal service of documents on the accused's behalf, personal service of a document on the accused may be effected on the legal practitioner in the ways specified. This subclause makes personal service on a legal practitioner acceptable only when it has been expressly agreed to by the accused.

Clause 340 sets out the requirements for service on an informant or the DPP. This new express service category has been created because the personal and ordinary service provisions are not relevant to service on an informant or the DPP.

Under subclause (2), a document may be served on the informant in the following ways—

- by giving a copy of the document to the informant, or a person representing the informant, at a hearing in relation to the charge; or
- by sending a copy of the document by pre-paid ordinary post addressed to the informant; or
- by sending a copy of the document by fax or email addressed to the informant at the fax number or email address nominated by the informant; or
- by leaving a copy of the document for the informant at the informant's business address with a person who appears to work there; or

- in any other manner agreed between the informant and the party serving the document. This will allow arrangements in individual cases and protocols between agencies to develop.

See also clause 18 which requires an informant to nominate service details on or with the charge sheet.

Under subclause (3), documents may be served on the DPP in the following ways—

- by giving a copy of the document to a person representing the DPP at a hearing in relation to the charge; or
- by leaving a copy of the document at the Office of Public Prosecutions with a person who appears to work there; or
- by sending a copy of the document by prepaid ordinary post addressed to the Office of Public Prosecutions at the ordinary business address of the Office of Public Prosecutions; or
- by sending a copy of the document by prepaid ordinary post addressed to the DPP at the business address, if any, nominated by the DPP; or
- by sending a copy of the document by fax or email addressed to the DPP at the fax number or email address nominated by the DPP; or
- in any other manner agreed between the DPP and the party serving the document. This will allow arrangements in individual cases and protocols between agencies to be developed.

Clause 341 sets out the requirements for service on companies, registered bodies, incorporated associations or other bodies corporate. This provision is based on section 34(3) of the **Magistrates' Court Act 1989** but has been broadened to include incorporated associations and any other bodies corporate. The modes of service on the specified bodies have been extended and refined to make them consistent with the way in which bodies corporate are served in the legislation that creates them. They are as follows—

- companies within the meaning of the Corporations Act 2001 (Cth) may be served in accordance with section 109X of that Act;
- registered bodies within the meaning of the Corporations Act 2001 (Cth) may be served in accordance with section 601CX of that Act;
- incorporated associations within the meaning of the **Associations Incorporations Act 1981** may be served in accordance with section 48 of that Act.

Subclause (4) is a default provision and allows service of a document which is not effected in accordance with the previous subclauses to be effected in a number of listed ways including allowing the representative of a body corporate to nominate a method of service.

Clause 342 sets out the requirements for ordinary service and is the default method of serving a document when personal service is not required. It is designed to provide for the many documents in a proceeding which do not need strict requirements for personal service.

The strict requirements for written notice required for personal service on a legal practitioner are not required for ordinary service. Instead, the only requirement is that the legal practitioner acts for the accused in respect of the criminal proceeding to which the document relates.

Accordingly, this clause provides that ordinary service of a document is effected by ordinary post on the person (at a residential or business address) or their legal practitioner or in any other way agreed.

As the note to the clause indicates, the **Electronic Transactions (Victoria) Act 2000** applies to allow electronic service.

Clause 343 provides that documents which are required or permitted to be served by ordinary service can also be served personally.

Clause 344 allows rules of court to prescribe how the last known place of residence or business of an accused is to be ascertained in specified circumstances.

Clause 345 enables the court to make an order for substituted service if service cannot be effected promptly.

Clause 346 provides that, if a person is required or permitted to serve a document, the person may serve the document by causing it to be served by another person.

Clause 347 sets out how service may be proved, namely by oral sworn evidence or affidavit or declaration.

Evidence of service must identify the document served and state the time and manner in which service was effected and must be filed in a court—

- in the case of a service of a summons to answer to a charge for an indictable offence where a date for a filing hearing has been fixed, at least 2 days before the filing hearing;
- in the case of service of any other summons to answer to a charge, at least 7 days before the return date;
- in the case of service of any other document, a reasonable time before the hearing to which it applies.

PART 8.3—COSTS

Division 1—Preliminary

Clause 348 prohibits the court from making an order awarding costs against a person without giving that person a reasonable opportunity to be heard.

This clause expressly indicates that a costs order should not be made against a person without giving that person a reasonable opportunity to be heard, because that person may not be a party to the proceeding.

Clause 337 provides that an order under the Bill can be made on application by either party or of a court's own motion.

Division 2—Costs in summary proceedings and committal proceedings

Clause 349 provides a broad power to the Magistrates' Court to award costs in a criminal proceeding or a purported proceeding and sets out the particular circumstances in which costs may be ordered.

Under subclause (2), in exercising its discretion the court may decide when to order costs, against which party and what costs are to be paid and may take into account any unreasonable act

or omission of the parties which resulted in prolonging the proceeding.

The court may award costs against an informant if it strikes out a charge under clause 14(3), where the police officer or public official cannot prove that they have filed the charge-sheet and summons within 7 days of signing the charge-sheet.

Under subclause (4), the court also has the power to award costs in a purported proceeding, that is, a proceeding which is beyond the jurisdiction of the court. This enables the court to award costs in a matter where it would otherwise lack the power to award costs because it does not have jurisdiction to hear the matter.

Clause 350 states that if a notice to appear lapses under clause 22(1), and notice is given in accordance with clause 23, a member of the police force or the public official who served a notice is not liable for any costs of the person served with the notice in respect of the serving or lapsing of the notice.

Clause 351 relates to the filing fee that an accused is liable to pay upon being convicted. It provides that if certain conditions are fulfilled, the Magistrates' Court must order the accused to pay by way of costs, in addition to the amount of the fine and any other costs, the amount of the filing fee that, but for the exemption, would have been payable.

This rule applies if—

- a charge-sheet containing one or more charges is filed with a registrar of the Magistrates' Court; and
- no filing fee is payable because of an exemption contained in the regulations; and
- the accused is convicted of one or more of the alleged offences and is ordered to pay a fine.

Division 3—Costs in trials on indictment

Clause 352 provides the court with a broad discretion to order costs against a party or their legal practitioner in specified circumstances, namely if—

- an act or omission by a party before the commencement of trial was unreasonable and resulted in prolonging the trial;

- there has been a departure referred to in clause 233 (with respect to the introduction of evidence not previously disclosed); or
- a party has failed to comply with a requirement of or order under Part 5.5 (regarding pre-trial procedure).

Under subclause (3), the court may include the accused's own costs incurred arising out of a requirement imposed under Part 5.5 in any indemnity certificate the court grants under the **Appeals Costs Act 1998** but only if the accused has complied with the requirements of and orders made under that Part and the hearing is discontinued or adjourned through no fault of the accused.

Clause 353 sets out the requirements of a costs order in cases where the court determines that one should be made under clause 352 or 358. If the court is satisfied that a party or a party's legal practitioner has reasonably incurred additional costs as a result of any act or omission of another party, the order must provide for the payment of costs to the first-mentioned party. In all other cases, the order must provide for payment of costs into court for payment into the Consolidated Fund.

Division 4—Costs on appeal

Clause 354 provides a discretion to the County Court to order costs on appeal. The clause is designed to deter unmeritorious appeals to the County Court.

Under subclause (1), the court may order that the appellant pay all or a specified portion of the respondent's costs where an appeal under clause 254 is struck out or dismissed; and where the court is satisfied that the appeal was brought vexatiously or frivolously or in abuse of process.

Subclause (2) provides that nothing in subclause (1) limits any discretion of the court as to costs of an appeal conferred by this Bill or the **County Court Act 1958**.

Subclause (3) allows the court to order that the appellant pay to the respondent any costs that it thinks reasonable where an appeal is commenced (and served) and the appeal was not afterwards prosecuted or the County Court has no jurisdiction to hear and determine the appeal.

Finally, under subclause (4) the court may order that the appellant pay any costs incurred as a result of a breach of an undertaking or abandonment of an appeal.

- Clause 355 enables the respondent to apply on notice to the County Court for an order dealing with his or her costs of the appeal within 28 days after receiving a copy of the order striking out an appeal.
- Clause 356 gives the Supreme Court the discretion to order costs on appeal from the Magistrates' Court to the Supreme Court on a question of law (see clause 272).
- Clause 357 provides that no costs are to be allowed to a party to an appeal under Part 6.3, or a new trial, or a proceeding preliminary or incidental to an appeal or new trial.

Division 5—Legal practitioners

- Clause 358 deals with the costs liability of legal practitioners. This costs provision is broader than the current provisions in that it has been extended to cover all pre-trial processes (that is, proceedings in the County or Supreme Courts prior to the commencement of trial).

Subclause (1) applies to legal practitioners for parties to criminal proceedings in the Magistrates' Court or criminal proceedings in the Supreme Court or County Court before the commencement of trial. If such a legal practitioner has caused costs to be incurred improperly or without reasonable cause or to be wasted by undue delay or negligence or by any other misconduct or default the court may make an order that—

- all or any of the costs between the legal practitioner and the client be disallowed or that the legal practitioner repay to the client the whole or part of any money paid on account of costs; or
- the legal practitioner pay to the client all or any of the costs which the client has been ordered to pay to any party; or
- the legal practitioner pay all or any of the costs payable by any party other than the client.

Subclause (2) sets out circumstances in which the legal practitioner will be in default for the purposes of subclause (1).

PART 8.4—MISCELLANEOUS

Clause 359 contains various rules with respect to the issue of a warrant to arrest.

Warrants to arrest which are authorised to be issued under this Bill must be issued in accordance with Division 3, Part 4 of the **Magistrates' Court Act 1989**, with any necessary modifications.

Subclause (2) provides that, if a warrant to arrest is issued under this Bill by a court other than the Magistrates' Court, a person arrested on the warrant must, if practicable, be brought before the court which issued the warrant. This departs from the current practice which is that the person arrested is brought at first instance before the Magistrates' Court. If possible, it is preferable for a person to be brought before the court familiar with the reasons why the warrant was issued.

However, pursuant to subclause (3), if it is not practicable to bring an arrested person before the court which issued the warrant within a reasonable period of time after arrest, the person must be brought before a bail justice or the Magistrates' Court.

Where the arrested person is brought before a bail justice or the Magistrates' Court, the bail justice or Magistrates' Court must bail or remand the accused in custody to appear before the issuing court.

Clause 360 gives the court a broad power to amend a summons, warrant, plea, judgment or order for the purpose of correcting any defect or error in substance or in form. This ensures that complex appeal and judicial review processes are not needed to correct defects or errors.

Clause 361 provides a way of resolving a charge which, as a result of error, is before a court which has no jurisdiction to hear it. The court may order that such a charge be transferred to the appropriate court, if it is satisfied that it is in the interests of justice to do so.

Currently, there is no clear way of resolving such charges (which include situations such as where an accused has been committed for trial on a purely summary offence and where an accused, by virtue of age, should be tried in the Children's Court but the charge is wrongly filed in the Magistrates' Court).

This clause provides a simple power allowing a court to transfer such charges to a court with the jurisdiction to hear them.

- Clause 362 allows a court to direct that a person be prosecuted for perjury if it appears that the person has committed perjury in oral or written evidence (affidavit, deposition etc). A court may remand the person it has directed to be tried for perjury, in custody or grant the person bail pending the trial. Clause 5 confirms that this is one of the ways in which a criminal proceeding can be commenced.
- Clause 363 provides that nothing in this Bill derogates from a duty otherwise imposed on the prosecution to disclose to the accused material relevant to a charge.
- Clause 364 prohibits charging the accused fees for the issuing of any process on behalf of an accused or for taking or discharging a recognisance of bail or issuing a writ or recording an appearance or plea.
- Clause 365 notifies the intention of clauses 61(4) and 209(4) to alter or vary section 85 of the **Constitution Act 1975**. These clauses both state that a decision to give or not to give a sentence indication is final and conclusive.
- Clause 366 allows rules of court regulating the practice and procedure under this Bill to be made by the relevant authority for or with respect to any matter for which provision is to be made under this Bill or under the **Crimes (Mental Impairment or Unfitness to be Tried) Act 1997**.
- Clause 367 allows the Governor in Council to make regulations with respect to a range of specified matters. These are set out in subclause (1) and are—
- prescribing the costs of and incidental to various specified proceedings in the County Court and Supreme Court;
 - prescribing allowances and expenses for witnesses and interpreters in various specified circumstances; and
 - prescribing allowances and expenses for special commissioners appointed by the Court of Appeal.

The Governor in Council may also make regulations with respect to any other matter or thing required or permitted by this Bill to be prescribed or necessary to be prescribed to give effect to the Bill.

Pursuant to subclause (2), such regulations may be of general or limited application and may differ according to differences in time, place or circumstance.

CHAPTER 9—REPEALS AND CONSEQUENTIAL AND OTHER AMENDMENTS

PART 9.1—CRIMES (CRIMINAL TRIALS) ACT 1999

Clause 368 repeals the **Crimes (Criminal Trials) Act 1999**.

PART 9.2—CRIMES ACT 1958

Clause 369 repeals various sections of the **Crimes Act 1958**. The repeals fall into two categories. First, where the substance of the section has been re-enacted in the Bill and, secondly, where the section is obsolete and has not been re-enacted. Those in the first category have been discussed throughout this Explanatory Memorandum. Those in the second are reviewed below.

Section 359AA of the **Crimes Act 1958** has been separated into a separate subclause (3). This section provides a power to transfer related summary offences to the Supreme Court or County Court. It has been separated as there is a possibility that because of information technology requirements for the new related summary offence process in clause 145, the commencement of that clause may need to be delayed. Section 359AA would need to continue to operate in the interregnum.

Crimes Act 1958 section 379—description of Crown property

This section was originally enacted in 1958 and related to a specific problem that existed at the time. New offences created by the **Crimes (Theft) Act 1973** and the procedural provisions in section 73(9) of the **Crimes Act 1958** have rendered it obsolete.

Crimes Act 1958 section 380—property under management of body corporate deemed to be property thereof

This section deems that any property that a body corporate manages, controls or has custody of is the property of the body corporate for the purpose of a criminal proceeding against any other person for an offence in respect of the property.

This specific statement is no longer needed as a result of section 71(2) of the **Crimes Act 1958** which provides that "property shall be regarded as belonging to any person having possession or control of it, or having in it any proprietary right or interest (not being an equitable interest arising only from an agreement to transfer or grant an interest)."

Crimes Act 1958 section 381—money or securities etc. may simply be described as money

This section derives from section 71 of the Larceny Act 1861 (UK) (24 & 25 Vict. c.96) which appears to have been primarily enacted to overcome highly technical eighteenth century pleading rules in the United Kingdom which have never been part of Victorian law. The repeal of section 381 would not revive the technical pleading rules unless Parliament indicates an intention to do so (section 14(2) of the **Interpretation of Legislation Act 1984**). The section also deals with the effect of a description of "money" in a presentment. It serves no contemporary purpose and has not been re-enacted.

Crimes Act 1958 section 382—presentment for stealing etc. documents of title

This section provides that it is sufficient to allege that a document of title to land is or contains evidence of title. The offence to which this procedural provision relates (stealing or fraudulently destroying, etc a document of title to land) was repealed by the **Crimes (Theft) Act 1973**. There is now no reasonable possibility that a person will be charged with such an offence that occurred before 1 October 1974.

Crimes Act 1958 section 389—no person entitled to traverse or have time to plead

This section provides that the court may adjourn a case to allow an accused time to plead, demur or prepare their defence but that there is no right or entitlement to such an adjournment. The general power of adjournment in clause 331 is sufficient to cover this situation.

Crimes Act 1958 section 396—not necessary to inquire into accused's land

This section provides that where a person is presented for treason or an indictable offence, it is not necessary to inquire into their lands or goods, nor whether the person fled for the offence. It is likely that this section was first enacted because of a concern that failure to re-enact it might revive earlier jury functions of inquiring into the lands or goods of an accused and inquiring as to whether the accused had fled for the purpose of common law forfeiture. The provision is no longer regarded as necessary because section 14(2) of the **Interpretation of Legislation Act 1984** provides that repeal of a provision of an Act does not revive anything not in force at the time of the repeal.

Crimes Act 1958 section 409—no need to prove specific intent to defraud in trials relating to instruments

The only offences to which this section directly related were abolished as part of the overhaul of Division 3 made by the **Crimes (Criminal Damage) Act 1978**. There remains one offence to which this section could technically apply (because it is in Division 3 of Part 1 of the **Crimes Act 1958** and includes as an element an intention to injure a person), namely "Threats to safety of aircraft" in section 246E. Section 409 is of no assistance in relation to that offence, because it refers to an intention "to kill or injure all or any of the persons on board an aircraft". It could not be sufficient for a charge for an offence against section 246E simply to prove "an intent to injure" as indicated in section 409. Therefore, section 409 is no longer necessary.

Crimes Act 1958 section 422—procedure where facts disclose more serious offence

Although in its current form this provision is relatively recent (the current wording was introduced in 1981), the provision has a long history that is closely tied to technical rules that related to the distinction between felonies and misdemeanours. Historically, the common law doctrine of merger had the effect that if the same facts constituted both a felony and a misdemeanour, the misdemeanour merged into the felony. This meant that if a person was put on trial for a misdemeanour, but the evidence at the trial disclosed that the person had actually committed a felony, the trial had to be aborted.

The section is no longer necessary because the particular obstacle posed by the common law doctrine of merger has long been overcome in Victoria by the abolition of the distinction between felonies and misdemeanours.

Crimes Act 1958 section 423—alternative verdict of unlawfully wounding

This section relates to offences no longer contained in the **Crimes Act 1958**.

Crimes Act 1958 section 424—alternative verdict of administering poison

This section refers to the offence of administering poisoning. The offence of administering poison was abolished in 1986. A new offence administering a substance to another was created at the same time in section 19 of the **Crimes Act 1958**. However, that offence is significantly different from the offence of administering a poison.

Crimes Act 1958 section 436—records to be drawn in amended form

This section provides that if a record is to be drawn up based on proceedings under the **Crimes Act 1958**, it should be based on an amended form of the presentment. This provision is unnecessary.

Crimes Act 1958 section 437—judgment not to be reversed because juror not returned as juror

This section provides that a judgment is not to be reversed or stayed simply because a juror has not been returned as a juror by the Juries Commissioner. However, there is no current statutory requirement that a juror be "returned as a juror by the Juries Commissioner".

Crimes Act 1958 section 439—payment of fine forwarded to Prothonotary

This section requires the officer in charge of a prison to forward any money received to pay a fine to the court. This involves antiquated practices and it is unnecessary to include such a requirement in legislation.

Crimes Act 1958 section 444—procedure on disagreement by jury

This section empowers a court to direct that a new trial take place where a jury is discharged upon being unable to reach a verdict after six hours deliberation. This is unnecessary as a result of section 46(2) of the **Juries Act 2000**.

Crimes Act 1958 section 453—scale of charges

This section enables the court to establish a scale of fees for the conduct of business in the criminal jurisdiction. This provision is unnecessary because a power to make rules in relation to costs and fees is already provided for in each court's legislation (i.e. section 140(1) of the **Magistrates' Court Act 1989**, section 78 of the **County Court Act 1958** and section 129 of the **Supreme Court Act 1986**).

Crimes Act 1958 section 456—provision as to action against persons acting in pursuance of Act

The history of this section can be traced back to section 412 of the **Criminal Law and Practice Act 1864**. The effect of the provision is that a plaintiff who successfully brings an action against an accused relating to the exercise of powers under the **Crimes Act 1958** will not be entitled to recover any damages awarded if they had previously rejected an offer from the

accused to pay a sum equal to or higher than the damages awarded. These issues are now dealt with under the Supreme Court Rules as part of civil procedure and do not need to be referred to in the Bill.

Section 456 also contains a limited form of immunity for those that exercise powers under the **Crimes Act 1958** (e.g. the DPP, Crown Prosecutors, members of the judiciary and Victoria Police). These have been rendered redundant by modern forms of immunity in, for example, the **Police Regulation Act 1958** and the **Public Prosecutions Act 1994**.

Crimes Act 1958 section 571—jurisdiction of Court of Appeal

This section provides that all jurisdiction and authority in relation to questions of law arising in criminal trials is vested in the Court of Appeal. The section now serves no purpose in light of section 10 of the **Supreme Court Act 1986** and section 85 of the **Constitution Act 1975**.

Crimes Act 1958 section 581—notes of evidence on trial

This section relates to payment for transcripts. This provision is unnecessary given the current role and practices of the Victorian Government Reporting Service. There is no need for the Bill to contain a comparable provision.

Crimes Act 1958 Schedule 3

Schedule 3 relates to section 353(1) of the **Crimes Act 1958**, which provides that a presentment must be in the form contained in Schedule 3. The effect of Schedule 3 is now dealt with in clause 159(3) of the Bill.

Crimes Act 1958 Schedule 4—certificate

Schedule 4 contains a certificate which is relevant to section 357 of the **Crimes Act 1958**. That section deals with the situation where a person has been committed for trial but the DPP decides not to prosecute. Schedule 4 is no longer relevant in light of the procedure for discontinuing a prosecution in clause 177.

Crimes Act 1958 Schedule 6—Appendix to Presentment Rules

The Appendix to the presentment rules contained in Schedule 6 sets out forms for certain offences. Some of the offences referred to no longer exist (e.g. malicious wounding contrary to section 19 of the **Crimes Act 1958**). The Appendix itself is also unnecessary in light of the general requirements for charges in Schedule 1 to the Bill.

PART 9.3—CRIMES (MENTAL IMPAIRMENT AND UNFITNESS TO BE TRIED) ACT 1997

Clause 370 inserts a new section 14A into the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**. Currently, an appeal by an accused against a finding that the accused is unfit to stand trial is dealt with under section 570C of the **Crimes Act 1958** by applying the procedure in section 570A (appeal against finding of not guilty because of mental impairment) with necessary modifications. As with appeals against verdicts of not guilty because of mental impairment (see discussion of clause 371 below), this appeal power is being moved into the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** so that it is linked to the substantive processes underlying the appeal right. New section 14A articulates the procedural and substantive requirements of such an appeal rather than relying on a "necessary modifications" approach. It also follows, to the extent reasonably possible, the structure of the substantive appeals provisions in the Bill, particularly, clauses 274–277.

New section 14A(2) and (3) provide that a notice of application for leave to appeal must be filed within 28 days of the order being made. The Registrar of Criminal Appeals of the Supreme Court must provide the respondent with a copy of the notice of application for leave to appeal within 7 days after the filing of the notice.

New section 14A(4) requires the Court of Appeal to allow an appeal against a finding of unfitness where—

- the finding of unfitness is unreasonable and cannot be supported having regard to the evidence;
- there has been a material error of law; or
- for any other reason the Court of Appeal considers that the finding should not stand. This acts as a general ground to ensure that justice can be done in individual cases.

The options for a court on a successful appeal now cover all of the possible approaches that may be required. New subsections (6) and (7) provide that if the appeal is allowed, the court may—

- set aside the finding and remit the matter for trial;

- set aside the finding and remit the matter for a rehearing of the issue of whether the accused is fit to stand trial with directions as to how the hearing is to take place (this may be appropriate if, for example, a wrong direction was given to the jury); or
- if the court considers that, even though the appeal has been allowed, the accused is unfit to stand trial, affirm the finding and remit the matter for the process under the Act to continue.

The Court of Appeal may, on remitting a matter under this section, give directions as to how the rehearing is to be conducted and remand the accused in custody, grant the accused bail, or make any other order that it considers appropriate for the safe custody of the accused.

Clause 371 inserts a new section 24AA into the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**. Currently, an appeal by an accused against a verdict of not guilty because of the mental impairment is dealt with under sections 570A and 570B of the **Crimes Act 1958**.

As with clause 370 discussed above, this appeal power is being moved into the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** so that it is linked to the substantive processes underlying the appeal right. New section 24AA articulates the procedural and substantive requirements of such an appeal in more detail than in current legislation. It also follows, to the extent reasonably possible, the structure of the substantive appeals provisions in the Bill, particularly, clauses 274–277.

New section 24AA(2) and (3) provide that a notice of application for leave to appeal must be filed within 28 days of the verdict. The Registrar of Criminal Appeals of the Supreme Court must provide the respondent with a copy of the notice of application for leave to appeal within 7 days after the filing of the notice.

New section 24AA(4) requires the Court of Appeal to allow an appeal against a verdict of not guilty because of mental impairment on the same bases as for ordinary appeals against conviction. This reflects the new grounds of appeal in clause 276 discussed in detail earlier—

- the verdict is unreasonable or cannot be supported on the evidence;

- as a result of an error or an irregularity, there has been a substantial miscarriage of justice; or
- for any other reason there has been a substantial miscarriage of justice.

However, following section 570A(4) of the **Crimes Act 1958**, new subsection (5) allows the Court to dismiss an appeal if the court considers that—

- none of the grounds for allowing the appeal relates to the issue of the mental impairment of the accused; and
- the court considers that, but for the accused's the mental impairment of the accused, the proper verdict would have been made that the accused was guilty of an offence other than the offence charged.

New subsection (7) provides that, if the Court of Appeal allows an appeal on the ground that the verdict of not guilty because of mental impairment ought not to stand, and considers that the proper verdict would have been guilty of an offence, the Court of Appeal must substitute a verdict of guilty of that offence and may make any order that the trial court could have made.

Under new subsection (8), if the Court of Appeal allows the appeal, and new subsection (7) does not apply, it must set aside the verdict and either enter a judgment and verdict of acquittal or order a new trial.

Finally, new subsection (9) applies if the Court of Appeal orders a new trial. It allows the Court of Appeal to make any order referred in new section 24(1)(a), (b), (c) or (e) pending the new trial.

Clause 372 contains certain consequential amendments to the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997** which arise from the new appeal procedures in clauses 370 and 371.

PART 9.4—MAGISTRATES' COURT ACT 1989

Clause 373 inserts new sections 25(3) and (4) into the **Magistrates' Court Act 1989** allowing the court to make an order for a joint committal proceeding where a child and adult are charged in relation to the same offence.

The child must be of or over the age of 15 at the time the proceeding is commenced and must be charged with murder, attempted murder, manslaughter, arson causing death or

culpable driving causing death. As a result, the new process only allows a joint committal for indictable offences which cannot be tried summarily in the Children's Court.

This clause, along with clause 377 of the Bill, which amends the **Children, Youth and Families Act 2005**, introduces a basic structure in which agreement between the courts occurs by one court considering the matter and making an order that the matter is appropriate to be determined as a joint committal proceeding.

Under new subsection (4), the Court may order that joint committal proceedings are appropriate, having had regard to matters including—

- the age of the child; and
- the effect on victims of the offence charged if the committal proceedings were not conducted jointly; and
- the estimated duration of the committal proceedings if conducted jointly; and
- the number of witnesses that would be cross-examined by both defendants.

Once the first court has made its order, it may adjourn the matter for 28 days; if within that period the other court also considers that a joint committal is appropriate, then the provisions in both the **Magistrates' Court Act 1989** and the **Children, Youth and Families Act 2005** will apply to confer jurisdiction to conduct joint committal proceedings.

If joint committal proceedings are conducted, the **Children, Youth and Families Act 2005** applies as far as practicable to the child and the **Criminal Procedure Act 2008** applies as far as practicable to the adult.

Clause 374 contains certain consequential amendments to the **Magistrates' Court Act 1989** as a result of processes which are now contained in the Bill.

PART 9.5—CHILDREN, YOUTH AND FAMILIES ACT 2005

Clause 375 inserts definitions of authorised person and DPP into section 3(1) of the **Children, Youth and Families Act 2005** and amends the definition of sentencing order in the same section.

Clause 376 inserts into Chapter 5 of the **Children, Youth and Families Act 2005** a new Part 5.1A which contains provisions relating to time limits for filing charges; applications for an extension of time for the commencement of proceedings; extensions of time; and rehearings.

The new section 344A requires a proceeding against a child for a summary offence to be commenced within 6 months of the offence. This reduces the limitation period from the current 12 months. The new section provides for 2 exceptions—

- where the Court extends the time (see new section 344C); or
- where the child, after receiving legal advice, gives written consent, and a member of the police force of or above the rank of sergeant consents, to the proceeding being commenced after the expiry of 6 months (see new section 344A).

With respect to indictable offences, new subsection (2) allows a proceeding against a child to be commenced at any time, except where otherwise provided by or under this or any other Act. This reflects the current position in relation to indictable offences.

New subsections (3) to (6) provide that the Court must be satisfied that the child obtained legal advice before giving consent to extend the time limit for the commencement of a proceeding for a summary offence. If the Court is not so satisfied it must adjourn the hearing so that the child can obtain legal advice and advise the child that, after obtaining legal advice, he or she may withdraw his consent to the late commencement of the proceeding. If the child does so, the Court must strike out the charge.

New section 344B sets out the requirements for applications for extensions of time by an informant. Only one application may be made, and it must be made within 12 months after the date on which the summary offence is alleged to have been committed. New section 344B(5) sets how an application must be supported. The applicant must file in the Court and serve specified documents on the child at least 14 days before the hearing of the application.

New section 344C allows the court, on hearing an application under section 344B, to extend the period for commencing the proceeding to a date within 12 months after the date on which the summary offence is alleged to have been committed.

In determining the application, the Court must have regard to a number of listed factors.

The child may appear and address the Court but, if the child does not appear, the Court may proceed to hear and determine the application in the child's absence.

In cases where the Court extends the period for commencing the proceeding, the informant must file the charge-sheet without delay, at which time the Court may hear and determine the charge, provided that the child is present before the Court and ready to proceed. If the child is not present before the Court, the informant must serve the child with notice of the Court's determination.

New section 344D provides that, if an application under section 344B is heard and determined in the absence of the child, the child may apply to the Court for an order that the determination be set aside and that the application be reheard. The remaining subsections set out the formal requirements for such applications.

- Clause 377 inserts a new section 516A into the **Children, Youth and Families Act 2005** allowing joint committal proceedings where an adult and child are charged in relation to the same offence. The clause is identical in substance to clause 373 (see the description of this joint process under clause 373); the differences between the clauses reflect that orders are made in different courts.

PART 9.6—APPEALS COSTS ACT 1998

- Clause 378 inserts new sections 15A, 15B and 15C in the **Appeals Costs Act 1998**. The new sections deal with applications for indemnity certificates in three cases: (1) by an accused if an interlocutory appeal by an accused is successful; (2) by a respondent if the interlocutory appeal is by the prosecution; and (3) by the accused if a case is stated for the Court of Appeal.

New section 15A applies to interlocutory appeals by the accused. The accused is only be able to seek an indemnity certificate if they are successful in their interlocutory appeal. This is consistent with the underlying philosophy of the **Appeal Costs Act 1998** that the accused should not have to pay for mistakes in the process that led to them incurring additional costs. The other situation covered is where a new trial is needed as a result of a successful interlocutory appeal by the accused. This will occur rarely and only where an interlocutory appeal is

taken during trial and, as a result of the appeal being successful, the current trial has to be abandoned and a new trial commenced.

The proposed section 15B applies to interlocutory appeals by the prosecution. Consistent with the approach to prosecution appeals against sentence in section 15 of the **Appeal Costs Act 1998**, the court may grant an indemnity certificate to the respondent (the accused) for the costs of the appeal irrespective of the outcome of the appeal.

As with accused appeals, an indemnity certificate will also be available for additional costs arising from the order for a new trial. This will only apply where an interlocutory appeal is taken during trial and, as a result of the appeal being successful, the current trial has to be abandoned and a new trial commenced.

The proposed section 15C applies to cases stated by a judge. The case stated procedure can only be utilised if the court approves its use. The types of issues that usually arise in case stated procedures often have benefits for other trials where similar issues arise. As a result, an indemnity certificate can be granted irrespective of who the applicant for the case is. As the accused cannot "win" or "lose" a case stated procedure, there is no basis for attempting to identify whether the accused won or lost the question of law which was reserved for the consideration of the Court of Appeal.

As with interlocutory appeals, an indemnity certificate will also be available for additional costs arising from the order for a new trial. This will only apply where a case is stated during trial and, as a result of the outcome of the procedure, the current trial has to be abandoned and a new trial commenced.

PART 9.7—SENTENCING ACT 1991

- Clause 379 repeals section 105 of the **Sentencing Act 1991**. Because of the definition of original jurisdiction (in particular in (d)) in clause 3, the appeal right contained in clauses 276 and 278 applies to proceedings for breach of a sentencing order. This clarified appeal right renders the appeal right in section 105 redundant.
- Clause 380 inserts a new section 112A into the **Sentencing Act 1991** which sets a maximum fine of 500 penalty units for a natural person found guilty of an indictable offence heard and determined summarily by the Magistrates' Court, subject to any contrary intention in any Act other than the **Sentencing Act 1991**.

This maximum applies irrespective of whether the offence is also punishable by imprisonment.

Section 113A of the **Sentencing Act 1991** limits the maximum term of imprisonment that may be imposed for an indictable offence that is heard summarily to 2 years, subject to a contrary intention being expressed. This limit applies despite a higher maximum penalty that applies to the offence when tried in the County or Supreme Court. The **Sentencing Act 1991** does not contain an equivalent maximum financial penalty limit. As a result, there is no consistency between the maximum fines for these offences when they are heard summarily. This affects offences punishable by both imprisonment and fine, or only by fine.

Clause 380 takes the same approach to the limit on financial penalties that is already followed for imprisonment penalties: there is a set maximum penalty when an indictable offence is heard and determined summarily that is subject to an expressed contrary intention. The maximum financial penalty for a natural person is 500 penalty units.

- Clause 381 inserts new subsections into section 113D into the **Sentencing Act 1991**. It sets a maximum fine of 2500 penalty units for a body corporate, subject to any contrary intention in any Act other than this Bill. This takes the same approach as discussed in relation to clause 380. The higher maximum financial penalty reflects the fact that other forms of penalty cannot be imposed on a body corporate. This is also consistent with the approach in section 113D of the **Sentencing Act 1991** which provides that, in the absence of a contrary intention, a court may impose a fine on a body corporate that is up to five times the amount that the court could impose on a natural person.

PART 9.8—MISCELLANEOUS AMENDMENTS

- Clause 382 amends various Acts to reclassify various offences as summary or indictable offences. Each of the offences listed has a maximum penalty of 2 years imprisonment or less. Normally a summary offence is punishable by 2 years imprisonment or less (see sections 112 and 113A of the **Sentencing Act 1991**). This amendment makes these offences consistent with the general approach to the classification of offences.

- Clause 383 repeals the option of a jury trial in sections 53(3), 53(5) and 53(6) of the **Summary Offences Act 1966**. The maximum penalty for this offence is imprisonment for 1 year; it is therefore appropriately classified as a summary offence (see sections 112 and 113A of the **Sentencing Act 1991**). The option of a jury trial for a summary offence is anomalous and therefore has been removed.
- Clause 384 repeals certain provisions concerning sentence indications in the Supreme Court and County Court. Clause 2 of this Bill provides that clause 384 comes into operation on 1 July 2010. The effect of this provision is that the sentence indication provisions in the County Court and the Supreme Court will sunset on 1 July 2010. This is the same date as the sentence indication provisions for the County Court and Supreme Court sunset under the **Criminal Procedure Legislation Amendment Act 2008**.
- Clause 385 provides that this Chapter is repealed on 1 January 2012.

SCHEDULES

SCHEDULE 1—CHARGES ON A CHARGE-SHEET OR INDICTMENT

- Clause 1 provides that a charge must—
- state the offence that the accused is alleged to have committed; and
 - contain the particulars that are necessary to give reasonable information as to the nature of the charge.
- Clause 2 states that the particulars of the offence charged must be set out in ordinary language and avoid the use of technical terms. If a rule of law or a statute limits the particulars that are required to be given in a charge, only those particulars are required.
- Clause 3 defines statutory offence as an offence created by an Act or subordinate instrument or by a provision of an Act or subordinate instrument. A statement of a statutory offence is sufficient if it identifies the provision creating the offence and describes the offence in the words of the provision creating it, or in similar words.
- Under subclause (3), if a statutory offence states the offence to be committed in alternative ways or any element or part of the offence in the alternative, a charge may state the commission of the offence or element or part of the offence in the alternative.

- Clause 4 states that any exception, exemption, proviso, excuse or qualification need not be specified or negated in a charge.
- Clause 5 provides for the joinder of charges. Charge-sheets or indictments may contain charges for related offences, whether against the same accused or different accused and, if more than one offence is charged in a charge-sheet or indictment, the particulars of each offence charged must be set out in a separate, consecutively-numbered paragraph.
- Clause 56(3) provides that a separate charge-sheet (in the Magistrates' Court) must be filed against each accused. However, the charge-sheet may allege that the accused committed the offence with another person. An indictment may name (and charge) more than one accused in the one charge.
- Clause 6 applies in cases where an offence is alleged against more than one accused. It allows an indictment or charge-sheet to name each of those accused in the charge for the offence, regardless of their degree of participation in the offence.
- Clause 56(3) provides that a separate charge-sheet (in the Magistrates' Court) must be filed against each accused. However, the charge-sheet may allege that the accused committed the offence with another person. An indictment may name (and charge) more than one accused in the one charge.
- Clause 7 provides that, subject to any other provision of this Schedule, if it is necessary to describe anything in a charge, it is sufficient to describe the thing in ordinary language in a manner that indicates with reasonable clarity the thing referred to.
- Clause 8 concerns the description of persons in charges. Subclause (1) requires such a description or designation in a charge of a person to be reasonably sufficient to identify the person. Subclause (2) provides that, if it is impracticable to do this, a description or designation must be given that is reasonably practicable in the circumstances; or the person may be described as "a person unknown".
- Clause 9 provides that, if it is necessary to refer to a document or instrument in a charge, it is not necessary to set out a copy of it but rather it is sufficient to describe it by any name by which it is usually known or by its substance.

Clause 10 requires the description of property in a charge to be in ordinary language and to indicate the property with reasonable clarity.

If this requirement is met, it is not necessary to name the owner or the value of the property, unless that information is required to describe an offence which depends on a special ownership of property or a special value of property.

If there is more than one owner of a property and the owners of the property are referred to in a charge, it is sufficient to describe the owners by naming one of those persons followed by the words "with others" or if the owners are a body of persons with a collective name, by using the collective name alone.

Clause 11 provides that, in stating an intent to deceive, injure or defraud, it is not necessary to state an intent to deceive etc. any particular person if the statute creating the offence does not make intent to deceive etc a particular person an element of the offence.

Clause 12 sets out what needs to be in a charge for perjury and related offences. Subclause (1) relates to charges of perjury or offences deemed to be perjury. It is sufficient to set out the substance of the offence charged and the court, tribunal or person before whom the accused falsely swore, declared or affirmed the matter charged as false. It is not necessary to set out the commission or authority of the court, tribunal or person.

Subclause (2) deals with charges of subornation of perjury and other similar offences where the offence of perjury has been actually committed. In such cases it is sufficient to allege the offence of the person who committed the offence and then to allege that the accused unlawfully caused and procured that person to commit the offence.

Where the act of perjury (or similar offence) has not yet been committed, it is sufficient to set out the substance of the offence against the accused without referring the matters referred to in subclause (2).

Clause 13 requires the following information to be included on an indictment—

- the name of every witness who gave evidence at the committal proceeding, indicating whether the prosecution proposes to call the witness at the trial; and
- the names of any other witnesses the prosecution proposes to call at the trial.

SCHEDULE 2—INDICTABLE OFFENCES THAT MAY BE HEARD AND DETERMINED SUMMARILY (CLAUSE 28(1))

Schedule 2 lists the indictable offences that may be heard and determined summarily. Schedule 2 is based on Schedule 4 to the **Magistrates' Court Act 1989**. A number of Acts or offences under Acts have not been included from Schedule 4 as a result of the clearer description of which indictable offences may be heard and determined summarily in clause 28(1)(b) including—

- **Classification (Publications, Films and Computer Games) (Enforcement) Act 1995;**
- **Cemeteries and Crematoria Act 2003;**
- **Wildlife Act 1975;**
- **Health Services Act 1988;**
- **Marine Act 1988;**
- **Australian Crime Commission (State Provisions) Act 2003;**
- **Crimes Act 1958**—sections 31A, 247E and 247F;
- **Prostitution Control Act 1994**—section 75(1);
- **Firearms Act 1996**—the offences which are currently listed as being triable summarily in Schedule 4 are triable summarily under clause 28(1)(b) of the Bill (and therefore do not need to be listed) except for offences in sections 5(1A) and 7B(2).

The reference to section 7A(6) of the **Firearms Act 1996** has not been included because the offence has been repealed. Item 11 from Schedule 4, concerning the **Electoral Act 2002**, has not been included because it was repealed by section 16 of the **Electoral and Parliamentary Committees Act Legislation (Amendment) Act 2006**.

Schedule 2 also includes a number of changes related to the new summary financial penalty limit created by clauses 380 and 381. Entries in Schedule 2 to the following Acts from Schedule 4 to the **Magistrates' Court Act 1989** no longer need to include a maximum summary financial penalty as they will be subject to the new summary financial penalty limit created by clauses 380 and 381—

- Item 4—**Dangerous Goods Act 1985;**
- Item 9—**Equipment (Public Safety) Act 1994;**
- Item 11—**Food Act 1984;**
- Item 20—**Occupational Health and Safety Act 2004;**

- Item 24—**Road Management Act 2004**;
- Item 26—**Sports Event Ticketing (Fair Access) Act 2002**;
- Item 28—**Water Act 1989**; and
- Item 29—**Water Industry Act 1994**.

In relation to item 7 (**Electricity Safety Act 1998**) and item 13 (**Gas Safety Act 1997**), higher maximum financial penalties are applied for bodies corporate. The offences apply in very limited situations relating to the failure to comply with directions to make a gas or electricity emergency situation safe. The deterrent effect of significant penalties that can be imposed very quickly may be important in dealing with emergency situations.

In relation to item 8 (**Environmental Protection Act 1970**), the general rule will apply except where a natural person and a body corporate are charged with offences that must be heard together (in accordance with clause 56 of the Bill). The maximum penalty for a number of offences under the **Environmental Protection Act 1970** is the same for natural persons and bodies corporate. Because this Bill limits the maximum penalty that may be imposed on a natural person to 500 penalty units, there is a risk that a court may decline to hear a matter because it has insufficient sentencing capacity. As a result, the prosecution of both the natural person and the body corporate would be heard in the County Court. To avoid this, item 8 of Schedule 2 to the Bill provides that in such circumstances, the court may impose a higher penalty of up to 2500 penalty units.

The Schedule also amends the reference in item 5 to the **Drugs, Poisons and Controlled Substances Act 1981** by removing the exception for offences under that Act to the maximum penalty of 2 years imprisonment generally imposed for indictable offences heard and determined summarily (see section 113 of the **Sentencing Act 1991**). Currently, Schedule 4 to the **Magistrates' Court Act 1989** provides a maximum penalty for such offences of "imprisonment for a period not exceeding 3 years or a fine of not more than 50 penalty units". This is the only exception to section 113 of the **Sentencing Act 1991**. For consistency, this exception has been removed. The usual maximum penalty of 2 years imprisonment therefore applies to an indictable offence which is heard and determined summarily. The higher maximum penalty remains available in the County or Supreme Courts for cases where committal for trial is appropriate.

SCHEDULE 3—PERSONS WHO MAY WITNESS STATEMENTS IN PRELIMINARY BRIEF, FULL BRIEF OR HAND-UP BRIEF

Items 1–30 set out those persons who may witness statements in a preliminary brief, full brief or hand-up brief, including a person specified in the rules of court.